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Agencies in this issue—

The Congress
The President
Agricultural Research Service
Civil Aeronautics Board
Federal Aviation Agency
Federal Communications Commission
Federal Crop Insurance Corporation
Federal Power Commission
Federal Reserve System
Fish and Wildlife Service
Food and Drug Administration
Foreign Assets Control Office
Housing and Home Finance Agency
Indian Affairs Bureau
Interior Department
Internal Revenue Service
Interstate Commerce Commission
Land Management Bureau
Navy Department
Renegotiation Board
Small Business Administration

Detailed list of Contents appears inside.



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1934

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LYNDON B. JOHNSON, 1963–64

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Contents

THE CONGRESS

Acts Approved 14189

THE PRESIDENT

EXECUTIVE ORDERS

Designation of Vietnam and waters adjacent thereto as and overseas combat area for purposes of Armed Forces mailing privileges 14135

Establishing the President's Committee on Food and Fiber and the National Advisory Commission on Food and Fiber 14137

EXECUTIVE AGENCIES

AGRICULTURAL RESEARCH SERVICE

Rules and Regulations

Quarantine; imported fire ant; regulated areas 14148

AGRICULTURE DEPARTMENT

See Agricultural Stabilization and Conservation Service; Federal Crop Insurance Corporation.

CIVIL AERONAUTICS BOARD

Notices

Hearings, etc.:
- International Tours, Jack E. Hummel 14175
- Los Angeles Airways, Inc., et al 14175
- WTC Air Freight 14175

DEFENSE DEPARTMENT

See Navy Department.

FEDERAL AVIATION AGENCY

Rules and Regulations

Airworthiness directives:
- de Havilland Model DHC-2 Series airplanes 14151
- Piper Model PA-24 airplanes 14152

Control area extension; revocation; correction 14154

Control zones:
- Designation 14153
- Revocation and alteration 14154

Control zone, alteration; and designation of transition area 14153

Control zone, transition area, and control area extension; alteration, designation, and revocation 14152

Transition area; alteration 14153

Transition area, designation; and alteration of Federal airway 14152

Proposed Rule Making

Consumption of alcoholic beverages by crewmembers before operation of aircraft 14170

Transition areas:
- Alteration 14170
- Designation 14169

FEDERAL COMMUNICATIONS COMMISSION

Proposed Rule Making

Table of assignments, FM broadcast stations; New Castle, Ind 14171

Notices

Hearings, etc.:
- Eastern Long Island Broadcasters, Inc., and Reunion Broadcasting Corp 14175
- Webster County Broadcasting Co. and Holmes County Broadcasting Co. (WXTN) 14176

FEDERAL CROP INSURANCE CORPORATION

Rules and Regulations

Counties designated for corn, flax, and tobacco crop insurance, 1961 and succeeding crop years; correction 14151

FEDERAL POWER COMMISSION

Notices

Seewald, Hughes, et al.; findings and order 14176

FEDERAL RESERVE SYSTEM

Notices

Virginia Commonwealth Corp.; application for approval of acquisition of shares of bank 14179

FISH AND WILDLIFE SERVICE

Rules and Regulations

Sport fishing in certain wildlife refuge areas:
- Arizona and California; Imperial 14156
- Oklahoma; Wichita Mountains 14156

Notices

Loan applications:
- Bender, Bert Arthur 14174
- Majdic, Julius R 14174

FOOD AND DRUG ADMINISTRATION

Rules and Regulations

Administration; Washington headquarters 14154

Drugs; erythromycin; sampling 14155

Food additives; lubricants with incidental food contact 14155

Notices

Rohm & Haas Co.; filing of petition for food additive 14175

FOREIGN ASSETS CONTROL OFFICE

Rules and Regulations

Importation of and dealings in certain merchandise; Asiatic human hair 14156

Notices

Asiatic human hair items; importation 14174

HEALTH, EDUCATION, AND WELFARE DEPARTMENT

See Food and Drug Administration.

HOUSING AND HOME FINANCE AGENCY

Notices

Regional Administrator, Fort Worth; authority delegation 14176

INDIAN AFFAIRS BUREAU

Rules and Regulations

Leasing and permitting; Colorado River Reservation 14155

INTERIOR DEPARTMENT

See also Fish and Wildlife Service; Indian Affairs Bureau; Land Management Bureau.

Notices

Outer continental shelf lands off Southern California; twinning of existing core holes 14174

INTERNAL REVENUE SERVICE

Proposed Rule Making

Income taxes; charitable, etc., contributions and gifts 14158

INTERSTATE COMMERCE COMMISSION

Proposed Rule Making

Motor common carriers of household goods; practices and released rates 14171

Notices

Fourth section applications for relief 14189

Motor carriers:
- Alternate route deviation notices 14181
- Applications and certain other proceedings 14182
- Intrastate applications 14186
- Temporary authority applications (2 documents) 14179, 14188
- Transfer proceedings 14185

Sea-Land Service, Inc., et al.; hearing 14188

LAND MANAGEMENT BUREAU

Rules and Regulations

Alaska; public land order revoking previous order 14156

NAVY DEPARTMENT

Rules and Regulations

U.S. Naval Academy; procedures and requirements for appointment as midshipman 14139

(Continued on next page)

RENEGOTIATION BOARD

Notices

General Counsel; basic compensation 14179

SMALL BUSINESS ADMINISTRATION

Proposed Rule Making

Size standards; definition of small business for purpose of bidding on Government procurements for classified products, fluid milk 14173

Notices

Managers of disaster field offices; delegations of authority regarding financial assistance functions:
Lockport, Ill 14176
Matteson, Ill 14176

TREASURY DEPARTMENT

See Foreign Assets Control Office; Internal Revenue Service.

List of CFR Parts Affected

(Codification Guide)

The following numerical guide is a list of the parts of each title of the Code of Federal Regulations affected by documents published in today's issue. A cumulative list of parts affected, covering the current month to date appears at the end of each issue beginning with the second issue of the month.

A cumulative guide is published separately at the end of each month. The guide lists the parts and sections affected by documents published since January 1, 1965, and specifies how they are affected.

3 CFR

EXECUTIVE ORDERS:
10472 (revoked by EO 11256) 14137
10937 (revoked by EO 11256) 14137
11255 14135
11256 14137

7 CFR

301 14148
401 14151

13 CFR

PROPOSED RULES:
121 14173

14 CFR

39 (2 documents) 14151, 14152
71 (7 documents) 14152–14154
PROPOSED RULES:
71 (2 documents) 14169, 14170
91 14170

21 CFR

2 14154
121 14155
148e 14155

25 CFR

131 14155

26 CFR

PROPOSED RULES:
1 14158

31 CFR

500 14156

32 CFR

710 14139

43 CFR

PUBLIC LAND ORDERS:
1316 (revoked by PLO 3859) 14156
3859 14156

47 CFR

PROPOSED RULES:
73 14171

49 CFR

PROPOSED RULES:
176 14171
187 14171

50 CFR

33 (2 documents) 14156

Presidential Documents

Title 3—THE PRESIDENT

Executive Order 11255

DESIGNATION OF VIETNAM AND WATERS ADJACENT THERETO AS AN OVERSEAS COMBAT AREA FOR PURPOSES OF ARMED FORCES MAILING PRIVILEGES

Pursuant to the authority vested in me by sections 4169 and 4303 of title 39 of the United States Code, I hereby designate, for the purposes of those sections, as an overseas combat area where the Armed Forces of the United States are engaged in military operations involving armed conflict with a hostile foreign force:

Vietnam, including the waters adjacent thereto within the following described limits: From a point on the East Coast of Vietnam at the juncture of Vietnam with China southeastward to 21° N Lat., 108° 15′ E Long.; thence southward to 18° N Lat., 108°15′ E Long.; thence southeastward to 17°30′ N Lat., 110°45′ E Long.; thence southward to 11° N Lat., 110°45′ E Long.; thence southwestward to 7° N Lat., 105° E Long.; thence westward to 7° N Lat., 103° E Long.; thence northward to 9°30′ N Lat., 103° E Long.; thence northeastward to 10°15′ N Lat., 104°27′ E Long.; thence northward to a point on the West Coast of Vietnam at the juncture of Vietnam with Cambodia.

LYNDON B. JOHNSON

THE WHITE HOUSE,
November 1, 1965.

[F.R. Doc. 65-12174; Filed, Nov. 9, 1965; 11:35 a.m.]

Executive Order 11256

ESTABLISHING THE PRESIDENT'S COMMITTEE ON FOOD AND FIBER AND THE NATIONAL ADVISORY COMMISSION ON FOOD AND FIBER

By virtue of the authority vested in me as President of the United States, it is ordered as follows:

SECTION 1. *Establishment of Committee.* (a) There is hereby established the President's Committee on Food and Fiber (hereinafter referred to as the "Committee").

(b) The Committee shall be composed of the Secretary of Agriculture, who shall be the Chairman of the Committee; the Secretary of State; the Secretary of Commerce; and the Secretary of Labor. Each member of the Committee may designate an alternate member, who shall serve as a member of the Committee whenever the regular member is unable to attend any meeting of the Committee.

SEC. 2. *Duties of the Committee.* (a) The Committee shall:

(1) Appraise existing and alternative agricultural policies and foreign trade policies related thereto in terms of the national interest, the welfare of farmers, workers, consumers, rural Americans, and the general public; their effects on the performance of the economy and on foreign relations; and their implications for the optimum allocation of Federal resources among national objectives; and

(2) Develop such recommendations for action by Government or by private enterprise as it deems most appropriate to advance the general public interest.

(b) Such recommendations shall take into account the final report of the National Advisory Commission on Food and Fiber established by Section 3 of this order, which report shall be transmitted to the President with the recommendations of the Committee.

SEC. 3. *Establishment of Commission.* (a) To assist the Committee in carrying out its functions under Section 2 of this order, there is hereby established the National Advisory Commission on Food and Fiber (hereinafter referred to as the "Commission").

(b) The Commission shall be composed of members appointed by the President. The President shall designate the Chairman of the Commission from among its members.

(c) The Commission shall meet on call of the Chairman.

(d) Each member of the Commission may be compensated for each day such member is engaged upon the work of the Commission, and shall be reimbursed for travel expenses, including per diem in lieu of subsistence, as authorized by law (5 U.S.C. 55a; 5 U.S.C. 73b–2) for persons in the Government service employed intermittently.

(e) The Commission shall have an Executive Director, who shall be designated by the President. Under the direction and supervision of the Chairman, the Executive Director shall direct and supervise staff assigned to assist the Commission in carrying out its responsibilities under this order.

SEC. 4. *Duties of the Commission.* (a) The Commission shall transmit to the Committee its independent analysis, evaluation, and recommendations with respect to all matters assigned to the Committee for study and recommendations.

(b) In carrying out its duties under subsection (a) above, the Commission shall:

(1) Make a comprehensive study and appraisal of the current economic situation and trends in American farming, including productivity, costs, prices, incomes, farm employment, labor standards, foreign trade, and related matters;

(2) Evaluate existing and alternative agricultural policies and foreign trade policies related thereto in terms of the national interest, the welfare of farmers, workers, consumers, rural Americans, and the general public; their effects on the performance of the economy and on foreign relations; and their implications for the optimum allocation of Federal resources among national objectives; and

(3) Develop such recommendations for action by Government or private enterprise as it deems appropriate to advance the general public interest.

(c) The Commission shall submit its final report and recommendations to the Committee no later than eighteen months after the date of its first meeting, and may make any interim reports which it deems would expedite the work of the Committee.

SEC. 5. *Federal departments and agencies.* (a) The Committee or the Commission is authorized to request from any Federal department, agency, or independent instrumentality of the Government any information deemed necessary to carry out its functions under this order; and each department, agency, and instrumentality is authorized, to the extent permitted by law and within the limits of available funds, to furnish such information to the Committee or the Commission.

(b) Each department the head of which is named in Section 1(b) of this order shall, as may be necessary, furnish assistance to the Committee or the Commission in accordance with the provisions of Section 214 of the Act of May 3, 1945 (59 Stat. 134; 31 U.S.C. 691), or as otherwise permitted by law.

(c) The General Services Administration is hereby designated as the agency which shall, on a reimbursable basis, provide administrative services for the Commission.

SEC. 6. *Termination of the Committee and the Commission.* The Committee and the Commission shall terminate ninety days after the submission of the final report of the Commission.

SEC. 7. *Revocation of orders.* Executive Order 10472 of July 20, 1953, and Executive Order 10937 of May 3, 1961, are hereby revoked.

LYNDON B. JOHNSON

THE WHITE HOUSE,
November 4, 1965.

[F.R. Doc. 65-12155; Filed, Nov. 9, 1965; 9:39 a.m.]

Rules and Regulations

Title 32—NATIONAL DEFENSE

Chapter VI—Department of the Navy

SUBCHAPTER C—PERSONNEL

PART 710—PROCEDURES AND REQUIREMENTS FOR APPOINTMENT AS A MIDSHIPMAN AT THE U.S. NAVAL ACADEMY

Revision of Part

Scope and purpose. Part 710 is revised to reflect pertinent provisions of the current U.S. Naval Academy Catalogue.

Subpart A—Eligibility Requirements and Obtaining a Nomination

Sec.
710.11 Summary of requirements.
710.12 General eligibility requirements.
710.13 Obtaining a nomination.

Subpart B—Scholastic Requirements

710.21 General.
710.22 Submission of scholastic record.
710.23 Acceptable scholastic record.
710.24 Examination method.
710.25 College certificate method.
710.26 Qualifying in previous year.

Subpart C—Medical Qualification

710.31 General.
710.32 Medical and physical aptitude examinations.
710.33 Review and waiver procedure.
710.34 Special medical examination considerations.

Subpart D—Entrance Information and Procedures

710.41 Entrance requirements.
710.42 Service obligation for enlisted and other candidates appointed as midshipmen.
710.43 Engagement to serve.
710.44 Foreign students.

Subpart E—Appendices

710.51 Format for requesting a Congressional nomination.
710.52 Format for requesting a Presidential nomination.
710.53 Format for requesting a son-of-deceased veteran nomination.
710.54 Authorized medical examining facilities for Naval Academy medical examinations.

AUTHORITY: The provisions of this Part 710 issued under R.S. 161, sec. 5031, 70A Stat. 278, as amended; 5 U.S.C. 22, 10 U.S.C. 5031. Interpret or apply secs. 651, 6951–6974, 70A Stat. 27, 428–436, as amended, sec. 516, 72 Stat. 1439; 10 U.S.C. 516, 651, 6951–6974.

Subpart A—Eligibility Requirements and Obtaining a Nomination

§ 710.11 Summary of requirements.

Candidates for admission to the Naval Academy must:

(a) Meet general eligibility requirements.

(b) Obtain a nomination.

(c) Qualify scholastically.

(d) Qualify medically.

§ 710.12 General eligibility requirements.

(a) *Citizenship.* All candidates for admission to the U.S. Naval Academy must be male citizens of the United States, except as provided by law for limited numbers of male citizens of other American Republics and the Philippine Republic.

(b) *Age.* Candidates must be at least 17 and not have passed their 22d birthday on July 1 of the year of admission.

(c) *Marriage.* Candidates must never have been married. Any midshipman who marries will be discharged from the Academy.

(d) *Moral character.* Candidates must be of good moral character.

§ 710.13 Obtaining a Nomination.

(a) *General.* It is necessary for a young man to obtain a nomination in order to be considered for appointment to the Naval Academy. The sources of nominations are described in this section. The applicant should study carefully the various sources to determine those through which he is eligible to apply. College Board test results taken for purposes of qualifying for the Naval Academy apply to all nominations a candidate may hold.

(b) *Types and sources of nominations*—(1) *Congressional.* Each Senator, each Representative, and the Resident Commissioner of Puerto Rico individually may have a maximum of five midshipmen attending the Naval Academy at any one time. The applicant should address his request directly to the official concerned. Eligibility for congressional nominations is restricted by law to the two Senators from an individual's home State and to the Representative of the congressional district in which he lives. A sample letter of application is included in § 710.51.

(2) *Vice Presidential.* The Vice President may have a maximum of five midshipmen attending the Naval Academy at any one time. He may nominate candidates from the United States at large. A letter requesting nomination should be addressed directly to the Vice President. It should contain the same information required of a congressional applicant.

(3) *District of Columbia.* The Commissioners of the District of Columbia may have a maximum of five midshipmen attending the Naval Academy at any one time. Applications should be made directly to the Commissioners of the District. A letter requesting nomination from the Commissioners should contain the same information required of a congressional applicant.

(4) *The Governors of Puerto Rico and the Canal Zone.* The Governors of Puerto Rico and the Canal Zone each may have one midshipman attending the Naval Academy at any one time. Applications to these nominating authorities should contain the same information required of congressional applicants.

(5) *The Governors of the Virgin Islands, Guam, and American Samoa.* The Governors of the Virgin Islands, Guam, and American Samoa may collectively have one midshipman attending the Naval Academy at any one time. Applications to these nominating authorities should contain the same information required of congressional applicants.

(6) *Presidential.* The President may appoint 75 midshipmen each year. These appointments are limited by law to the sons and adopted sons of officers and enlisted personnel of the Regular Army, Navy, Air Force, Marine Corps, and Coast Guard on active duty, retired, or deceased, but not discharged before retirement or death. Adopted sons to be eligible must have been adopted prior to their 15th birthday. The Secretary of the Navy is authorized to approve waivers of this policy where adoption proceedings had been initiated but the adoption had not occurred prior to the 15th birthday through circumstances beyond the control of the foster parents. Stepsons are not eligible. Applications should be addressed to the Chief of Naval Personnel, Navy Department, Washington, D.C., 20370. A sample letter of application is included in § 710.52.

(7) *Regular Navy and Marine Corps.* The Secretary of the Navy may appoint 85 enlisted men of the Regular Navy and Marine Corps to the Naval Academy each year. These men must meet all of the entrance requirements and may not have passed their 21st birthday as of July 1 of the year of entrance to the Naval Academy. Applicants must have enlisted before in the Navy or Marine Corps on or before July 1 of the year preceding the desired date of entrance to the Naval Academy. All applicants must attend the U.S. Naval Preparatory School in order to compete for these appointments. Since the selection of candidates for this school begins in the spring, enlisted men who fulfill the age and service requirements should make their desires known to their commanding officers as early in the year as possible. Recruits enlisted prior to July 1 are eligible and encouraged to apply for consideration for this program.

(8) *Naval Reserve and Marine Corps Reserve.* The Secretary of the Navy may appoint 85 enlisted men of the Naval Reserve and Marine Corps Reserve each year. These men must be qualified as to age and must have served in the Reserve for at least 1 year by July 1 of the year of entrance to the Naval Academy. In addition to all other normal requirements for appointment, these men must be on active duty, or must be members of a drilling unit of the Reserve, be recommended by their commanding officers, and have maintained efficiency in drill attendance with their

Reserve units. Midshipmen USNR of the Regular NROTC Program and members of the Aviation Cadet Program are not eligible for appointment under this quota. For further information about enlistment in the Naval Reserve or Marine Corps Reserve, applicants should apply to their nearest Navy or Marine Corps Recruiting Station.

(9) *Sons of deceased veterans.* The President may have a maximum of 40 midshipmen, who are the sons of deceased veterans, attending the Naval Academy at any one time. Eligibility for nomination under this quota is confined to sons of members of the Armed Forces of the United States who were killed in action or have died of wounds or injuries received, or disease contracted, or preexisting injury or disease aggravated, in active service during (1) World War I or World War II (as each is defined by law in providing service-connected compensation or pension benefits for veterans of World War I or World War II and their dependents); or (2) the Korean conflict beginning June 27, 1950, and ending January 31, 1955. The determination in each case of the Veterans' Administration as to the service connection of the cause of death is binding upon the Secretary of the Navy. A sample letter of application is included in § 710.53.

(10) *Honor naval and military schools.* The Secretary of the Navy may appoint annually 10 honor graduates of educational institutions designated as "honor schools" by the Department of the Army, Navy, and Air Force. Each such school may nominate three honor graduates to compete for the appointments. Included in the three may be students who are expected to be honor graduates in June of the year in which the examinations will be held. However, these nominees will not be considered for appointment unless they subsequently fulfill the requirements enabling them to be honor graduates at the time of their graduation. Eligible students should apply to the heads of their schools for nomination.

(11) *Naval Reserve Officers' Training Corps (contract students only).* The Secretary of the Navy may appoint 10 midshipmen annually from among members of the Naval Reserve Officers' Training Corps. Three candidates may be nominated each year by the president of each educational institution in which an NROTC unit is established. Each candidate must be a regularly enrolled contract student in the NROTC and must have completed 1 year of scholastic work in the Corps at the time of entrance to the Naval Academy. Students should request a nomination from their professor of naval science.

(12) *Sons of Medal of Honor winners.* The sons of persons awarded the Medal of Honor may be appointed, provided they are in all other respects qualified. No recommendation or endorsement from any source is required. Applications for these appointments should be addressed to the Chief of Naval Personnel, Navy Department, Washington, D.C., 20370.

(c) *Qualified alternates and competitors.* The Secretary of the Navy is authorized to appoint 150 qualified congressional alternates. These appointments are awarded to the best qualified alternates as recommended by the Academic Board of the Naval Academy. Additional appointments from qualified alternates and competitors may be made by the Secretary to bring the Brigade of Midshipmen to its authorized strength. If these additional appointments are necessary, at least 75 percent must be selected from congressional nominees. The remainder may be made from non-congressional sources. The qualifications of all qualified alternate and competitive candidates will be carefully evaluated. No special application for these appointments by the individual is necessary or desired.

(d) *Foreign students*—(1) *Republic of the Philippines.* On behalf of the President of the United States, the Secretary of the Navy is authorized to permit up to four Filipinos at a time to receive instruction at the Naval Academy. Applications for these appointments must be addressed through diplomatic channels. The appointments are on a competitive basis.

(2) *American Republics other than the United States.* Upon designation by the President of the United States, the Secretary of the Navy is authorized to permit up to 20 persons at a time from foreign American Republics to receive instruction at the U.S. Naval Academy. Not more than three persons from any one Republic may receive instruction at the same time. Applications for these appointments must be addressed through appropriate diplomatic channels. The appointments are on a competitive basis.

(e) *Nominating methods*—(1) *Congressional.* Members of Congress may nominate by either of the following methods:

(i) *Principal-alternate method.* The Congressman may nominate one principal candidate and five alternate candidates listed in order of his preference. If the principal candidate meets the eligibility criteria and qualifies on the entrance examinations, he will be offered the appointment. If he does not, the next designated alternate candidate who qualifies will be chosen.

(ii) *Competitive method.* In evaluating candidates for the Congressman, the Academy analyzes the "whole man," assigning appropriate weighted values to several factors, including examination scores, previous academic work, extracurricular activity, participation in sports, the holding of class office, and the recommendations of principals and teachers. The candidate with the best composite score is offered the appointment.

(2) *Other categories.* (i) The choice between the Principal-Alternate and Competitive Methods is also available to the District Commissioners and the Governors of Puerto Rico and the Canal Zone. The Governors of the Virgin Islands, Guam, and American Samoa must nominate by the Competitive Method in selecting the nominee for their one common appointment.

(ii) *Candidates are selected for appointment on a strictly competitive basis from nominees entered in the several service-connected categories:* Presidential, Sons of Deceased Veterans, Regular and Reserve Components, Honor Military and Naval Schools, and NROTC. Factors considered in the competition are the same as those discussed in the Competitive Method "whole man" analysis used for the evaluation of congressional condidates. There is no limit on the number of eligible candidates who may compete in the Presidential, Sons of Deceased Veterans, or Regular and Reserve categories.

(f) *Nominating schedule.* A candidate is adyised to apply early for nomination. If seeking a congressional nomination, it is particularly important to apply early, *preferably during the spring of the junior year in high school.* Senators and Representatives may submit the names of their nominees any time between July 1 of one year and January 31 of the next year for the class entering in June of the latter year. A majority of them will make their selections for nomination early in this period. It is, of course, too late to apply once the Congressman has selected his quota of nominees. In any case, all nominations from all sources must be received by the end of January for the class entering in June of that year.

(g) *Civil Service Commission examinations for Congressional nominations.* Some Congressmen and other authorized nominators utilize competitive examinations of the U.S. Civil Service Commission to assist them in evaluating and selecting their candidates. These special competitive examinations do not determine the candidate's scholastic qualifications for admission to the Naval Academy. The Naval Academy requirements must still be met fully.

Subpart B—Scholastic Requirements

§ 710.21 General.

A candidate's previous academic record and his performance on specified College Entrance Examination Board Tests are the factors used to determine scholastic qualification for admission. The results of any College Board Test taken to qualify for the Naval Academy are applicable to all nominations which a candidate may hold. There are two methods of qualifying scholastically for admission to the Naval Academy: the Examination Method and the College Certificate Method. These two methods are described in §§ 710.24 and 710.25.

§ 710.22 Submission of scholastic records.

(a) *Records of completed courses.* Each candidate is responsible for insuring the submission of detailed records of his completed high school, preparatory school, and college work and lists of any current or proposed courses. The official college transcript should be used for submitting college records.

(b) *Forms and recommendations.* Official forms for submitting high school records will be provided by the Navy Department following receipt of the nomination from the Member of Congress or other authorized appointment source. These certificates should be filled out and submitted to the Naval Academy by the school or schools as soon as practicable after receipt. It is important to each candidate that records be supplied promptly and that previous school records include academic marks, class standing or estimated class standing through the first semester of the final year. In the event that class standing for the end of the junior year is the latest available, it will be acceptable. Recommendations from the candidate's high school principal, teachers, extracurricular advisers, and coaches should be furnished on the forms provided. These records and recommendations will be considered in conjunction with the test results in order to establish the priority of qualified candidates in the various competitive lists and for the purpose of selection under the qualified alternate law. They must be received not later than March 15.

(c) *Order of precedence.* It must be appreciated that, except for qualified congressional principals and qualified sons of Medal of Honor holders (who receive outright appointments), all candidates who have succeeded in qualifying scholastically, medically, and physically must be evaluated and arranged in order of precedence. The method utilized by the Academy to determine the relative merit of these qualified candidates is the identical "whole man" analytical process described previously under the Competitive Method in § 710.13(e)(1)(ii).

(d) *Master list.* Once candidates have been fully evaluated and assigned an appropriate numerical selection score, and their names placed on a master list in order of their scores, their relative positions on the list do not change. Thus the single master list serves to determine a candidate's relative position on any competitive list for which he is eligible.

§ 710.23 Acceptable scholastic record.

(a) *Secondary school certificate.* Each candidate must present an acceptable secondary school certificate from an accredited secondary school, or its equivalent, including at least 15 units of credit in college preparatory subjects and indicating ability to do college-level work successfully. While not an absolute requirement, standing in the top 40 percent of one's high school class is of great importance in determining qualification for admission. (The great majority of midshipmen come from the top 20 percent of their high school classes.) Candidates should, insofar as is practicable, include as many as possible of the following studies in their secondary school programs:

(1) At least 3 years but preferably 4 years of mathematics, including the elements of advanced algebra, geometry, and trigonometry.

(2) Four years of English.

(3) Two years of a foreign language, preferably modern.

(4) One year of chemistry.

(5) One year of physics.

(b) *Recommendation of high school principal.* It is expected that the secondary school official will recommend only those candidates who, in his opinion, have excellent character and the scholastic background needed to pursue a difficult course of college level in which the emphasis is placed on engineering subjects as well as the humanities.

(c) *Compensating for deficiencies.* Deficiences in the secondary school certificate can often be offset by offering acceptable college work. Conversely, evidence of inability to do acceptable college work can be cause for disqualification.

§ 710.24 Examination method.

(a) *Basic method.* The basic method of qualifying is by presenting an acceptable secondary school certificate and by scoring acceptably in the scholastic entrance examination consisting of the administration of the following tests of the College Entrance Board: The Scholastic Aptitude Test (Verbal and Mathematics sections), the English Composition Test, and either the Level I (Standard) or Level II (Intensive) Mathematics Achievement Test. It is the candidate's responsibility to insure that he takes these required tests. No substitute will be considered in qualifying for entrance to the U.S. Naval Academy.[1]

(b) *Tests.* Tests must be taken during the school year preceding admission. Candidates are encouraged to choose the mathematics achievement test on which they feel they can attain the higher score. Level I is recommended for candidates without advanced high school mathematics. No additional weight is given to the results of the test in Level II Mathematics over those in Level I Mathematics.

(c) *Qualifying scores.* Basic qualifying scores in the College Entrance Examination Board Tests for any class will be determined by the Academic Board of the Naval Academy. No candidate will be admitted to the Naval Academy unless in the opinion of the Academic Board he shows the requisite scholastic qualifications.

(d) *Candidate's responsibility for registering.* Each candidate is responsible for registering with the College Entrance Examination Board for the tests. The Naval Academy will accept scores from the December, January, and March administrations given during the year immediately preceding admission and will credit a candidate with the highest scores achieved. Candidates must pay for their own College Board Examinations. A candidate who is unable to pay for such tests should promptly advise the College Board so that special arrangements may be made.

(e) *Information bulletin.* General information on the tests, including dates of administration, location of testing center, dates by which candidates must register, method of application, fees, etc., is published in a booklet entitled "Bulletin of Information." This booklet, published annually by the College Board, may be obtained without charge by writing to:

The College Entrance Examination Board at Post Office Box 592, Princeton, N.J., 08540, or P.O. Box 1025, Berkeley, Calif., 94701.

(f) *Description of tests.* In addition to the above-mentioned "Bulletin," the College Board publishes two booklets, one entitled "A Description of the College Board Scholastic Aptitude Test" and one titled "A Description of the College Board Achievement Tests." Supplies of these two booklets are provided by the College Board to all high schools. Candidates can obtain the booklets from their high schools or may write to the College Board for individual copies free of charge.

(g) *Examining points.* For the majority of candidates, the examining points are in the communities in which they live. It is expected that few, if any, candidates will have to travel more than 75 miles.

(h) *Candidates unable to take tests.* Duly nominated candidates who have registered for and are unable to take the December, January, or March administrations because of sickness, injury, weather, or other extenuating circumstances should promptly advise the Chief of Naval Personnel.

§ 710.25 College certificate method.

(a) *Requirements.* A candidate who holds a nomination as a Congressional, District of Columbia, or Vice Presidential principal or alternate or who is seeking admission as the son of a Medal of Honor winner may fulfill the scholastic requirements for admission by submitting an acceptable secondary school certificate and an acceptable college certificate. He is also required to take the College Board Tests specified in § 710.24 for the information of the Naval Academy. A candidate competing under any other source of nomination than those outlined in this paragraph must qualify by the Examination Method. This includes all Congressional candidates being evaluated by the Competitive Method. All candidates using College Certificate Method should advise the Dean of Admissions, U.S. Naval Academy, of their intent to do so by letter.[2]

(b) *Definition of "acceptable college certificate."* An acceptable college certificate is one attesting at least 1 year's attendance at an accredited junior college, college, university, or technical institution of college grade during which the candidate completed courses totaling at least 24 semester hours of credit for

[1] For the class entering in June 1966, the dates of administrations of the College Entrance Board tests are Dec. 4, 1965, Jan. 8, 1966, or Mar. 5, 1966. The Level II Test of the Mathematics Achievement Test is offered on Jan. 8, 1966, only.

[2] For the class entering in June 1966, the Dean of Admissions should be advised by letter prior to Mar. 15, 1966.

subjects acceptable to the Naval Academy with grades substantially better than the college minimum passing grade. Six semester hours must be in pure mathematics, such as college algebra, trigonometry, analytical geometry, calculus, etc., and 6 semester hours must be in English or history, or a combination English or history, or a combination thereof. The remaining credits necessary to complete the certificate may be offered from a wide range of college liberal arts or engineering subjects. The overall quality of the college record must be acceptable to the Naval Academy.

(c) *Length of college attendance.* The length of college attendance prescribed is defined as requiring actual full-time attendance for one regular school year during which the candidate pursues courses constituting a normal year's load.

(d) *Action prior to completion of year of college.* A candidate who contemplates qualifying by the College Certificate Method but who has not completed the required year of college at the time of receipt of his nomination should have his high school record and a preliminary college record submitted showing the courses contemplated or in progress and the amount of credit in semester hours to be assigned for each course. A form for submitting the high school record will be provided by the Navy Department. The official transcript form of the college should be used for submitting the college record. An early review of the record of completed work and of courses proposed for completion may reveal defects which can be corrected by slight changes in the final semester schedule. The certificate action reports issued by the Naval Academy indicate steps which the candidate should take. However, if in doubt, a candidate should address a letter to the Dean of Admissions, U.S. Naval Academy, Annapolis, Md.

§ 710.26 Qualifying in previous year.

Former midshipmen who have successfully completed the first year of the Naval Academy's course need not requalify scholastically for admission, but they must demonstrate to the satisfaction of the Academic Board that they are qualified for readmission. All other former candidates must requalify scholastically and medically for the class to which they seek admission.

Subpart C—Medical Qualification

§ 710.31 General.

(a) *Authorization.* The Chief of Naval Personnel, Navy Department, Washington, D.C., 20370, will send to each duly nominated candidate an authorization designating the time and place of medical examination. Medical examinations are conducted at some 70 Navy examining centers and at specified examining centers of the Army and Air Force, located throughout the United States. One standardized medical examination is being given at all designated examining centers. (See listing of these centers in § 710.54.)

(b) *Time limits.* Examinations are conducted starting on July 1 of the year preceding the year of admission. A final decision on the medical eligibility of each candidate must be reached by March 15 the year of entry.

(c) *General requirements.* Candidates are required to be physically fit, well formed, and of sound constitution. The medical requirements are exacting, thus protecting the best interests of the Government, the Navy, and the individual.

(d) *Examination by private physician.* All condidates are encouraged to undergo thorough medical and dental examinations by a private physician using the Medical Examination Considerations set forth in this subpart as a guide in determining their medical and dental condition before pursuing nomination and before taking the qualifying medical examination. This will serve to identify obviously disqualified applicants or those who may have remediable defects which must be corrected at the candidates' expense. The candidates who are obviously disqualified will benefit themselves and the U.S. Government by not pursuing candidacies further. All candidates are advised to carry sun glasses for use after the eye examination.

(e) *Reference.* Specific information concerning medical and physical requirements follows in §§ 710.32 to 710.34 and 710.54.

§ 710.32 Medical and physical aptitude examinations.

(a) *Qualifying medical examination.* The Naval Academy Qualifying Medical Examination determines a candidate's medical status for admission to the Academy. Members of Congress may authorize a Naval Academy Medical Examination for an applicant at the authorized medical examining facilities to determine his medical qualification. This examination will be considered a final Naval Academy Qualifying Medical Examination. Thus, it will not be necessary for a formally nominated candidate to return to a medical examining facility for further medical examination. Candidates who have a Qualifying Medical Examination on file taken since July 1 of the year preceding the year in which entering the Naval Academy will be required to take only the Physical Aptitude Examination. Formally nominated candidates to the Naval Academy are required to satisfactorily complete a Physical Aptitude Examination which is in conjunction with the Qualifying Medical Examination. This examination includes a series of exercises designed to determine coordination, strength and endurance of the body musculature. Included are sit-ups, pull-ups, arm hang, and a squat walk exercise. It also includes a battery of tests which will bring out disqualifying orthopedic defects such as shoulder, knee, or other malfunctions. Failure to pass any part of this examination will be cause for rejection.

(b) *Shorts and supporter.* When reporting for Medical and Physical Aptitude Examination, candidates are required to have suitable shorts and supporter for use when undergoing the Physical Aptitude Examination.

(c) *Delay in taking examination.* Candidates who are ordered to report for Medical and Physical Aptitude Examination and who are unable to take the Physical Aptitude Examination at that time will be required to produce substantiating medical evidence. Insufficient evidence will be cause for their disqualification. Formally nominated candidates who are injured or ill for any reason and unable to comply with instructions to report for Medical and Physical Aptitude Examination are required to communicate with the Chief of Naval Personnel and the scheduled examining facilities to explain the circumstances of the injury or illness before further examination or delay in examination will be authorized. Candidates who have undergone major surgery involving knee, ankle, shoulder, elbow, wrist or spine will *Not* be scheduled for examination until six months have elapsed following surgery.[2] Medical and Physical Aptitude Examinations will terminate as indicated in the note to this paragraph.[2] Injury and surgical cases will not be considered after this date. Candidates having orthodontic appliances in place will be required to have them removed prior to reporting for Qualifying Medical Examination.

(d) *Time and place.* While candidates may be scheduled for Medical and Physical Aptitude Examinations at Army, Navy, and Air Force facilities, the major portion of Naval Academy candidates will be scheduled for examination at naval medical examining facilities. Candidates examined at naval medical examining facilities will normally be required to spend one day under examination. Candidates are to report prior to 7:30 a.m. on the day of examination except as otherwise directed in reporting orders. Candidates ordered to Army and Air Force examining centers will be required to spend at least two days to complete examinations.

(e) *Limitations.* Candidates are required to pay their own transportation, berthing and necessary expenses in connection with these examinations. Only one Medical and Physical Aptitude Examination will be authorized for any candidate. Reexamination will not be authorized except as required by the Chief of Naval Personnel.

§ 710.33 Review and waiver procedure.

(a) *Finality.* The results of all medical examinations of candidates for the Naval Academy are subject to review by the Permanent Board of Medical Examiners, U.S. Naval Academy. Medical qualification decisions made by the Board are final. In this respect, where the disqualifying defect is subject to

[2] For the class entering in June 1966, medical and physical aptitude examinations terminate on Mar. 15, 1966.

medical or dental correction, the candidate may be conditionally rejected subject to later certification by a registered physician or dentist that the defect has been corrected with complete restoration of function. It is mandatory that such certification reach the Permanent Board of Medical Examiners as soon as possible and not later than March 15 in any case. Final reports of applicants certified by that Board will be distributed to Chief of Naval Personnel, Chief, Bureau of Medicine and Surgery, and the Academic Board, U.S. Naval Academy. The Academic Board may grant waiver of a very minor defect to a candidate who is outstanding in all other respects.

(b) *Waiver.* Since waiver action is predicated upon the overall quality of a candidate's record, it is important that transcripts of secondary school or college work, the report of extracurricular activities, and the required letters of recommendation be submitted as soon as possible. In some instances it will be necessary to delay evaluation of a record until results of the March College Board tests have been received. It is emphasized that review and waiver procedures are automatic for all candidates who were found not medically qualified upon formal Qualifying Medical Examination and that queries regarding the status of waiver action will only delay final determination. Notification of Medical and Physical Aptitude Disqualification will be made to all candidates by the Chief of Naval Personnel. Requests for reexamination of those candidates who fail the medical examination can be approved only by the Chief of Naval Personnel and only under extremely extenuating circumstances.

§ 710.34 Special medical examination considerations.

The following special medical examination considerations are listed in order that candidates, prospective candidates, and their private physicians and dentists may have the basic medical requirements for entrance to the Academy readily available.

(a) *Medical history.* The medical history will be compiled with particular care with elaboration where indicated. Inquiries will be made in detail concerning all illnesses, injuries, and operations which the candidates may have incurred. Failure to fully document these items results in disappointment when medical disqualification is determined later. A history of familial diseases will be investigated with thoroughness. If the candidate has received medical care which significantly affects his physical status he will be required, whenever practicable, to submit evidence from attending physicians or from hospital records concerning this medical care. A candidate who has defects which are remediable, including dental defects, should have them corrected prior to taking the Naval Academy Qualifying Medical Examination.

(b) *Weight standards.*

Height (inches)*	64	65	66	67	68	69	70	71	72	73	74	75	76	77	78
Weight (pounds):															
Minimum	112	116	120	124	128	132	136	140	144	148	152	156	160	164	168
Maximum	160	165	170	175	181	186	192	197	203	209	214	219	225	230	235

*Waiver for height up to 80 inches may be granted to a limited number of candidates with exceptional scholastic and leadership achievements.

These weight standards are necessarily arbitrary. Waiver may be granted in unusual cases under circumstances as follows: When a generally large bony structure and large well-distributed and proportioned muscle masses with little evidence of thick layers of subcutaneous fat account for the apparent excessive weight, exception to the standards may be granted by the Permanent Board of Medical Examiners at the Naval Academy or recommendation may be made by the Board of Medical Examiners to the Academic Board at the Naval Academy for waiver. Likewise, when weight is under the prescribed standards, if the skeletal structure is relatively slight but muscle development and strength is excellent, as manifested by demonstrable performance of physical aptitude tests and history of athletic participation, similar action may be taken.

(c) *Eyes and vision.* A cycloplegic refraction is required on all prospective nominees and candidates. Unaided visual acuity of 20/20 is required. In all cases the actual vision of each eye and the correction lens, if required, must be reported. Any tropia is disqualifying. Both eyes must be free from any disfiguring or incapacitating abnormality and from acute or chronic disease. Candidates wearing contact lenses will remove them at least 36 hours prior to reporting for medical examination. Normal color perception is required. Results of color tests will reflect the name of the test, the number of plates correctly read, and the number of plates in the test; i.e., 14/17. Use of Farnsworth Lantern is required where available. (Waivers for visual acuity up to 20/40, correctable to 20/20, may be granted to a limited number of candidates with exceptional scholastic and leadership achievements.)

(d) *Ears and hearing.* Auditory acuity of all candidates will be determined by audiometer if available. Whispered voice at 15 feet right and left ear is acceptable if audiometric equipment is not available.

Frequency	{500 {512	1000 1024	2000 2048	3000 2896	4000 4096	8000 8192
Maximum loss (in decibels):						
Better ear	15	15	15	35	(1)	(1)
Worse ear	15	15	15	35	(1)	(1)

[1] Record for baseline information only.

Both ears must be free from any disfiguring or incapacitating abnormality and from acute or chronic disease.

(e) *Nares.* Septal deviation, hypertrophic rhinitis, or other conditions which result in 50 percent or more obstruction of either airway, or which interfere with drainage of a sinus on either side, are causes for rejection.

(f) *Skin.* Chronic skin diseases such as severe acne or eczema or unsightly congenital markings are cause for disqualifications. Pilonidal sinus, if evidenced by presence of mass or discharging sinus, is cause for rejection.

(g) *Heart and vascular system.* An electrocardiogram is required of all candidates. The following conditions are either not acceptable or require extensive medical workup: All organic vascular diseases of the heart, including those improved by surgery; EKG evidence of variations from normal heart beat; hypertension evidenced by predominant blood pressure reading of 140 mm or more systolic or 90 mm or more diastolic; varicose veins if severe or symptomatic; heart rate greater than 100 on repeated examinations; substantiated history of rheumatic fever within the previous 2 years, recurrent attacks of rheumatic fever or evidence of residual cardiac damage; history of recurring rapid heart beat within the preceding 5 years.

(h) *Serologic tests.* A serologic test for syphilis is performed on all candidates. An authentic history of syphilis of any type is cause for rejection without further laboratory procedure.

(i) *Genitourinary system.* Persistent albuminuria of any type or the persistence of casts in the urine will be cause for rejection, even though the etiology cannot be determined. Other causes for rejection: phimosis; epispadias or pronounced hypospadias; atrophy, deformity, or maldevelopment of both testicles; or undescended testicles of any degree. Bed wetting persisting into late childhood or early adolescence is cause for rejection.

(j) *Neurological examination.* A history of motion sickness (i.e., air, sea, swing, train, or carnival ride) should be thoroughly investigated. A history of head injury resulting in unconsciousness must be completely evaluated and an electroencephalogram is required. Investigate for degenerative disorders; these are not acceptable. Neither is established migraine.

(k) *Asthma.* Asthma by diagnosis or history since age 12 is cause for rejection.

(l) *Abdominal wall examination.* If physical findings include hernia of any type, candidate is disqualified until corrected; history of operation for hernia within past 60 days is disqualifying. Other abnormal diseases and conditions which are not acceptable include stomach or small bowel ulcer or history of

same; acute or chronic gall bladder disease; history of removal of the spleen for reason other than trauma.

(m) *Miscellaneous medical findings of significance that are not acceptable unless remedied.* Deviated nasal septum resulting in greater than 50 percent obstruction to either airway or obstruction to the drainage of any sinus; obesity, even though the candidate's weight is within the maximum shown in the height-weight table; and acute communicable diseases, until recovery.

(n) *Miscellaneous medical findings that are disqualifying.* Anemia; abnormal bleeding states; diabetes mellitus or history of diabetes in both parents; persistent sugar in urine regardless of cause; ununited fractures; history of surgery to a major joint within past 6 months; history of derangement of knee joint not corrected by surgery, or evidence of instability subsequent to surgery; total loss of either thumb; tuberculosis, active in past 5 years; hay fever, if severe, or having undergone desensitization therapy during past 3 years prior to examination; nasal polyps; personality disorders; symptomatic immaturity disorders such as stammering or stuttering; arthritis; and herniated nucleus pulposus or history of operation for this condition.

(o) *Dental standards.* A candidate for appointment must have a minimum of 16 natural permanent teeth, of which a minimum of 8 must be in each arch. All missing teeth causing unsightly spaces or significantly reducing masticatory or incisal efficiency must be replaced by well-designed bridges or partial dentures which are in good condition. Except for minor or questionable carious areas, all required dental treatment must be completed. Disqualifying defects are as follows:

Lack of satisfactory incisal or masticatory function.

Failure to have a minimum of 8 natural permanent teeth in each arch.

Edentulous spaces which are unsightly or which significantly reduce masticatory function.

Carious teeth, except minor or questionable carious areas. Infectious or chronic diseases of the soft tissue of the oral cavity. Marked malocclusion resulting in severe dentofacial deformity. Orthodontic appliances attached to teeth for continued orthodontic treatment (retainer appliances are permissible).

Unsatisfactory restorations, bridges, or dentures. Severe or extensive apical or periodontal infection. Perforations from the oral cavity into the nasal cavity or maxillary sinus.

Tumors or cysts of the oral tissues which require treatment or may require treatment in the foreseeable future.

Subpart D—Entrance Information and Procedures

§ 710.41 Entrance requirements.

(a) *General.* Candidates for whom there are vacancies, who have subscribed to the "Engagement to Serve" and who have met the scholastic, moral, and physical requirements will receive appointments as midshipmen and be admitted to the Naval Academy.

(b) *Loyalty certificate.* In keeping with the policy of the Department of Defense and as directed by the Secretary of the Navy, candidates for appointment as midshipmen are required to execute a loyalty certificate. The purpose of this certificate is to aid in determining whether the candidate's conduct or associations, past or present, have been such as to cast any doubt whatever upon his loyalty to the Government of the United States. The loyalty certificate includes a list of those agencies, groups, etc., designated by the Attorney General of the United States to be totalitarian, fascist, communist or subversive, or as having adopted a policy of advocating or approving the commission of acts of force or violence to deny persons their rights under the Constitution of the United States. The admission of conduct or association, past or present, within the purview of acts as defined in the certificate, or association with any of the groups or organizations designated by the Attorney General, shall preclude appointment pending investigation and determination of eligibility by the Department of the Navy. False representation, or failure fully to disclose conduct or associations defined in the certificate shall constitute grounds for trial before a general court-martial with possible consequent conviction and imprisonment, or for separation from the naval service under conditions other than honorable, with or without any preceding court-martial procedure.

(c) *Oath.* Each candidate for midshipman will be required to take the following oath of office upon entrance:

I, _____, of the State of _____ aged _____ years _____ months, having been appointed a midshipman in the United States Navy, do solemnly swear (or affirm) that I will support and defend the Constitution of the United States against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; that I take this obligation freely, without any mental reservation or purpose of evasion; and that I will well and faithfully discharge the duties of the office on which I am about to enter; So Help Me God.

He will also be required to subscribe to the following under oath:

For and in consideration of the privileges, opportunities, and benefits afforded me during the continuance of my service as a midshipman, I agree to and with the Superintendent of the U.S. Naval Academy, as follows:

First: To enter the service of the Navy of the United States and to the utmost of my power and ability to be in everything conformable and obedient to the several requirements and lawful commands of the officers who may be placed over me.

Second: I oblige myself, during such service, to comply with and be subject to the Uniform Code of Military Justice and such other laws and regulations as are or shall be established by the Congress of the United States or other competent authority.

Third: To submit to treatment for the prevention of smallpox, typhoid (typhoid prophylaxis), and to such other preventive measures as may be considered necessary by naval authorities.

(d) *Timing of arrival.* Candidates are usually sworn in as midshipmen on the day they are accepted for admission, i.e., the date of reporting at the Naval Academy as designated in the authorization to report issued by the Bureau of Naval Personnel. Due to limited living accommodations in the city of Annapolis, candidates are urged to time their arrival at Annapolis to coincide as closely as possible with the reporting date, keeping in mind, however, that transportation facilities between Washington and Baltimore and Annapolis are not unlimited. Those arriving in Annapolis a day or two prior to their reporting date may take advantage of berthing and messing facilities usually made available in the Naval Academy at a cost of $1 per night. Additionally, candidates may take their meals in the Midshipmen's Mess at a cost equal to the cost of a midshipman's daily ration allowance.

(e) *Deposit.* Before being admitted as a midshipman, each candidate must deposit with the midshipmen's storekeeper the sum of $300, to be used in part payment to cover cost of uniforms, clothings, etc. In cases of extreme hardship this sum may be reduced to $100 in which case money allowances for the individual will be reduced until the individual account reaches prescribed levels. The amount deposited is not refunded, but is expended for entrance outfit, clothing, uniforms, etc., which become the property of the midshipman.

(f) *Pay.* The pay of the midshipman is $1767.60 a year, commencing at the date of his admission. Its purpose is to permit him to cover his expenses; i.e., uniforms, books, equipment, laundry, income tax, etc., while at the Naval Academy.

(g) *Uniforms and equipment.* The regulation entrance outfit, plus the additional uniforms, clothing, textbooks, and expenses required the first year, are valued at approximately $1,600. The deposit made at the time of entrance is supplemented by an entrance credit of $600 upon first admission to the Naval Academy. The $600 credit is an interest-free loan advanced by the Government to defray the cost of the uniforms and equipment required during the first year. Repayment of the indebtedness is accomplished by monthly deductions of $20 from the midshipman's pay, beginning in October of the second year at the Naval Academy and continuing until the indebtedness is liquidated. Midshipmen who are involuntarily separated from the Naval Academy prior to repayment of the entrance credit, are required to turn in all articles of uniform and equipment deemed suitable for reissue, to an amount sufficient to liquidate the indebtedness. If reclaimed articles are insufficient to cover the indebtedness, parents will be given an opportunity to liquidate the remaining debt; failing this, the remainder of the debt is canceled. Midshipmen applying for voluntary separation for their own convenience are required to repay in full the amount of indebtedness prior to such separation.

(h) *Social Security card.* Every candidate must present his Social Security card upon reporting for appointment.

If an individual has not obtained a Social Security number as a result of work experience prior to entering, he should obtain one based on the strength of expected employment as a midshipman.

(i) *Statement of Personal History.* Shortly after entrance, each midshipman (except Foreign Nationals) will be required to complete a Statement of Personal History. Candidates should be prepared to furnish such information as:

Names and locations of all schools attended.

Family names, dates and places of birth of parents, service data if parents are or were in Armed Forces, naturalization numbers of parents if applicable.

Relatives in Foreign Countries—relationship and location.

Names and addresses of former employers.

Names and addresses of three credit and five personal references. (Credit references may be those of parents.)

Residences during past 15 years. (Dates street addresses, cities, required.)

(j) *Birth certificate.* Candidates admitted as midshipmen will be required to submit evidence of birth to the Superintendent, U.S. Naval Academy, for transmission to the Bureau of Naval Personnel upon admission, or as soon as practicable thereafter. A certified copy of the public record of birth is the best evidence. Supporting evidence will be required if the name on the evidence of birth is not identical with the name being used.

(k) *Regulation entrance outfit.* Upon entrance, midshipmen will be required to obtain from the midshipmen's storekeeper a regulation entrance outfit. Slide rules and drawing sets are furnished as part of the outfit. Candidates are advised, therefore, not to purchase these items prior to entering the Academy.

(l) *Travel and transportation allowances.* After being admitted to the Naval Academy, midshipmen receive travel and transportation allowances as prescribed in "Joint Travel Regulations" (ordinarily, mileage allowance of 6 cents per mile for authorized travel). This reimbursement will be paid to the midshipman. Reimbursement will be made for the actual cost of passage fares on commercial vessels if sea travel is involved and provided no Government transportation was available. In the event travel originates outside the United States, candidates must contact the nearest naval activity for information as to the availability of Government transportation before endeavoring to procure commercial transportation. When Government transportation is not available, a certified statement to this effect must be presented in order for the candidate to be reimbursed after he has become a midshipman.

(m) *Curriculum.* The course of instruction at the Naval Academy is of 4-years' duration and is designed for the purpose of educating and training students to become officers in the Navy. The word "officers" as used in the foregoing sentence means officers of the line and does not include officers of the Medical Corps, Dental Corps, etc. The curriculum provides a basic education in naval science; science and engineering; and the humanities and social sciences. In addition, there is opportunity for advanced work through validation of college-level courses successfully completed elsewhere, and through a program of elective courses. No midshipman can be admitted or readmitted to other than the fourth (freshman) class. Readmitted midshipmen who previously completed successfully one or more years of the Naval Academy course may request advancement to a higher class after reentry. There can be no deviation from the statutory age limits.

(n) *Commissioned officer.* Graduates of the Naval Academy, who meet all requirements, are commissioned as ensigns in the Navy or (a limited number) as second lieutenants in the Marine Corps. Their commissions may be revoked at any time during the first 3 years following graduation from the Naval Academy. On successful completion of the probationary period, officers are permanently commissioned. Officers whose commissions are revoked shall be discharged from the service, without advance pay or allowances.

§ 710.42 Service obligation for enlisted and other candidates appointed as midshipmen.

(a) *Enlisted members appointed as midshipmen.* Enlisted members of the Armed Forces who accept appointments as midshipmen at the Naval Academy will not be discharged from their enlistment contracts or from their period of obligated service while they are in the status of midshipmen except for physical disability or because of the acceptance of a commission. (Act of June 25, 1956, §§ 1–2, reenacted 10 U.S.C. 516.) Midshipmen in this category who are separated from the Naval Academy, except for one of the two reasons given in the first sentence of this paragraph, will have their appointments as midshipmen terminated and will immediately resume their enlisted status. Members so reverted will be required to serve out their enlistments or obligated service, unless sooner discharged. In computing the unexpired portion of an enlistment contract or period of obligated service, the time served as a midshipman shall be counted as time served under such contract or period of obligated service.

(b) *Midshipmen appointed from civil life.* Candidates entering the Naval Academy from civil life who had not previously acquired a military obligation will automatically do so upon acceptance of appointment as midshipmen at the U.S. Naval Academy. Under certain provisions of the Universal Military Training and Service Act, as revised, any person who is enlisted, inducted, or appointed in any of the Armed Services or Reserve Components acquires automatically a 6-year military obligation. Section IV, B. 3.f of Department of Defense Directive 1200.3 of May 23, 1958 (§ 50.4(b)(3)(vi) of this title) includes appointees to the Service Academies among those who are subject to the 6-year obligation. Such candidates will be required to execute the following statement of understanding of this obligation prior to appointment as midshipmen:

I understand that if my appointment as a midshipman is terminated other than for the purpose of accepting a commission, I shall if qualified be transferred to a ready reserve component of the U.S. Navy or the U.S. Marine Corps, in a grade deemed appropriate by the Secretary of the Navy. I fully understand the requirement for satisfactory participation in the Ready Reserve. I also understand that upon completion of a period of satisfactory Ready Reserve service which, when added to my service as a midshipman, totals 5 years, I shall if I request be transferred to the Standby Reserve to complete the total military service obligation of 6 years acquired under section 4(d)(3) of the Universal Military Training and Service Act as amended (50 U.S.C. App. 454(d)(3), 10 U.S.C. 651).

I understand further that if, after termination of my appointment as a midshipman, I should complete my total 6-year military service obligation without serving the minimum period of active duty required for exemption I may be liable for induction under Selective Service regulations to complete the 2-year active duty obligation prescribed by section 4(b) of the Universal Military Training and Service Act as amended (50 U.S.C. App. 454(b)).

§ 710.43 Engagement to serve (10 U.S.C. 6959).

(a) *Agreement.* Each midshipman who is a citizen or national of the United States shall sign an agreement that, unless sooner separated, he will:

Complete the course of instruction at the Naval Academy.

Comply with such provisions of law as may be directed by the Secretary of the Navy for midshipmen who voluntarily disqualify themselves for the course.

Comply with such provisions of law as may be established for separated midshipmen.

Accept an appointment and serve as a commissioned officer of the Regular Navy or the Regular Marine Corps for at least 5 years immediately after graduation.

Accept an appointment as a commissioned officer in the reserve component of the Navy or the Marine Corps, and remain therein until the sixth anniversary of his graduation, if an appointment in the regular component of that armed force is not tendered to him, or if he is permitted to resign as a regular commissioned officer before the sixth anniversary.

(b) *Minors require parents' consent.* If the midshipman is a minor and has parents or a guardian, he may sign the agreement only with the consent of the parents or guardian.

(c) *Commissions without terminal dates.* Officers of the Armed Services serve at the pleasure of the President. No terminal dates are established for their commissions.

§ 710.44 Foreign students.

(a) *General.* Persons from a foreign country receiving instruction at the Naval Academy under authority of law (10 U.S.C. 6957) shall receive the same pay, allowances, and emoluments, to be paid from the same appropriations, and, subject to such exceptions as may be determined by the Secretary of the Navy, shall be subject to the same rules and regula-

tions governing admission, attendance, discipline, resignation, discharge, dismissal, and graduation, as midshipmen at the Naval Academy appointed from the United States; but such persons shall not be entitled to appointment to any office or position in the U.S. Navy by reason of their graduation from the Naval Academy. The entrance deposit will be required of all foreign students. Applications for appointment under provisions of this law must be addressed through diplomatic channels of the applicant's country. Nominations must reach the State Department in Washington, D.C., by January 1 of the year of entering the Naval Academy.

(b) *Qualifications.* Each candidate must:

(1) Be an unmarried, bona fide male citizen of the nominating country and, unless otherwise approved by the Secretary of the Navy, be not less than 17 years of age nor more than 22 years of age on July 1 of the calendar year in which he enters the Naval Academy.

(2) Possess medical qualifications as specified in this part. All candidates must undergo a medical examination and a physical aptitude examination by a board of medical examiners designated by the Chief of Naval Personnel. Qualifying medical and physical aptitude examination will be conducted by the Permanent Medical Examining Board at the U.S. Naval Academy at the time of reporting for admission. Such candidates are therefore urged to undergo careful preliminary examination by qualified medical personnel informed of the physical requirements set forth in §§ 710.31–710.34 before leaving their homes for the Naval Academy. Those with obviously disqualifying defects may be spared the needless expense of the trip to Annapolis. However, in case of reasonable doubt as to whether defects are disqualifying, it is recommended that telegraphic inquiry be addressed to the Superintendent, U.S. Naval Academy, Annapolis, Md., U.S.A.

(3) Be proficient in reading, writing, and speaking idiomatic English and meet the scholastic entrance requirements set forth in paragraph (c) of this section.

(c) *Scholastic requirements.* (1) Candidates may qualify for admission by either of the following two methods:

(i) Certificates from accredited secondary schools and colleges of the United States of America.

(ii) Taking the College Entrance Examination Board Scholastic Aptitude Test and achievement tests in English Composition and Intermediate or Advanced Mathematics. Detailed certificates covering school work will not be required of candidates qualifying by the examination method.

(2) Candidates will be given the same examination in English composition as other candidates, but due consideration will be accorded these foreign students when evaluating test results. Each candidate shall submit a certificate from his government that he is conversant with the literature of his native country and that he has completed a course in the literature of his native language equivalent in general to 2 years of secondary school work in literature in the United States. In lieu of this certification, a candidate may produce evidence of having acquired the units of literature from accredited schools of the United States.

(3) The naval attaché or a diplomatic representative of the United States in the candidate's country shall furnish a report as to the candidate's proficiency in the use of idiomatic English.

(d) *Nominations by governments.* Governments should submit the names of candidates as early as possible in order that they may qualify for entrance by the end of March and enter the Naval Academy in late June or early July, except in the cases of candidates attending secondary schools and colleges in the United States whose school records for the current year are essential to fulfillment of admission requirements. In such cases candidates may be granted until June 25 in order to permit completion of the required certificates. The nomination of the candidate should contain a statement of the method of admission under which he wishes to qualify.

(e) *Oath.* In lieu of the oath of allegiance to the United States, a substitute oath will be required, in substance as follows:

I, ----------, a citizen of ----------, aged ------ years ------ months, having been appointed a midshipman at the U.S. Naval Academy, do solemnly swear to comply with all regulations for the police and discipline of the Academy, and to give my utmost efforts to accomplish satisfactorily the required curriculum; do swear not to divulge any information of military value which I may obtain directly or indirectly in consequence of my presence at the U.S. Naval Academy to any alien government; and do agree that I shall be withdrawn from the U.S. Naval Academy if deficient in conduct, health, or studies.

(f) *Notification of unsatisfactory conduct, studies, or health.* Notification will be given to the governments that students found by proper authority to be unsatisfactory in conduct, studies, or health will be accorded the same consideration given other midshipmen regarding withdrawal from the Academy, or repetition of a year's work.

Subpart E—Appendices

§ 710.51 Format for requesting a Congressional nomination.

Date.

Honorable----------,
House of Representatives,
Washington, D.C., 20515.
Dear Mr.----------

or

Honorable----------,
United States Senate,
Washington, D.C., 20510.
Dear Senator----------

It is my desire to attend the U.S. Naval Academy and to make the U.S. Navy my career. I respectfully request that I be considered as one of your nominees for the class that enters the Academy in June 19__.

The following personal data are furnished for your information:

Name (as recorded on birth certificate).

Address (City, County, State).

Name of Parents.

Date of Birth.

High School Attended.

Date of High School Graduation.

Approximate Grade Average.

My high school transcript of work completed to date is attached.

I have been active in high school extracurricular activities shown on the attached list.

I shall greatly appreciate your consideration of my request for a nomination to the U.S. Naval Academy.

Sincerely yours,

Signature.

§ 710.52 Format for requesting a Presidential nomination.

Date.

Chief of Naval Personnel,
Department of the Navy,
Washington, D.C., 20370.

Attn: Pers–B66.

Dear Sir: I request a nomination under the Presidential category for the class that enters the Naval Academy in June 19__ and submit the following information:

Name (give name as shown on birth certificate. If different from that which you use, attach a copy of court order, if applicable).

Address (give permanent and temporary address).

Date of Birth (spell out month).

Date of High School Graduation.

If Member of Military (list grade, serial number, component, branch of service, and organizational address).

If Previous Candidate (list year).

Information on Parent:

Name, Grade, Serial Number, Component and Branch of Service.

Organizational Address.

Retired or Deceased (give date and attach copy of retirement orders or casualty report).

Officer Personnel (attach statement of service prepared by Personnel Officer specifying Regular or Reserve status for all periods of service).

Enlisted Personnel (attach statement prepared by Personnel Officer listing date of enlistment, date of expiration of enlistment, component and branch of service).

Sincerely yours,

Signature.

§ 710.53 Format for requesting a Son of Deceased Veteran nomination.

Date.

Chief of Naval Personnel,
Department of the Navy,
Washington, D.C., 20370.

Attn.: Pers–B66.

Dear Sir: I request a nomination under the Sons of Deceased Veterans category for the class that enters the Naval Academy in June 19__ and submit the following information:

Name (give name as shown on birth certificate. If different from that which you use, attach a copy of court order, if applicable).

Address (give permanent and temporary address).

Date of Birth (spell out month).

Date of High School Graduation.

If Member of Military (list grade, serial number, component, branch of service, and organizational address).

If Previous Candidate (list year).

Information on Parent:

Name, Grade, Serial Number, Regular or Reserve Component and Branch of Service.

Date and Place of Death.

Cause of Death.

Veterans Administration XC Claim Number: (forwarding a copy of death certificate, preferably the casualty report, will expedite processing of your application).

Address of VA Office where case is filed.

Sincerely yours,

Signature.

§ 710.54 Authorized medical examining facilities for Naval Academy medical examinations.

ALABAMA

Brookley AFB, Mobile.
Fort Rucker, Daleville.
Maxwell AFB, Montgomery.

ALASKA

Elmendorf AFB, Anchorage.
Fort Richardson, Anchorage.
USNAS, Adak.
USNAS, Kodiak.

ARKANSAS

Blytheville AFB, Blytheville.
Little Rock AFB, Jacksonville.

ARIZONA

Davis-Monthan AFB, Tucson.
Fort Huachuca, Cochise County.
Williams AFB, Chandler.

CALIFORNIA

Beale AFB, Marysville.
Castle AFB, Merced.
Edwards AFB, Edwards.
Fort MacArthur, San Pedro.
Fort Ord, Monterey.
George AFB, Victorville.
Hamilton AFB, Ignacio.
Letterman Gen Hosp, San Francisco.
March AFB, Riverside.
Mather AFB, Sacramento.
McClellan AFB, Sacramento.
Norton AFB, San Bernardino.
Travis AFB, Fairfield.
Vandenberg AFB, Lompoc.
USNAS, Alameda.
USN Hosp, Camp Pendleton.
USN Air Facility, El Centro.
USN Aux Air Stn, Ream Fld, Imperial Beach.
USNAS, Lemoore.
USN Hosp, USS Haven, Long Beach.
USNAS, Los Alamitos, Long Beach.
USNAS, Moffett Field.
USN Air Facility, Monterey.
USN Hosp, Oakland.
USN Missle Ctr, Point Mugu.
USMCAS, El Toro, Santa Ana.
USN Hosp, San Diego.
NAS, North Island, San Diego.
USNAS, Miramar, San Diego.

COLORADO

Fitzsimons Gen Hosp, Denver.
Lowry AFB, Denver.
USAF Academy.

DELAWARE

Dover AFB, Dover.

DISTRICT OF COLUMBIA

Andrews AFB.
USN Air Facility, Andrews AFB.
Walter Reed Gen Hosp.

FLORIDA

Eglin AFB, Valparaiso.
Homestead AFB, Homestead.
MacDill AFB, Tampa.
Tyndall AFB, Panama City.
USNAS, Cecil Field.
USN Hosp, Jacksonville.
USNAS, Jacksonville.
USN Hosp, Key West.
USNAS, Key West.
USN Hosp, Pensacola.
USNAS, Pensacola.
USNAS, Sanford.
USNAS, Whiting Field.

GEORGIA

Fort Benning, Columbus.
Fort Gordon, Groveton.
Fort McPherson, Atlanta.
Fort Stewart, Hinesville.
Hunter AFB, Savannah.
Moody AFB, Valdosta.
Robins AFB, Warner Robins.
Turner AFB, Albany.
USNAS, Atlanta.
USNAS, Glynco.

HAWAII

Hickam AFB, Honolulu.
Tripler Gen Hosp, Honolulu.

IDAHO

Mountain Home AFB, Mountain Home.

ILLINOIS

Chanute AFB, Rantoul.
Fort Sheridan, Highland Park.
Scott AFB, Belleville.
USN Hosp, Great Lakes.
USNAS, Glenview.

INDIANA

Bunker Hill AFB, Peru.
Fort Benjamin Harrison, Indianapolis.

KANSAS

Forbes AFB, Topeka.
Fort Leavenworth, Leavenworth.
Fort Riley, Junction City.
McConnell AFB, Wichita.
USNAS, Olathe.

KENTUCKY

Fort Knox, Hardin County.

LOUISIANA

Barksdale AFB, Shreveport.
England AFB, Alexandria.
USNAS, New Orleans.

MAINE

Dow AFB, Bangor.
Loring AFB, Limestone.
USNAS, Brunswick.

MARYLAND

Fort George G. Meade, Odenton.
USN Hosp, Bethesda.
USN Training Center, Bainbridge.
US Naval Academy, Annapolis.
USNAS, Patuxent.

MASSACHUSETTS

Boston Army Base, Boston.
Fort Devens, Ayer.
Otis AFB, Falmouth.
USN Hosp, Chelsea.
USNAS, South Weymouth.
Westover AFB, Chicopee, Falls.

MICHIGAN

Kincheloe AFB, Kincross.
K. I. Sawyer AFB, Gwinn.
Selfridge AFB, Mt. Clemens.
USNAS, Grosse Ile.
Wurtsmith AFB, Oscoda.

MINNESOTA

USNAS, Minneapolis.

MISSISSIPPI

Columbus AFB, Columbus.
Keesler AFB, Biloxi.
USN Aux Air Stn, Meridian.

MISSOURI

Fort Leonard Wood, Waynesville.
Richards-Gebaur AFB, Grandview.
Whiteman AFB, Knob Noster.

MONTANA

Glasgow AFB, Glasgow.
Malmstrom AFB, Great Falls.

NEBRASKA

Lincoln AFB, Lincoln.
Offutt AFB, Omaha.

NEVADA

Nellis AFB, Las Vegas.
Stead AFB, Reno.

NEW HAMPSHIRE

Pease AFB, Portsmouth.
USN Hosp, Portsmouth.

NEW JERSEY

Fort Dix, Wrightstown.
Fort Monmouth, Oceanport.
McGuire AFB, Wrightstown.
USNS, Lakehurst.

NEW MEXICO

Cannon AFB, Clovis.
Holloman AFB, Alamogordo.
Kirtland AFB, Albuquerque.
Walker AFB, Roswell.

NEW YORK

Griffiss AFB, Rome.
Plattsburgh AFB, Plattsburgh.
Stewart AFB, Newburgh.
Suffolk County AFB,
Westhampton Beach, L.I.
US Military Academy, West Point.
USNAS, New York.
USN Hosp, St. Albans, Long Island.

NORTH CAROLINA

Fort Bragg, Fayetteville.
Seymour Johnson AFB, Goldsboro.
USN Hosp, Camp Lejeune.
USMCAS, Cherry Point.
USMC Air Facility, New River.

NORTH DAKOTA

Grand Forks AFB, Meckinock.
Minot AFB, Minot.

OHIO

Lockbourne AFB, Columbus.
Wright-Patterson AFB, Dayton.

OKLAHOMA

Altus AFB, Altus.
Clinton-Sherman AFB, Burns Flat.
Fort Sill, Lawton.
Tinker AFB, Oklahoma City.

OREGON

Portland International Airport, Portland.

PENNSYLVANIA

Carlisle Barracks, Carlisle.
Olmsted AFB, Middletown.
USN Air Facility, Johnsville.
USN Hosp, Philadelphia.
USNAS, Willow Grove.
Valley Forge Gen Hosp, Phoenixville.

RHODE ISLAND

USN Hosp, Newport.
USN Stn, Newport.
USNAS, Quonset Point.

SOUTH CAROLINA

Charleston AFB, Charleston.
Fort Jackson, Columbia.
Shaw AFB, Sumter.
USN Hosp, Beaufort.
USMCAS, Beaufort.
USN Hosp, Charlestown.

SOUTH DAKOTA

Ellsworth AFB, Rapid City.

TENNESSEE

Fort Campbell, Clarkesville.
Sewart AFB, Smyrna.
USN Hosp, Memphis.
USNAS, Memphis.

TEXAS

Amarillo AFB, Amarillo.
Bergstrom AFB, Austin.
Biggs AFB, El Paso.
Carswell AFB, Fort Worth.
Dyess AFB, Abilene.
Fort Hood, Killeen.
Fort Sam Houston, San Antonio.
James Connally AFB, Waco.
Lackland AFB, San Antonio.
Laredo AFB, Laredo.
Laughlin AFB, Del Rio.
Perrin AFB, Sherman.
Randolph AFB, San Antonio.
Reese AFB, Lubbock.
Sheppard AFB, Wichita Falls.
USN Aux Air Stn, Beeville.
USN Hosp, Corpus Christi.
USNAS, Corpus Christi.
USNAS, Dallas.
USNAS, Kingsville.
Webb AFB, Big Spring.
William Beaumont Gen Hosp, El Paso.

UTAH

Hill AFB, Ogden.

VIRGINIA

Langley AFB, Hampton.
Fort Belvoir, Fairfax County.
Fort Eustis, Lee Hall.
Fort Lee, Petersburg.
Fort Monroe, Old Point Comfort.
USNAS, Norfolk.
USN Hosp, Portsmouth.
USN Hosp, Quantico.
USMCAS, Quantico.
USNAS, Virginia Beach.

WASHINGTON

Fairchild AFB, Spokane.
Fort Lewis, Tacoma.
Larson AFB, Moses Lake.
McChord AFB, Tacoma.
USN Hosp, Bremerton.
USNAS, Oak Harbor.
USNAS, Seattle.

WISCONSIN

Truax Field, Madison.

WYOMING

Francis E. Warren AFB, Cheyenne.

CANAL ZONE

Albrook AFB, Balboa.
Fort Clayton.
USN Stn, Rodman.

CUBA

USN Hosp, Guantanamo Bay.

ENGLAND

S. Ruislip Air Stn, Middlesex.
USN Activities, United Kingdom, London.

FRANCE

Evreux AB.

GERMANY

US Army Hosp, Heidelberg.
Wiesbaden AB, Wiesbaden.

GUAM

USN Hosp.

ITALY

USN Support Activity, Naples.

JAPAN

Camp Zama.
Tachikawa AB, Honshu.
USN Hosp, Yokosuka.

NEWFOUNDLAND

Ernest Harmon AFB, Stephenville.
USN Stn, Argentia.

PHILIPPINE ISLANDS

Clark AB, Luzon.
USN Stn, Subic Bay.

PUERTO RICO

Ramey AFB, Aguadilla.
USNAS, Roosevelt Rds.

SPAIN

Torrejon AB.
USNAS, Rota.

Dated: November 3, 1965.

By direction of the Secretary of the Navy.

[SEAL] WILFRED HEARN,
Rear Admiral U.S. Navy, Judge Advocate General of the Navy.

[F.R. Doc. 65-12033; Filed, Nov. 9, 1965; 8:45 a.m.]

Title 7—AGRICULTURE

Chapter III—Agricultural Research Service, Department of Agriculture

[P.P.C. 639, 7th Rev.]

PART 301—DOMESTIC QUARANTINE NOTICES

Subpart—Imported Fire Ant

REGULATED AREAS

Pursuant to § 301.81-2 of the regulations supplemental to the imported fire ant quarantine (7 CFR 301.81-2), under sections 8 and 9 of the Plant Quarantine Act of 1912, as amended, and section 106 of the Federal Plant Pest Act (7 U.S.C. 161, 162, 150ee), administrative instructions appearing as 7 CFR 301.81-2a are hereby revised to read as follows:

§ 301.81-2a Administrative instructions designating regulated areas under the imported fire ant quarantine.

The following counties, parishes, other civil divisions, or parts thereof, in the quarantined States listed below, are designated as imported fire ant regulated areas within the meaning of the provisions of this subpart; and such regulated areas are hereby divided into eradication areas or generally infested areas as indicated below:

ALABAMA

(1) *Generally infested areas.*

Autauga County. The entire county.
Baldwin County. The entire county.
Barbour County. The entire county.
Bibb County. The entire county.
Blount County. That portion of the county lying south of the north line of T. 12 S.
Bullock County. The entire county.
Butler County. The entire county.
Calhoun County. The entire county.
Chambers County. The entire county.
Chilton County. The entire county.
Choctaw County. The entire county.
Clarke County. The entire county.
Clay County. The entire county.
Coffee County. The entire county.
Conecuh County. The entire county.
Coosa County. The entire county.
Covington County. The entire county.
Crenshaw County. The entire county.
Dale County. The entire county.
Dallas County. The entire county.
Elmore County. The entire county.
Escambia County. The entire county.
Fayette County. The entire county.
Geneva County. The entire county.
Greene County. The entire county.
Hale County. The entire county.
Henry County. The entire county.
Houston County. The entire county.
Jefferson County. The entire county.
Lamar County. The entire county.
Lee County. The entire county.
Lowndes County. The entire county.
Macon County. The entire county.
Marengo County. The entire county.
Marion County. The entire county.
Mobile County. The entire county.
Monroe County. The entire county.
Montgomery County. The entire county.
Perry County. The entire county.
Pickens County. The entire county.
Pike County. The entire county.
Russell County. The entire county.
St. Clair County. The entire county.
Shelby County. The entire county.
Sumter County. The entire county.
Talladega County. The entire county.
Tallapoosa County. The entire county.
Tuscaloosa County. The entire county.
Walker County. The entire county.
Washington County. The entire county.
Wilcox County. The entire county.

(2) *Eradication areas.*

Cleburne County. That portion of the county lying south of the north line of T. 16 S. and west of the east line of R. 10 E.
Etowah County. N½ T. 11 S., R. 6 E., S½ T. 11 S., Rs. 5, 6, and 7 E., and all of the county within Rs. 5, 6, and 7 E. lying south of the north line of T. 12 S.
Limestone County. S½ T. 3 S., R. 4 W.; T. 4 S., R. 4 W.; all of T. 5 S., R. 4 W. lying north of the Tennessee River; SE¼ T. 3 S., R. 5 W.; and that part of the E½ T. 4 S., R. 5 W. lying north of the Tennessee River.
Morgan County. N½ T. 6 S., Rs. 4 and 5 W.; and those portions of T. 5 S., Rs. 4 and 5 W., and T. 4 S., R. 5 W., lying south of the Tennessee River.

ARKANSAS

(1) *Generally infested areas.* None.

(2) *Eradication areas.*

Ashley County. Those portions of Tps. 18 and 19 S., Rs. 6, 7, 8, 9, and 10 W., lying in Ashley County.
Union County. The entire county.

FLORIDA

(1) *Generally infested areas.*

Baker County. That portion of the county lying south of the north line of T. 2 S.
Bay County. The entire county.
Calhoun County. The entire county.
Clay County. That portion of the county bounded by a line beginning at a point where the northeast fork of Little Black Creek intersects the Duval-Clay County line; thence extending east along said county line to the St. Johns River; thence south along said river to its intersection with the north

boundary line of T. 7 S.; thence west along said line to its intersection with the east boundary line of R. 25 E.; thence north along said line to its intersection with Black Creek; thence west along said creek to its junction with Little Black Creek; thence north along said creek to its northeast fork; thence north along said fork to the point of beginning. Also T. 4 S., R. 23 E.

Duval County. The entire county.

Escambia County. The entire county.

Franklin County. That portion of T. 5 S., R. 7 W. lying within the county; Tps. 6 and 7 S., R. 7 W.; and those portions of Tps. 5, 6, and 7 S., R. 8 W. lying within the county.

Gadsden County. The entire county.

Gulf County. The entire county.

Hardee County. T. 33 S., Rs. 23, 24, 25, and 26 E.; T. 34 S., Rs. 23 and 24 E.; T. 35 S., R. 23 E.

Hernando County. That portion of T. 23 S., Rs. 16 and 17 E. lying west of U.S. Highway 19.

Hillsborough County. The entire county.

Holmes County. The entire county.

Jackson County. The entire county.

Lake County. That portion of the county beginning at a point where State Highway 44 intersects State Highway 437; thence extending northeast along Highway 44 to the St. Johns River; thence south along the east boundary line of Lake County to the Orange County line; thence west along the Lake-Orange County line to State Highway 437; thence north along said highway to the point of beginning.

Leon County. The entire county.

Liberty County. The entire county.

Manatee County. The entire county.

Okaloosa County. The entire county.

Orange County. Tps. 20, 21, and 22 S., R. 28 E.; those portions of Tps. 20 and 21 S., R. 29 E. lying within the county; that portion of T. 21 S., R. 30 E. lying within the county; Tps. 22 and 23 S., R. 30 E.; Tps. 22 and 23 S., R. 31 E.; T. 22 S., Rs. 32 and 33 E.; and that portion of T. 22 S., R. 34 E. lying within the county.

Pasco County. The entire county.

Pinellas County. The entire county.

Polk County. All of Polk County lying west of a line beginning at the intersection of U.S. Highway 27 and the north Polk County line, thence extending south along said highway to its intersection with the Highlands County line, excluding all of the cities of Haines City, Lake Hamilton, and Dundee. All of sections 7 and 18, T. 26 S., R. 27 E.; secs. 15, 16, 21, 22, and 27, T. 29 S., R. 27 E.; and secs. 11, 14, 23, 24, 25, 26, and 36, T. 31 S., R. 27 E. not covered in the above description.

St. Johns County. That portion of the county lying north of the south boundary line of T. 5 S.

Santa Rosa County. The entire county.

Sarasota County. Tps. 36 and 37 S., Rs. 19 and 20 E.

Seminole County. The entire county.

Sumter County. T. 24 S., R. 23 E.; and that portion of T. 25 S., R. 23 E. lying within the county.

Volusia County. That portion of the county beginning at the junction of the north boundary of sec. 19, T. 18 S., R. 29 E. and the St. Johns River; thence extending east along the north boundary of secs. 19 and 20, T. 18 S., R. 29 E., and secs. 21, 22, 23, and 24, T. 18 S., R. 30 E. to the junction of the eastern right-of-way of Interstate Highway 4; thence south along said right-of-way to the junction with the Florida East Coast Railroad; thence easterly along said railroad to its junction with State Highway 415; thence southwesterly along said highway to its junction with the St. Johns River; thence northwesterly along the St. Johns River to the point of beginning.

Wakulla County. S½ T. 2 S., R. 3 W., and all of T. 3 S., R. 3 W.

Walton County. The entire county.

Washington County. The entire county.

(2) *Eradication areas.* None.

GEORGIA

(1) *General infested areas.*

Baker County. The entire county.

Ben Hill County. The entire county.

Chattahoochee County. The entire county.

Clay County. The entire county.

Colquitt County. The entire county.

Crisp County. The entire county.

Decatur County. The entire county.

Dodge County. The entire county.

Dooly County. The entire county.

Dougherty County. The entire county.

Early County. The entire county.

Grady County. The entire county.

Harris County. The entire county.

Irwin County. That portion of the county lying within Georgia Militia Districts 1643, 1388, 1661, 901, 1662, 1670, 1529, and 1421.

Lamar County. That portion of the county lying in Milner Georgia Militia District 540, Barnesville Georgia Militia District 533, and Piedmont Georgia Militia District 1494.

Laurens County. The entire county.

Lee County. The entire county.

Macon County. The entire county.

Marion County. The entire county.

Meriwether County. The entire county.

Miller County. The entire county.

Mitchell County. The entire county.

Muscogee County. The entire county.

Pike County. The entire county.

Pulaski County. The entire county.

Quitman County. The entire county.

Randolph County. That portion of the county lying in Georgia Militia District 718, Georgia Militia District 954, and Georgia Militia District 1566.

Schley County. The entire county.

Spalding County. The entire county except Georgia Militia District 490.

Stewart County. The entire county.

Sumter County. The entire county, excluding Georgia Militia Districts 884 and 759.

Talbot County. The entire county.

Taylor County. The entire county.

Terrell County. The entire county.

Thomas County. The entire county.

Troup County. The entire county.

Turner County. The entire county.

Upson County. The entire county.

Webster County. That portion of the county lying within Preston Georgia Militia District 978 and Slaughter Creek Georgia Militia District 1105.

Wilcox County. The entire county.

Worth County. The entire county.

(2) *Eradication areas.*

Baldwin County. That portion of the county lying west of the Central of Georgia Railroad, including the city of Milledgeville.

Bibb County. The entire county.

Bleckley County. The entire county.

Brantley County. That portion of the county lying within the Schlatterville Georgia Militia District 590.

Bryan County. The entire county.

Bulloch County. That portion of the county lying within Georgia Militia Districts 1803, 1340, 47, and 1523.

Butts County. That portion of the county lying within Buttrill Georgia Militia District 615 and Jackson Georgia Militia District 612.

Calhoun County. That portion of the county lying within the Arlington Georgia Militia District 574.

Chatham County. The entire county.

Clayton County. The entire county.

Coffee County. That portion of the county lying within Broxton Georgia Militia District 1127, Ambrose Georgia Militia District 1556, Douglas Georgia Militia District 748, and Bridgetown Georgia Militia District 1804.

Crawford County. That portion of the county lying in Tabor Georgia Militia District 529.

De Kalb County. The entire county.

Effingham County. The entire county.

Fayette County. That portion of the county lying within Georgia Militia Districts 1293, 538, 496, 1262, 1248, 549, and 709.

Fulton County. That portion of the county lying in the corporate limits of Hapeville, College Park, East Point, and Atlanta; that portion of the county lying north of the corporate limits of Atlanta to the Chattahoochee River; and that portion of the county lying within Georgia Militia Districts 1204, 1725, 499, 479, and 1762.

Gwinnett County. That portion of the county lying south and west of Georgia Highway 120 and Georgia Highway 124, including all of the area in the corporate limits of Snellville, Lawrenceville, and Duluth.

Henry County. The entire county.

Houston County. The entire county.

Jeff Davis County. That portion of the county lying within Ocmulgee Georgia Militia District 1622 and Whitehead Georgia Militia District 1620.

Jones County. The entire county.

Liberty County. The entire county.

Monroe County. That portion of the county lying in Georgia Militia District 473 and Georgia Militia District 618.

Peach County. That portion of the county lying in Fort Valley Georgia Militia District 1813 and Myrtle Georgia Militia District 1815.

Pierce County. The entire county.

Richmond County. That portion of the county lying north of Butler Creek.

Seminole County. The entire county.

Telfair County. The entire county.

Tift County. The entire county.

Twiggs County. That portion of the county lying within McDonald Georgia Militia District 356, Hammock Georgia Militia District 1322, Smith Georgia Militia District 355, Pearson Georgia Militia District 323, and Jeffersonville Georgia Militia District 325.

Ware County. That portion of the county lying within Haywood Georgia Militia District 1030, James-Town Georgia Militia District 1372, Waresboro Georgia Militia District 451, Waycross Georgia Militia District 1231, and Braganzia Georgia Militia District 1404.

Wheeler County. That portion of the county lying within Erick Georgia Militia District 1450.

LOUISIANA

(1) *Generally infested areas.*

Acadia Parish. The entire parish.

Allen Parish. The entire parish.

Ascension Parish. The entire parish.

Assumption Parish. The entire parish.

Avoyelles Parish. The entire parish.

Beauregard Parish. The entire parish.

Calcasieu Parish. The entire parish.

Cameron Parish. The entire parish.

East Baton Rouge Parish. The entire parish.

East Feliciana Parish. The entire parish.

Evangeline Parish. The entire parish.

Iberia Parish. The entire parish.

Iberville Parish. The entire parish.

Jefferson Parish. The entire parish.

Jefferson Davis Parish. The entire parish.

Lafayette Parish. The entire parish.

Lafourche Parish. The entire parish.

Livingston Parish. The entire parish.

Orleans Parish. The entire parish.

Plaquemines Parish. The entire parish.

Pointe Coupee Parish. The entire parish.

St. Bernard Parish. The entire parish.

St. Charles Parish. The entire parish.

St. Helena Parish. The entire parish.

St. James Parish. The entire parish.

St. John the Baptist Parish. The entire parish.

St. Landry Parish. The entire parish.
St. Martin Parish. The entire parish.
St. Mary Parish. The entire parish.
St. Tammany Parish. The entire parish.
Tangipahoa Parish. The entire parish.
Terrebonne Parish. The entire parish.
Vermilion Parish. The entire parish.
Washington Parish. The entire parish.
West Baton Rouge Parish. The entire parish.
West Feliciana Parish. The entire parish.
(2) *Eradication areas.*
Bossier Parish. The entire parish.
Caddo Parish. The entire parish.
Caldwell Parish. The entire parish.
Catahoula Parish. The entire parish.
Concordia Parish. The entire parish.
East Carroll Parish. The entire parish.
Franklin Parish. The entire parish.
Grant Parish. That portion of Grant Parish lying south of the north line of T. 6 N., and east of the west line of R. 1 W.
La Salle Parish. That portion of La Salle Parish lying south of the north line of T. 8 N.
Lincoln Parish. T. 18 N., Rs. 1 and 2 W.
Madison Parish. The entire parish.
Morehouse Parish. The entire parish.
Ouachita Parish. The entire parish.
Rapides Parish. The entire parish.
Red River Parish. That portion of the parish lying north of the north line of T. 12 N., and west of the west line of R. 9 W.
Richland Parish. The entire parish.
Tensas Parish. The entire parish.
Union Parish. The entire parish.
Webster Parish. Tps. 18 and 19 N., Rs. 9 and 10 W., and those portions of Tps. 18 and 19 N., R. 8 W. lying in Webster County.
West Carroll Parish. The entire parish.

MISSISSIPPI

(1) *Generally infested areas.*
Adams County. The entire county.
Amite County. The entire county.
Calhoun County. Tps. 12 and 13 S., R. 1 E. and that portion of the county south of the south lines of T. 13 S. and T. 24 N.
Chickasaw County. The entire county.
Choctaw County. The entire county.
Clarke County. The entire county.
Clay County. The entire county.
Copiah County. The entire county.
Covington County. The entire county.
Forrest County. The entire county.
George County. The entire county.
Greene County. The entire county.
Hancock County. The entire county.
Harrison County. The entire county.
Hinds County. The entire county.
Itawamba County. That portion of the county lying south of the south line of T. 8 S.
Jackson County. The entire county.
Jasper County. The entire county.
Jefferson County. That portion of the county lying west of the west line of R. 3 E.
Jefferson Davis County. The entire county.
Jones County. The entire county.
Kemper County. The entire county.
Lamar County. The entire county.
Lauderdale County. The entire county.
Lawrence County. The entire county.
Leake County. That portion of the county south of the south line of T. 12 N.
Lee County. That portion of the county south of the south line of T. 8 S.
Lowndes County. The entire county.
Madison County. The entire county.
Marion County. The entire county.
Monroe County. The entire county.
Neshoba County. The entire county.
Newton County. The entire county.
Noxubee County. The entire county.
Oktibbeha County. The entire county.
Pearl River County. The entire county.
Perry County. The entire county.
Pike County. The entire county.
Rankin County. The entire county.
Scott County. The entire county.
Simpson County. The entire county.
Smith County. The entire county.
Stone County. The entire county.
Walthall County. The entire county.
Wayne County. The entire county.
Webster County. The entire county.
Wilkinson County. The entire county.
Winston County. The entire county.
(2) *Eradication areas.*
Attala County. N½ T. 14 N., R. 6 E.; S⅔ T. 15 N., R. 6 E.; and Tps. 14 and 15 N., R. 7 E.
Claiborne County. That portion of the county lying west of the west line of R. 3 E.
Franklin County. T. 6 N., Rs. 1, 2, 3, 4, and 5 E.; T. 7 N., R. 5 E.; and those portions of Tps. 6 and 7 N., R. 6 E., lying in Franklin County.
Issaquena County. That portion of the county south of the south line of T. 12 N., and west of the west line of R. 7 W.
Lincoln County. The entire county.
Pontotoc County. That portion of the county south of the south line of T. 9 S. and east of the east line of R. 1 E., including all of the area in the corporate limits of the city of Pontotoc.
Sharkey County. The entire county.
Warren County. Those portions of Tps. 15, 16, 17, and 18 N., Rs. 1 and 2 E., and those portions of Tps. 15, 16, and 17 N., Rs. 3 and 4 E., lying in the county.
Washington County. The entire county.
Yazoo County. Those portions of T. 9 N., Rs. 1 and 2 W., T. 10 N., R. 2 E., and S½ T. 11 N., Rs. 2 and 3 E. lying in Yazoo County; and that portion of the county west of the west line of R. 4 W. and north of the Yazoo River.

SOUTH CAROLINA

(1) *Generally infested areas.*
Berkeley County. That portion of the county bounded by a line beginning at a point where Alternate U.S. Highway 17 intersects the Berkeley-Dorchester County line, and extending northeast along said highway to its junction with State Secondary Highway 9; thence east along said highway to its junction with State Secondary Highway 260; thence northeast along said highway to its junction with State Secondary Highway 395; thence east along an imaginary line to a point where the Seaboard Air Line Railroad intersects the West Branch of Cooper River; thence in a southerly direction along said river to its junction with the East Branch of Cooper River; thence northeast along said river to its junction with Quenby Creek; thence southeast along said creek to its intersection with State Secondary Highway 98; thence northeast along said highway to its junction with State Secondary Highway 133 at Huger; thence southeast along said highway to its intersection with the Berkeley-Charleston County line; thence in a southwesterly and northwesterly direction along said county line to the point of beginning.
Charleston County. That portion of the county bounded by a line beginning at a point where U.S. Highway 78 intersects the Charleston-Dorchester County line and extending northeast along said county line to its junction with the Charleston and Berkeley County line; thence south and east along said county line to its junction with Cooper River; thence in a southerly direction along said river to its junction with the Wando River; thence northeast along the Berkeley-Charleston County line to its junction with State Secondary Highway 1032; thence southeast along said highway to its junction with U.S. Highway 17 at Awendaw; thence in a westerly direction along said highway to its intersection with State Primary Highway 165; thence northwest along said highway to its intersection with the Charleston-Dorchester County line; thence along said county line to the point of beginning.
Dorchester County. That portion of the county bounded by a line beginning at a point where State Primary Highway 165 intersects the Charleston-Dorchester County line and extending northeast along said highway to its intersection with the southern boundary of the corporate limits of Summerville; thence northeast along said corporate limits to its intersection with the Charleston-Dorchester County line; thence in a southeasterly, southerly and westerly direction along said county line to the point of beginning.
Jasper County. That portion of the county bounded by a line beginning at a point where State Primary Highway 119 intersects the Savannah River; thence extending northeast along said highway to its intersection with State Secondary Highway 119; thence southeast along said highway to the town limits of Tillman; thence along the west boundary of said town limits to its intersection with U.S. Highway 321; thence south along said highway to its intersection with the town limits of Hardeeville; thence, in sequence, along the western, southern and eastern boundary of said town to Secondary Highway 141; thence northeast along said road to its intersection with New River; thence south along said river to the Atlantic Ocean; thence southwest to a point where the Savannah River enters the Atlantic Ocean; thence northwest along said river to the point of beginning.
Orangeburg County. That portion of the county bounded by a line beginning at a point where U.S. Highway 21 intersects the Orangeburg-Calhoun County line, and extending in a southeasterly direction along said county line to its intersection with Four Hole Swamp; thence southeast along said swamp to its intersection with U.S. Highway 301; thence east along U.S. Highway 301 to its intersection with U.S. Highway 176; thence in a southeasterly direction along U.S. Highway 176 to its intersection with State Primary Highway 121; thence in a southwesterly direction along said highway to its intersection with Interstate Highway 26; thence southeast along said highway to its intersection with the Orangeburg-Dorchester County line; thence along said county line in a southwesterly direction to its intersection with U.S. Highway 78; thence northwest along U.S. Highway 78 to its intersection with Branchville city limits; thence along the northern boundary of said city to State Secondary Highway 63; thence northwest along said highway to its intersection with U.S. Highway 601; thence northeasterly along said highway to its intersection with the extension of U.S. Highway 376; thence in a northwesterly direction along this extension and U.S. Highway 376 to its junction with State Secondary Highway 74; thence in a northeasterly direction along said highway to its junction with U.S. Highway 178; thence in a southeasterly direction along said highway to its junction with State Secondary Highway 61; thence in a northerly direction along said highway to its junction with the Calhoun-Orangeburg County line; thence along said county line to the point of beginning.
(2) *Eradication areas.* None.

TEXAS

(1) *Generally infested areas.*
Bexar County. The entire county.
Hardin County. The entire county.
Harris County. The entire county.
Jasper County. The entire county.
Jefferson County. The entire county.
Liberty County. The entire county.
Montgomery County. The entire county.
Newton County. The entire county.
Orange County. The entire county.
Tyler County. The entire county.
(2) *Eradication areas.* None.

(Sec. 9, 37 Stat. 318, sec. 106, 71 Stat. 33, 7 U.S.C. 162, 150ee. Interprets or applies sec.

8, 37 Stat. 318, as amended; 7 U.S.C. 161; 29 F.R. 16210, as amended, 30 F.R. 5801, 7 CFR 301.81-2)

These administrative instructions shall become effective November 10, 1965, when they shall supersede P.P.C. 629, 6th Revision (7 CFR 301.81-2a), effective August 27, 1964.

The Director of the Plant Pest Control Division has determined that infestations of the imported fire ant exist or are likely to exist in the counties, parishes, other civil divisions, or parts thereof, listed above, or that it is necessary to regulate such localities because of their proximity to imported fire ant infestation or their inseparability for quarantine purposes from imported fire ant infested localities.

This revision extends the regulated areas in 4 counties in Alabama, 6 counties in Florida, 8 counties in Georgia, 7 counties in Mississippi, and 2 counties in South Carolina. In addition, 4 counties in Alabama, 7 counties in Florida, 19 counties in Georgia, and 3 counties in Mississippi, either wholly or in part, are newly regulated. Also, 3 counties in Alabama and 1 county in Georgia are transferred from a generally infested to an eradication status, whereas 1 county in Georgia and 1 county in Mississippi are shifted from an eradication to a generally infested status.

This revision of the administrative instructions supplements the imported fire ant quarantine regulations already in effect and imposes certain restrictions necessary to prevent the spread of fire ants. It should be made effective promptly in order to accomplish its purpose in the public interest. Accordingly, under section 4 of the Administrative Procedure Act (5 U.S.C. 1003), it is found upon good cause that notice and other public procedure with respect to the foregoing administrative instructions are impracticable and contrary to the public interest, and good cause is found for making the effective date thereof less than 30 days after publication in the FEDERAL REGISTER.

Done at Hyattsville, Md., this 27th day of October 1965.

[SEAL] E. D. BURGESS,
Director,
Plant Pest Control Division.

[F.R. Doc. 65-12097; Filed, Nov. 9, 1965; 8:48 a.m.]

Chapter IV—Federal Crop Insurance Corporation, Department of Agriculture

PART 401—FEDERAL CROP INSURANCE

Subpart—Regulations for the 1961 and Succeeding Crop Years

COUNTIES DESIGNATED FOR CORN, FLAX, AND TOBACCO CROP INSURANCE

Correction

In the FEDERAL REGISTER of Thursday, October 28, 1965, under Part 401 of Title 7, the following corrections are made:

1. In F.R. Doc. 65-11556, appearing at page 13685, in the list of counties designated for corn crop insurance, under Kansas, "Johson" should read "Johnson".

2. In F.R. Doc. 65-11559, appearing at page 13687, in the list of counties designated for flax crop insurance, under North Dakota, the following counties should appear after Stutsman:

Towner.	Ward.
Traill.	Wells.
Walsh.	

3. In F.R. Doc. 65-11573, appearing at page 13691, in the list of counties designated for tobacco crop insurance, under North Carolina, "Hartford" should read "Hertford".

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Agency

[Docket No. 6108; Amdt. 39-156]

PART 39—AIRWORTHINESS DIRECTIVES

de Havilland Model DHC-2 Series Airplanes

Amendment 780, 29 F.R. 11260, AD 64-17-6, as amended by Amendment 39-116, 30 F.R. 10285, requires a repetitive dye penetrant inspection of the wing lift strut upper fitting on certain de Havilland Model DHC-2 airplanes. A proposal to amend Part 39 of the Federal Aviation Regulations to include a new airworthiness directive superseding Amendment 780 as amended by Amendment 39-116, requiring repetitive inspection of certain wing lift strut assemblies and replacement as necessary, and to establish fatigue life retirement times for all wing lift strut assemblies was published in 30 F.R. 11971.

Interested persons have been afforded an opportunity to participate in the making of the amendment. No objections were received.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (25 F.R. 6489), § 39.13 of Part 39 of the Federal Aviation Regulations is amended by adding the following new airworthiness directive:

DE HAVILLAND. Applies to Model DHC-2 Series airplanes.

Compliance required as indicated.

To prevent further failures of the lift strut upper fitting, accomplish the following:

(a) For airplanes with wing lift strut assemblies, C2W-545A/C2W-546A, comply with paragraphs (b) through (d) within the next 100 hours' time in service after the effective date of this AD unless already accomplished within the last 400 hours' time in service, and thereafter at intervals not to exceed 500 hours' time in service from the last inspection.

(b) Detach each wing lift strut assembly from its wing upper lift strut fitting. Using a dye penetrant method with at least a 10-power glass or an FAA-approved equivalent method, inspect the lift strut upper fitting for cracks.

NOTE: During the inspection required by paragraph (b), particular attention should be given to the ¼-inch radius junction of the lug to the attachment flanges.

(c) With each wing lift strut assembly detached, visually inspect the lift strut upper fitting at each ⅛-inch radius junction of the lug to the attachment flanges to ensure that each radius is smooth and blends smoothly into the lug without machine marks or nicks.

(d) If a crack or an imperfect radius is found, replace the lift strut assembly before further flight with an unused part of the same part number; strut assembly, C2W-1103A/C2W-1104A; or an equivalent approved by the Chief, Engineering and Manufacturing Branch, FAA Eastern Region.

(e) The 500-hour repetitive inspections required by paragraph (a) may be discontinued on airplanes with strut assemblies, C2W-469A/C2W-470A, C2W-473A/C2W-474A, C2W-685A/C2W-686A, C2W-1103A/C2W-1104A, or an equivalent approved by the Chief, Engineering and Manufacturing Branch, FAA Eastern Region.

(f) Replace wing strut assemblies, C2W-469A/C2W-470A, C2W-473A/C2W-474A, C2W-545A/C2W-546A, and C2W-685A/C2W-686A, with less than 900 hours' time in service on the effective date of this AD on airplanes used in those special-purpose operations designated in paragraph (o) before the accumulation of 1,000 hours' time in service and thereafter at intervals not to exceed 1,000 hours' time in service since the last replacement.

(g) Replace wing strut assemblies, C2W-469A/C2W-470A, C2W-473A/C2W-474A, C2W-545A/C2W-546A, and C2W-685A/C2W-686A, with 900 or more hours' time in service on the effective date of this AD on airplanes used in those special-purpose operations designated in paragraph (o) within the next 100 hours' time in service and thereafter at intervals not to exceed 1,000 hours' time in service since the last replacement.

(h) Replace wing strut assemblies, C2W-469A/C2W-470A, C2W-473A/C2W-474A, C2W-545A/C2W-546A, and C2W-685A/C2W-686A, with less than 9,900 hours' time in service on the effective date of this AD on airplanes used in operations other than those special-purpose operations designated in paragraph (o) before the accumulation of 10,000 hours' time in service and thereafter at intervals not to exceed 10,000 hours' time in service since the last replacement.

(i) Replace wing strut assemblies, C2W-469A/C2W-470A, C2W-473A/C2W-474A, C2W-545A/C2W-546A, and C2W-685A/C2W-686A, with 9,900 or more hours' time in service on the effective date of this AD on airplanes used in operations other than those special-purpose operations designated in paragraph (o) within the next 100 hours' time in service and thereafter at intervals not to exceed 10,000 hours' time in service since the last replacement.

(j) Replace wing strut assemblies, C2W-1103A/C2W-1104A, with less than 1,500 hours' time in service on the effective date of this AD on airplanes used in those special-purpose operations designated in paragraph (o) before the accumulation of 1,600 hours' time in service and thereafter at intervals not to exceed 1,600 hours' time in service since the last replacement.

(k) Replace wing strut assemblies, C2W-1103A/C2W-1104A, with 1,500 or more hours' time in service on the effective date of this AD on airplanes used in those special-purpose operations designated in paragraph (o) within the next 100 hours' time in service and thereafter at intervals not to exceed 1,600 hours' time in service since the last replacement.

(l) Replace wing strut assemblies, C2W-1103A/C2W-1104A, with less than 19,900 hours' time in service on the effective date of this AD on airplanes used in operations

other than those special-purpose operations designated in paragraph (o) before the accumulation of 20,000 hours' time in service and thereafter at intervals not to exceed 20,000 hours' time in service since the last replacement.

(m) Replace wing strut assemblies, C2W-1103A/C2W-1104A, with 19,900 or more hours' time in service on the effective date of this AD on airplanes used in operations other than those special-purpose operations designated in paragraph (o) within the next 100 hours' time in service and thereafter at intervals not to exceed 20,000 hours' time in service since the last replacement.

(n) Replace strut assemblies replaced in accordance with paragraphs (f) through (m) with an unused part of the same part number; strut assembly, C2W-1103A/C2W-1104A; or an equivalent approved by the Chief, Engineering and Manufacturing Branch, FAA Eastern Region.

(o) For the purposes of this AD, "special-purpose operations" includes—

(1) Agricultural (spraying, dusting, and seeding, and livestock and predatory animal control);

(2) Forest and wildlife conservation;

(3) Aerial surveying (photography, mapping, and oil and mineral exploration);

(4) Patrolling (pipelines, power lines, and canals); and

(5) Fire fighting.

(p) Upon request of the operator, an FAA maintenance inspector, subject to prior approval of the Chief, Engineering and Manufacturing Branch, FAA Eastern Region, may adjust the replacement intervals specified in this AD if the request contains substantiating data to justify the increase for such operator.

(de Havilland Engineering Bulletin, Series "B", No. 15, Issue 3, dated November 2, 1964, available from de Havilland Aircraft of Canada, Ltd., Toronto, Canada, pertains to this subject.)

This supersedes Amendment 780, 29 F.R. 11260, AD 64-17-6, as amended by Amendment 39-116, 30 F.R. 10285.

This amendment becomes effective December 10, 1965.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958; 49 U.S.C. 1354(a), 1421, 1423)

Issued in Washington, D.C., on November 4, 1965.

C. W. WALKER,
Acting Director,
Flight Standards Service.

[F.R. Doc. 65-12055; Filed, Nov. 9, 1965; 8:45 a.m.]

[Docket No. 6901; Amdt. 39-155]

PART 39—AIRWORTHINESS DIRECTIVES

Piper Model PA-24 Airplanes

A proposal to amend Part 39 of the Federal Aviation Regulations to include an airworthiness directive requiring repetitive inspection of the nose landing gear drag link clevis until modified on Piper Model PA-24 Series airplanes was published in 30 F.R. 11732.

Interested persons have been afforded an opportunity to participate in the making of the amendment. No objections were received.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (25 F.R. 6489), § 39.13 of Part 39 of the Federal Aviation Regulations is amended by adding the following new airworthiness directive:

PIPER. Applies to Models PA-24 and PA-24-250 airplanes, Serial Numbers 24-1 through 24-3225 except 24-923.

Compliance required as indicated.

To prevent further failures of the nose landing gear drag link clevis, accomplish the following:

(a) Inspect nose landing gear drag link clevis, P/N's 20859-03(HT), 20859-02, or 20859-00, as applicable, for cracks in the thread roots and the shank-to-clevis fillet radius using water-washable or water-emulsifiable dye penetrant methods or an FAA-approved equivalent within the next 25 hours' time in service after the effective date of this AD, unless already accomplished within the last 75 hours' time in service and thereafter at intervals not to exceed 100 hours' time in service from the last inspection until modified in accordance with subparagraphs (b) (2) or (3).

(b) If a crack is found, before further flight—

(1) Replace the clevis with an uncracked clevis in accordance with Piper Service Letter No. 366, dated January 3, 1962, or later FAA-approved revision;

(2) Replace the clevis with an uncracked drag link clevis, P/N 20859-03(HT), reinforced with drag link clevis reinforcement bracket, Piper P/N 25257, in accordance with the sketch on the back of Piper Service Letter No. 445, dated April 21, 1965, or later FAA-approved revision, or an equivalent approved by the Chief, Engineering and Manufacturing Branch, FAA Eastern Region; or

(3) Install Piper Kit Number 754429, or an equivalent approved by the Chief, Engineering and Manufacturing Branch, FAA Eastern Region.

This amendment becomes effective December 10, 1965.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958; 49 U.S.C. 1354(a), 1421 and 1423)

Issued in Washington, D.C., on November 4, 1965.

C. W. WALKER,
Acting Director,
Flight Standards Service.

[F.R. Doc. 65-12056; Filed, Nov. 9, 1965; 8:45 a.m.]

[Airspace Docket No. 63-SO-75]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Designation of Transition Area and Alteration of Federal Airway

On August 13, 1965, a notice of proposed rule making was published in the FEDERAL REGISTER (30 F.R. 10119) stating that the Federal Aviation Agency is considering amendments to Part 71 of the Federal Aviation Regulations that would designate a transition area at West Palm Beach, Fla., and alter VOR Federal airway No. 492.

Interested persons were afforded an opportunity to participate in the rule making through submission of comments. All comments received were favorable. The final rule is the same as proposed except that "Palm Beach" is substituted in each place where "West Palm Beach" now appears. This change was proposed by the Board of County Commissioners of Palm Beach County in order to eliminate the confusion caused by a difference in name identification of NAVAIDS at Palm Beach.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., January 6, 1966, as hereinafter set forth.

1. In § 71.181 (29 F.R. 17643) the following transition area is added:

PALM BEACH, FLA.

That airspace extending upward from 700 feet above the surface within a 7-mile radius of the Palm Beach International Airport (latitude 26°41'00" N., longitude 80°05'41" W.); that airspace extending upward from 1,200 feet above the surface within a 30-mile radius of Palm Beach VORTAC; and that airspace NW of Palm Beach bounded on the E by V-3, on the S by the 30-mile radius circle, and on the W by the V-51 E alternate; excluding the portion within the arc of a 50-mile radius circle centered at Miami International Airport (latitude 25°47'34" N., longitude 80°17'10" W.), and the portion which coincides with the Pahokee, Fla., transition area.

2. In § 71.123 (29 F.R. 17509) V-492 is amended by deleting the words, "and excluding the airspace between the main and the N alternate."

(Secs. 307(a), 1110, Federal Aviation Act of 1958; 49 U.S.C. 1348, 1510; E.O. 10854, 24 F.R. 9565)

Issued in Washington, D.C., on November 4, 1965.

JAMES L. LAMPL,
Acting Chief, Airspace Regulations and Procedures Division.

[F.R. Doc. 65-12057; Filed, Nov. 9, 1965; 8:45 a.m.]

[Airspace Docket No. 65-CE-99]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Alteration of Control Zone, Designation of Transition Area and Revocation of Control Area Extension

On August 21, 1965, a notice of proposed rule making was published in the FEDERAL REGISTER (30 F.R. 10908) stating that the Federal Aviation Agency proposed to alter the controlled airspace in the Sioux City, Iowa, terminal area.

Interested persons were afforded an opportunity to participate in the rule making through the submission of comments. Due consideration was given to all relevant matter presented. The Air Transport Association endorsed the proposed airspace designation. The Aircraft Owners and Pilots Association objected to the proposed control zone designation. They recommended that the radius be designated as 5 miles and that the control zone extensions terminate at the Jackson beacon on the northwest and at the outer marker on the southeast. Messrs. Tommy Martin, Chris Hansen and Eugene T. Martin objected to the proposal because it would include the Martin Airport within the control zone. In their objection, they also pointed out that the Graham Airport would also be

within the proposed control zone and would probably suffer a hardship as a result. Since the publication of the notice, the Federal Aviation Agency has again reviewed the terminal airspace requirements in the Sioux City, Iowa, area and has coordinated some procedural changes which allow a reduction in the controlled airspace required. The proposed 6-mile radius control zone is required to protect aircraft departing this Category III airport in their climb to 700 feet above the surface. The control zone extension to the southeast is necessary to provide controlled airspace protection for aircraft executing the JAL-395-TACAN approach procedure. It has been determined that the proposed control zone extension to the southwest will no longer be required. This will exclude the Graham Airport from the control zone. The Martin Airport can remain outside the control zone by excluding from the control zone that airspace within a 1-mile radius of that airport. The 1,200-foot floor transition area can be reduced in size by eliminating the extension to the northwest and by reducing the width of the southeast extension. Although the southeast extension must be extended 1 mile farther to the southeast, the reduction in width will be sufficient to effect an overall reduction in the area of the extension. The above changes will meet the objections presented by Messrs. Tommy Martin, Chris Hansen, and Eugene T. Martin. They will also comply in part with the suggestions made by the Aircraft Owners and Pilots Association. Since these changes reduce the amount of proposed airspace, they impose no additional burden on any person and further notice and public procedure thereon are unnecessary.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended effective 0001 e.s.t., January 6, 1966, as hereinafter set forth.

1. In § 71.165 (29 F.R. 17557) the Sioux City, Iowa, control area extension is revoked in its entirety.

2. In § 71.171 (29 F.R. 17581) the Sioux City, Iowa, control zone is amended to read:

SIOUX CITY, IOWA

Within a 6-mile radius of Sioux City Municpal Airport (latitude 42°24'03" N., longitude 96°22'55" W.); and within 2 miles each side of the Sioux City VORTAC 140° radial, extending from the 6-mile radius zone to 6 miles SE of the VORTAC; excluding the area within a 1-mile radius of Martin Airport, South Sioux City, Nebr. (latitude 42°27'15" N., longitude 96°28'20" W.).

3. In § 71.181 (29 F.R. 17643) the following transition area is added:

SIOUX CITY, IOWA

That airspace extending upward from 700 feet above the surface within a 10-mile radius of Sioux City Municipal Airport (latitude 42°24'03" N., longitude 96°22'55"W.); within 7 miles SW and 8 miles NE of the Sioux City ILS localizer SE course, extending from the 10-mile radius area to 12 miles SE of the ILS OM; and within 7 miles NE and 8 miles SW of the Sioux City ILS localizer NW course extending from the 10-mile radius area to 12 miles NW of Jackson, Nebr., RBN; and that airspace extending upward from 1,200 feet above the surface within a 27-mile radius of the Sioux City VORTAC, and the area SE of Sioux City bounded on the NE by a line 5 miles NE of and parallel to the Sioux City VORTAC 116° radial, on the SW by a line 5 miles SW of and parallel to the Sioux City VORTAC 140° radial, on the NW by the 27-mile radius area and on the SE by the arc of a 30-mile radius circle centered on the Sioux City ILS OM.

(Sec. 307(a), Federal Aviation Act of 1958; 49 U.S.C. 1348)

Issued in Kansas City, Mo., on October 29, 1965.

EDWARD C. MARSH,
Director, Central Region.

[F.R. Doc. 65-12058; Filed, Nov. 9, 1965; 8:45 a.m.]

[Airspace Docket No. 65-SO-60]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Designation of Control Zone

On September 16, 1965, a notice of proposed rule making was published in the FEDERAL REGISTER (30 F.R. 11874) stating that the Federal Aviation Agency proposed to designate a control zone at Albert-Whitted Airport, St. Petersburg, Fla.

Interested persons were afforded an opportunity to participate in the rule making through submission of comments. All comments received were favorable.

In the notice, the control zone was proposed to be effective from 0600 to 2200 hours, local time, daily. Subsequent to the publication of the notice, it was determined there is a need to vary the time of designation on a seasonal basis in order to provide air traffic service during periods of highest air traffic activity. Therefore, the time of designation is being omitted and a proviso is being added making allowance for variation in the time of designation through issuance of appropriate Notice to Airmen.

Since this amendment is minor in nature and imposes no additional burden on any person, notice and public procedure hereon are unnecessary.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., January 6, 1966, as hereinafter set forth.

In § 71.171 (29 F.R. 17581) the following control zone is added:

ST. PETERSBURG, FLA. (ALBERT-WHITTED)

Within a 3-mile radius of the Albert-Whitted Airport (latitude 27°45'51" N., longitude 82°37'46" W.). This control zone shall be effective during the specific dates and times established in advance by a Notice to Airmen and continuously published in the Airman's Information Manual.

(Sec. 307(a), Federal Aviation Act of 1958; 49 U.S.C. 1348(a))

Issued in East Point, Ga., on November 2, 1965.

HENRY S. CHANDLER,
Acting Director, Southern Region.

[F.R. Doc. 65-12060; Filed, Nov. 9, 1965; 8:45 a.m.]

[Airspace Docket No. 65-SO-65]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Alteration of Transition Area

On September 16, 1965, a notice of proposed rule making was published in the FEDERAL REGISTER (30 F.R. 11875) stating that the Federal Aviation Agency proposed to alter the transition area at Vero Beach, Fla.

Interested persons were afforded an opportunity to participate in the rule making through submission of comments. All comments received were favorable.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001, e.s.t., January 6, 1966, as hereinafter set forth.

In § 71.181 (29 F.R. 17643) the Vero Beach, Fla., transition area (30 F.R. 3353) is amended to read:

VERO BEACH, FLA.

That airspace extending upward from 700 feet above the surface within a 6-mile radius of the Vero Beach, Fla., Municipal Airport (latitude 27°39'15" N., longitude 80°24'55" W.) and within 2 miles each side of the Vero Beach VORTAC 291° radial extending from the 6-mile radius area to 8 miles W of the VORTAC; within a 5-mile radius of the St. Lucie County Airport, Fort Pierce, Fla. (latitude 27°29'38" N., longitude 80°22'02" W.); within 2 miles each side of the Vero Beach VORTAC 151° radial extending from the 5-mile radius area to the Vero Beach VORTAC; that airspace extending upward from 1,200 feet above the surface within a 20-mile radius of the Vero Beach VORTAC, including the area SW of Vero Beach bounded on the E by V-51, on the SW by V-492N, on the NW by V-225, and including the airspace W of Vero Beach bounded on the SE by V-225, on the W by V-267, on the NE by V-295; excluding the airspace within a 25-mile radius of Patrick AFB, Cocoa, Fla. (latitude 28°14'-15" N., longitude 80°36'35" W.), and the airspace outside of the continental limits of the United States.

(Sec. 307(a), Federal Aviation Act of 1958; 49 U.S.C. 1348(a))

Issued in East Point, Ga., on October 29, 1965.

JAMES G. ROGERS,
Director, Southern Region.

[F.R. Doc. 65-12061; Filed, Nov. 9, 1965; 8:45 a.m.]

[Airspace Docket No. 65-SO-67]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Alteration of Control Zone and Designation of Transition Areas

On September 21, 1965, a notice of proposed rule making was published in the FEDERAL REGISTER (30 F.R. 12042) stating that the Federal Aviation Agency was considering amendments to Part 71 of the Federal Aviation Regulations that would alter the West Palm Beach, Fla., control zone and designate transition areas at Stuart and Lake Placid, Fla.

Interested persons were afforded an opportunity to participate in the rule making through the submission of comments. All comments received were favorable.

Subsequent to the publication of the Notice, Part 71 of the Federal Aviation Regulations was amended to change the name of West Palm Beach to "Palm Beach" wherever it appears in § 71.171, effective December 9, 1965 (Airspace Docket No. 65-SO-63). Since this amendment is editorial in nature and imposes no additional burden on the public, it is incorporated in the final rule.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., January 6, 1966, as hereinafter set forth.

1. In § 71.171 (29 F.R. 17581) the West Palm Beach, Fla., control zone is amended to read:

PALM BEACH, FLA.

Within a 5-mile radius of Palm Beach International Airport (latitude 26°41'00" N., longitude 80°05'41" W.); within 2 miles each side of the Palm Beach VORTAC 275° radial extending from the 5-mile radius zone to 8 miles W of the VORTAC; excluding that airspace within a 1.5-mile radius of the Palm Beach County Park (Lantana) Airport (latitude 26°35'33" N., longitude 80°05'13" W.).

2. In § 71.181 (29 F.R. 17643) the following transition areas are added:

STUART, FLA.

That airspace extending upward from 700 feet above the surface within a 5-mile radius of Witham Airport (latitude 27°10'51" N., longitude 80°13'25" W.); within 2 miles each side of the 320° bearing from the WSTU Commercial Broadcast Station (latitude 27°-12'58" N., longitude 80°15'19" W.) extending from the 5-mile radius area to 11 miles NW of the WSTU Commercial Broadcast Station; and that airspace extending upward from 1,200 feet above the surface within 5 miles SW and 8 miles NE of the 320° and 140° bearings from the WSTU Commercial Broadcast Station extending to 12 miles NW and 3 miles SE of the WSTU Commercial Broadcast Station.

LAKE PLACID, FLA.

That airspace extending upward from 1,200 feet above the surface bounded on the E by V-267, on the SE by V-225, on the SW by V-157, on the NW by a line extending from the E boundary of V-157 and latitude 27°-14'10" N., to latitude 27°22'00" N., longitude 81°08'00" W., to latitude 27°45'00" N., longitude 81°08'00" W., and on the N by latitude 27°45'00" N. The portion which coincides with R-2901B and R-2901D shall be used only after obtaining prior approval from appropriate authority.

(Sec. 307(a), Federal Aviation Act of 1958; 49 U.S.C. 1348(a))

Issued in East Point, Ga., on November 2, 1965.

HENRY S. CHANDLER,
Acting Director, Southern Region.

[F.R. Doc. 65-12062; Filed, Nov. 9, 1965; 8:45 a.m.]

[Airspace Docket No. 65-SO-68]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Revocation and Alteration of Control Zone

On September 28, 1965, a notice of proposed rule making was published in the FEDERAL REGISTER (30 F.R. 12359) stating that the Federal Aviation Agency proposed to alter the control zones at Miami International and Opa Locka Airports, Miami, Fla.

Interested persons were afforded an opportunity to participate in the rule making through submission of comments. All comments received were favorable.

In the notice, separate control zones were proposed for the Miami International and the Opa Locka Airports. Additionally, the name of the control zone for the Opa Locka Airport was proposed to be changed from Miami, Fla. (NARF Miami) to Miami, Fla. (Opa Locka). Since publication of the notice, it was determined the Opa Locka Airport cannot meet weather observation and reporting requirements necessary to qualify for a separate control zone. In view of the foregoing, the Miami, Fla. (NARF Miami), control zone is being revoked and the proposed Miami, Fla. (Opa Locka), control zone is being incorporated into the Miami, Fla. (International Airport), control zone.

Since these amendments impose no additional burden on any person, notice and public procedure hereon are unnecessary.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., January 6, 1966, as hereinafter set forth.

1. In § 71.171 (29 F.R. 17581) the Miami, Fla. (NARF Miami), control zone is revoked.

2. In § 71.171 (29 F.R. 17581) the Miami, Fla. (International Airport), control zone (29 F.R. 14785) is amended to read:

MIAMI, FLA. (INTERNATIONAL AIRPORT)

Within a 5-mile radius of the Miami International Airport (latitude 25°47'35" N., longitude 80°17'10" W.); within a 3-mile radius of the Tamiami Airport (latitude 25°45'-15" N., longitude 80°22'35" W.); within a 5-mile radius of the Opa Locka Airport (latitude 25°54'25" N., longitude 80°16'40" W.); within 2 miles each side of the Miami VORTAC 108° radial extending from the Opa Locka 5-mile radius zone to 5.5 miles E of the VORTAC; within 2 miles each side of the Miami VORTAC 139° radial extending from the Miami 5-mile radius zone to 10 miles SE of the VORTAC; within 2 miles each side of the Miami Runway 9L ILS localizer W course extending from the Miami 5-mile radius zone to the Runway 9L LOM; and within 2 miles each side of the Miami Runway 27L ILS localizer W course extending from the Miami 5-mile radius zone to the intersection of the Runway 27L ILS localizer W course and the Miami VORTAC 161° radial.

(Sec. 307(a), Federal Aviation Act of 1958; 49 U.S.C. 1348(a))

Issued in East Point, Ga., on November 2, 1965.

HENRY S. CHANDLER,
Acting Director, Southern Region.

[F.R. Doc. 65-12063; Filed, Nov. 9, 1965; 8:46 a.m.]

[Airspace Docket No. 65-WE-12]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Revocation of Control Area Extension; Correction

On September 29, 1965, there were published in the FEDERAL REGISTER (30 F.R. 12386) amendments to Part 71 of the Federal Aviation Regulations, effective December 9, 1965, which, in part, revoked the Colorado Springs, Colo., control area extension.

A subsequent examination of the controlled airspace in the Colorado Springs, Colo., terminal area has revealed that retention of the Colorado Springs control area extension is required until the terminal area 60-21/60-29 study for the Denver area (Airspace Docket No. 64-WE-66) has been completed. Revocation of the Colorado Springs control area extension will be included in the Denver terminal area rule. Therefore, action is taken herein to withdraw the revocation of the Colorado Springs, Colo., control area extension.

Since this action imposes no additional burden on any person, the effective date of the final rule as initially adopted may be retained.

In consideration of the foregoing, effective immediately, Airspace Docket No. 65-WE-12 (30 F.R. 12386) is hereby altered as follows:

Numbered paragraph 2, which amends § 71.165 (29 F.R. 17561), is deleted.

(Sec. 307(a), Federal Aviation Act of 1958, as amended, 72 Stat. 749; 49 U.S.C. 1348)

Issued in Los Angeles, Calif., on November 3, 1965.

A. E. HORNING,
Acting Director, Western Region.

[F.R. Doc. 65-12064; Filed, Nov. 9, 1965; 8:46 a.m.]

Title 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

SUBCHAPTER A—GENERAL

PART 2—ADMINISTRATIVE FUNCTIONS, PRACTICES, AND PROCEDURES

Washington Headquarters

Pursuant to section 701(a) of the Federal Food, Drug, and Cosmetic Act (52

Stat. 1055; 21 U.S.C. 371(a)) and section 3(a)(1) of the Administrative Procedure Act (60 Stat. 238; 5 U.S.C. 1002(a)(1)), and under the authority vested in the Commissioner of Food and Drugs by the Secretary of Health, Education, and Welfare (21 CFR 2.90), § 2.101 is amended by deleting "Division of Veterinary Medicine" from its listing under "Bureau of Medicine," by adding "Bureau of Veterinary Medicine" with its divisions, and by changing the footnote to the section to read as indicated. As amended, the affected portions read as follows:

§ 2.101 Washington headquarters.[1]

* * * * *

BUREAU OF MEDICINE

Division of Antibiotic Drugs.
Division of Medical Information.
Division of Medical Review.
Division of New Drugs.

BUREAU OF VETERINARY MEDICINE

Division of Veterinary Medical Review.
Division of Veterinary New Drugs.
Division of Veterinary Products Testing.

* * * * *

Effective date. This order shall become effective on November 7, 1965.

(Sec. 701(a), 52 Stat. 1055; 21 U.S.C. 371(a))

Dated: October 25, 1965.

WINTON B. RANKIN,
Assistant Commissioner for Planning.

[F.R. Doc. 65-12092; Filed, Nov. 9, 1965; 8:48 a.m.]

SUBCHAPTER B—FOOD AND FOOD PRODUCTS

PART 121—FOOD ADDITIVES

Subpart F—Food Additives Resulting From Contact With Containers or Equipment and Food Additives Otherwise Affecting Food

LUBRICANTS WITH INCIDENTAL FOOD CONTACT

The Commissioner of Food and Drugs, having evaluated the data in a petition (FAP 5B1782) filed by Humble Oil & Refining Co., Post Office Box 2180, Houston, Tex., 77001, and other relevant material, has concluded that the food additive regulations should be amended to provide for the use of an additional substance as a gelling agent in mineral oil lubricants used with incidental food contact. Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1)), and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.90), § 121.2553 (a)(3) is amended by inserting alphabetically in the list of substances a new item, as follows:

§ 121.2553 Lubricants with incidental food contact.

* * *

(a) * * *
(3) * * *

Substances	*Limitations*
* * *	* * *
Dialkyldimethylammonium aluminum silicate where the alkyl groups are derived from hydrogenated tallow fatty acids (C 14—C 18) and where the aluminum silicate is derived from bentonite.	For use only as a gelling agent in mineral oil lubricants at a level not to exceed 7 percent by weight of the mineral oil.

* * * * * * * * *

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C., 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1))

Dated: November 3, 1965.

GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F.R. Doc. 65-12093; Filed, Nov. 9, 1965; 8:48 a.m.]

SUBCHAPTER C—DRUGS

PART 148e—ERYTHROMYCIN

Erythromycin Ethylsuccinate Injection; Sampling Procedure

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 507, 59 Stat. 463 as amended; 21 U.S.C. 357) and under the authority delegated to the Commissioner of Food and Drugs by the Secretary of Health, Education, and Welfare (21 CFR 2.90), § 148e.18 is amended by changing the section heading and paragraph (a)(3)(ii) (*b*)(2) to read as follows:

§ 148e.18 Erythromycin ethylsuccinate injection.

(a) * * *
(3) * * *
(ii) * * *
(*b*) * * *

(2) For sterility testing: 20 immediate containers, collected at regular intervals throughout each filling operation, except that if the product is sterilized after filling, a representative sample consisting of 10 immediate containers from each sterilizer load. If only one sterilizer load is involved, the sample shall consist of 20 immediate containers.

* * * * *

This amendment provides a sampling procedure appropriate to the subject drug when it is sterilized after filling into final containers rather than before and I find it consistent with the requirements that the drug be safe and efficacious for use. Notice and public procedure and delayed effective date are not necessary prerequisites to the promulgation of this order, and I so find, since the amendment is noncontroversial in nature and is in the public interest.

Effective date. This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 507, 59 Stat. 463 as amended; 21 U.S.C. 357)

Dated: November 3, 1964.

GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F.R. Doc. 65-12094; Filed, Nov. 9, 1965; 8:48 a.m.]

Title 25—INDIANS

Chapter I—Bureau of Indian Affairs, Department of the Interior

SUBCHAPTER L—LEASING AND PERMITTING

PART 131—LEASING AND PERMITTING

Colorado River Reservation

On Page 9924 of the FEDERAL REGISTER of August 10, 1965, there was published a notice of intention to amend § 131.18 of Title 25 Code of Federal Regulations, concerning the leasing of lands on the Colorado River Reservation in Arizona and California.

This amendment will implement the Act of April 30, 1964 (78 Stat. 188), which fixed the beneficial ownership of the Colorado River Reservation in the Colorado River Indian Tribes of the Colorado River Reservation and authorized the Secretary of the Interior to approve leases of reservation lands for such uses and terms as are authorized by the Act of August 9, 1955 (69 Stat. 539), as amended (25 U.S.C. 415, et seq.). Since leasing under the 1955 act is accomplished under 25 CFR Part 131, we feel it is reasonable that the same regulations should be followed in leasing under the 1964 act. On April 23, 1965, the Indian Claims Commission dismissed the petitions in Docket Nos. 185 and 283–A which under section 4 of the act was prerequisite to its becoming effective. The act provided that lands lying west of the present course of the Colorado River and south of section 25, T. 2 S., R. 23 E., San Bernardino base and meridian, California, could be so leased when and if they are determined to be within the reservation.

Interested persons were given an opportunity to submit their comments, suggestions or objections in writing on the

[1] Current locations and addresses of these units may be obtained from the Office of Public Information, Room 3807, 200 C Street SW., Washington, D.C., 20204.

proposed amendment within 30 days from the date of publication of the notice in the FEDERAL REGISTER. During the 30-day period, suggestions were received and considered but no change has been made. The proposed amendment is hereby adopted without change and is set forth below. This amendment shall become effective at the beginning of the thirtieth calendar day following the date of this publication in the FEDERAL REGISTER.

STEWART L. UDALL,
Secretary of the Interior.

NOVEMBER 3, 1965.

Section 131.18 is amended to read as follows:

§ 131.18 Colorado River Reservation.

The Act of April 30, 1964 (78 Stat. 188), fixed the beneficial ownership of the Colorado River Reservation in the Colorado River Indian Tribes of the Colorado River Reservation and authorized the Secretary of the Interior to approve leases of said lands for such uses and terms as are authorized by the Act of August 9, 1955 (69 Stat. 539), as amended (25 U.S.C. 415, et seq.), including the same uses and terms as are permitted thereby on the Agua Caliente (Palm Springs), Dania, Navajo, and Southern Ute Reservations. Regulations in this Part 131 govern leasing under the Act of August 9, 1955. Therefore, Part 131 shall also govern the leasing of lands on the Colorado River Reservation: *Provided, however,* That application of this Part 131 shall not extend to any lands lying west of the present course of the Colorado River and south of section 25 of township 2 south, range 23 east, San Bernardino base and meridian in California and shall not be construed to affect the resolution of any controversy over the location of the boundary of the Colorado River Reservation; *Provided further,* That any of the described lands in California shall be subject to the provisions of this Part 131 when and if determined to be within the reservation.

[F.R. Doc. 65-12072; Filed, Nov. 9, 1965; 8:46 a.m.]

Title 31—MONEY AND FINANCE: TREASURY

Chapter V—Office of Foreign Assets Control, Department of the Treasury

PART 500—FOREIGN ASSETS CONTROL REGULATIONS

Importation of and Dealings in Certain Merchandise

ASIATIC HUMAN HAIR

Section 500.204, Appendix, Item (12), is being amended to reflect a change in the ruling that wigs and certain other items containing Asiatic human hair are manufactures rather than processed forms of Asiatic human hair.

Item (12) is hereby amended to read as follows:

(12) Hair, human, Asiatic includes nets, netting, braids, tresses, buns, wefts, hair pieces, wigs, wiglets, wefted wiglets, chignons, switches, beards, mustaches, and eyelashes.

[SEAL] MARGARET W. SCHWARTZ,
Director,
Office of Foreign Assets Control.

[F.R. Doc. 65-12136; Filed, Nov. 9, 1965; 8:49 a.m.]

Title 50—WILDLIFE AND FISHERIES

Chapter I—Bureau of Sport Fisheries and Wildlife, Fish and Wildlife Service, Department of the Interior

PART 33—SPORT FISHING

Imperial National Wildlife Refuge, Arizona and California

The following special regulation is issued and is effective on date of publication in the FEDERAL REGISTER.

§ 33.5 Special regulations; sport fishing; for individual wildlife refuge areas.

ARIZONA AND CALIFORNIA

IMPERIAL NATIONAL WILDLIFE REFUGE

Sport fishing on the Imperial National Wildlife Refuge, Arizona and California, is permitted on all open waters of the refuge. These open areas, comprising 8,100 acres, are delineated on a map available at refuge headquarters, Yuma, Ariz., and from the Office of the Regional Director, Bureau of Sport Fisheries and Wildlife, Post Office Box 1306, Albuquerque, N. Mex., 87103. Sport fishing shall be in accordance with all applicable State and Federal regulations subject to the following special conditions:

(1) The sport fishing season on the refuge extends from January 1, 1966, through December 31, 1966, except an area of approximately 165 acres in Martinez Lake as posted to be closed during the periods January 1, 1966, through February 28, 1966, and October 1, 1966, through December 31, 1966.

(2) The use of bow and arrow for the taking of carp, buffalo, mullet, and suckers is permitted.

The provisions of these special regulations supplement the regulations which govern fishing on wildlife refuge areas generally which are set forth in Title 50, Part 33, and are effective through December 31, 1966.

CLAUDE F. LARD,
Refuge Manager, Imperial National Wildlife Refuge, Yuma, Ariz.

OCTOBER 22, 1965.

[F.R. Doc. 65-12070; Filed, Nov. 9, 1965; 8:46 a.m.]

PART 33—SPORT FISHING

Wichita Mountains Wildlife Refuge, Okla.

The following special regulation is issued and is effective on date of publication in the FEDERAL REGISTER.

§ 33.5 Special regulations; sport fishing; for individual wildlife refuge areas.

OKLAHOMA

WICHITA MOUNTAINS WILDLIFE REFUGE

Sport fishing on the Wichita Mountains Wildlife Refuge, Cache, Okla. is permitted only in the waters of that portion of the refuge open to the general public for recreational uses. These open waters comprise some 550 acres of lakes and 1 mile of intermittent stream and are delineated on maps available at the refuge headquarters, mail address Cache, Okla., and from the office of the Regional Director, Bureau of Sport Fisheries and Wildlife, Post Office Box 1306, Albuquerque, N. Mex., 87103. Sport fishing shall be in accordance with all applicable State regulations subject to the following special conditions:

(1) Fishing will be with closely attended pole and line only, including rod and reel. Trotlines, throw lines and multiple set lines are not permitted.

(2) The use of outboard motors and boats is permitted only on Lake Elmer Thomas where the provisions of Part 28.21 of this Title and those of the Oklahoma Boat and Water Safety Act as amended govern. The use of boats or other floating devices on all other refuge lakes is prohibited except the use of one-man inner tube type "fishing floaters"; inner tubes and similar safety floats commonly used by swimmers are not considered floating devices for purposes of this regulation.

The provisions of this special regulation supplement the regulations which govern fishing on wildlife refuge areas generally which are set forth in Title 50, Part 33, and are effective January 1, 1966, through December 31, 1966.

JULIAN A. HOWARD,
Refuge Manager, Wichita Mountains Wildlife Refuge, Cache, Okla.

OCTOBER 25, 1965.

[F.R. Doc. 65-12071; Filed, Nov. 9, 1965; 8:46 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 3859]

[Anchorage 063004]

ALASKA

Revocation of Public Land Order No. 1316 of July 23, 1956

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Public Land Order No. 1316 of July 23, 1956, which withdrew the following described lands for use of the Soil Conservation Service, Department of Agriculture, as an administrative site, is hereby revoked:

SEWARD MERIDIAN

T. 6 N., R. 11 W.,
Sec. 31, lots 131, 165, and 166.

The tracts described aggregate 5 acres.

2. Until 10 a.m. on February 1, 1966, the State of Alaska shall have a preferred right to select the lands as provided by the Act of July 28, 1956 (70 Stat. 709; 48 U.S.C. 46–3b), and section 6(g) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339), and the regulations in 43 CFR 2222.9.

3. This order shall not otherwise become effective to change the status of the lands until 10 a.m. on February 1, 1966. At that time they shall be open to the operation of the public land laws generally, including the mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on February 1, 1966, will be considered as simultaneously filed at that time. Those received thereafter will be considered in the order of filing.

Inquiries concerning the lands should be addressed to the Manager, District and Land Office, Bureau of Land Management, Anchorage, Alaska.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

NOVEMBER 1, 1965.

[F.R. Doc. 65–12075; Filed, Nov. 9, 1965; 8:47 a.m.]

Proposed Rule Making

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[26 CFR Part 1]

INCOME TAX

Charitable, Etc., Contributions and Gifts

Notice is hereby given, pursuant to the Administrative Procedure Act, approved June 11, 1946, that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury or his delegate. Prior to the final adoption of such regulations, consideration will be given to any comments or suggestions pertaining thereto which are submitted in writing, in duplicate, to the Commissioner of Internal Revenue, Attention: CC:LR:T, Washington, D.C., 20224, within the period of 30 days from the date of publication of this notice in the FEDERAL REGISTER. Any person submitting written comments or suggestions who desires an opportunity to comment orally at a public hearing on these proposed regulations should submit his request, in writing, to the Commissioner within the 30-day period. In such case, a public hearing will be held, and notice of the time, place, and date will be published in a subsequent issue of the FEDERAL REGISTER. The proposed regulations are to be issued under the authority contained in section 7805 of the Internal Revenue Code of 1954 (68A Stat. 917; 26 U.S.C. 7805).

[SEAL] SHELDON S. COHEN,
Commissioner of Internal Revenue.

In order to conform the Income Tax Regulations (26 CFR Part 1) under sections 170, 381, 545, and 556 of the Internal Revenue Code of 1954 to subsections (a), (c), (d), and (e) of section 209 of the Revenue Act of 1964 (78 Stat. 43), and for certain other purposes, such regulations are amended as follows:

PARAGRAPH 1. Paragraphs (a)(1), (b), and (d) of § 1.170–1 are amended to read as follows:

§ 1.170–1 Charitable, etc., contributions and gifts; allowance of deduction.

(a) *In general*—(1) *General rule.* Any charitable contribution (as defined in section 170(c)) actually paid during the taxable year is allowable as a deduction in computing taxable income, regardless of the method of accounting employed or when pledged. In addition, contributions by corporations may under certain circumstances be deductible even though not paid during the taxable year (see § 1.170–3), and subject to the provisions of section 170(b)(5) and paragraph (g) of § 1.170–2, certain excess charitable contributions made by individuals in taxable years beginning after December 31, 1963, shall be treated as paid in certain succeeding taxable years. The deduction is subject to the limitations of section 170(b) (see §§ 1.170–2 and 1.170–3) and is subject to verification by the district director. For rules relating to the determination of, and the deduction for, amounts paid to maintain certain students as members of the taxpayer's household and treated under section 170(d) as paid for the use of an organization described in section 170(c) (2), (3), or (4), see paragraph (f), of § 1.170–2. For a special rule relating to the computation of the amount of the deduction with respect to a contribution of section 1245 or section 1250 property, see section 170(e).

* * * * *

(b) *Time of making contribution.* Ordinarily a contribution is made at the time delivery is effected. In the case of a check, the unconditional delivery (or mailing) of a check which subsequently clears in due course will constitute an effective contribution on the date of delivery (or mailing). If a taxpayer unconditionally delivers (or mails) a properly endorsed stock certificate to a charitable donee or the donee's agent, the gift is completed on the date of delivery (or mailing, provided that such certificate is received in the ordinary course of the mails). If the donor delivers the certificate to his bank or broker as the donor's agent, or to the issuing corporation or its agent, for transfer into the name of the donee, the gift is completed on the date the stock is transferred on the books of the corporation. For rules relating to a contribution consisting of a future interest in tangible personal property, see paragraph (d)(2) of this section.

* * * * *

(d) *Transfers of income and future interests*—(1) *In general.* A deduction may be allowed for a contribution of an interest in the income from property or an interest in the remainder (but see subparagraph (2) of this paragraph for rules relating to transfers, after December 31, 1963, of future interests in tangible personal property). The income or remainder interest shall be valued according to the tables referred to in paragraph (d) of § 1.170–2. For rules with respect to certain transfers to a trust, see paragraph (d) of § 1.170–2.

(2) *Future interests in tangible personal property.* (i) Except as otherwise provided in subdivision (iii) of this subparagraph, a contribution consisting of a transfer, after December 31, 1963, in a taxable year ending after such date, of a future interest in tangible personal property shall be treated as made only when—

(*a*) All intervening interests in, and rights to the actual possession or enjoyment of, the property have expired, or

(*b*) Are held by persons other than the taxpayer or those standing in a relationship to the taxpayer described in section 267(b) and the regulations thereunder (relating to losses, expenses, and interest with respect to transactions between related taxpayers).

Section 170(f) and this subparagraph have no application in respect of a transfer of an undivided present interest in property. For example, a contribution of an undivided one-quarter interest in a painting with respect to which the donee is entitled to possession during three months of each year shall be treated as made upon the receipt by the donee of a formally executed and acknowledged deed of gift. Section 170(f) and this subparagraph have no application in respect of a transfer of a future interest in intangible personal property or in real property. However, a fixture which is intended to be severed from real property shall be treated as tangible personal property. For example, a contribution of a future interest in a chandelier which is attached to a building is considered a contribution which consists of a future interest in tangible personal property if the transferor intends that it be detached from the building at or prior to the time when the charitable organization's right to possession or enjoyment of the chandelier is to commence. For purposes of section 170(f) and this subparagraph, the term "future interest" has generally the same meaning as it has when used in section 2503, relating to taxable gifts, see § 25.2503–3 of Part 25 of this chapter (Gift Tax Regulations), and such term includes reversions, remainders, and other interests or estates, whether vested or contingent, and whether or not supported by a particular interest or estate, which are limited to commence in use, possession or enjoyment at some future date or time. The term "future interest" includes situations in which a donor purports to give tangible personal property to a charitable organization, but has an understanding, arrangement, agreement, etc. (whether written or oral) with the charitable organization which has the effect of reserving to, or retaining in, such donor a right to the use, possession, or enjoyment of the property.

(ii) The provisions of subdivision (i) of this subparagraph may be illustrated by the following examples:

Example 1. On December 31, 1964, A, an individual who reports his income on the calendar year basis, conveys by deed of gift to a museum title to a painting, but reserves to himself the right to the use, possession, and enjoyment of the painting during his lifetime. At the time of the gift the value of the painting is $90,000. Since the contribution consists of a future interest in tangible personal property in which the donor has retained an intervening interest, no contribution is considered as having been made in 1964.

Example 2. Assume the same facts as in example 1 except that on December 31, 1965, A relinquishes all of his right to the use, possession, and enjoyment of the painting and delivers the painting to the museum. Assuming that the value of the painting has increased to $95,000, A is treated as having made a charitable contribution of $95,000 in 1965.

Example 3. Assume the same facts as example 1 except A dies without relinquishing his right to the use, possession, and enjoyment of the painting. Since A did not relinquish his right to the use, possession, and enjoyment of the property during his life, A is treated as not having made a charitable contribution of the painting for income tax purposes.

Example 4. Assume the same facts as in example 1 except A, on December 31, 1965, transfers his interest in the painting to his son, B. Since the relationship between A and B is one described in section 267(b), no contribution of the remainder interest in the painting is considered as having been made in 1965.

Example 5. Assume the same facts as in example 4. Also assume that on December 31, 1966, B conveys the interest measured by A's life to the museum. B has made a charitable contribution of the present interest in the painting conveyed to the museum (i.e., the life interest measured by A's life expectancy in 1966 valued according to paragraph (f), Table 1, of § 20.2031-7 of Part 20 of this chapter (Estate Tax Regulations). In addition, since all intervening interests in, and rights to the actual possession or enjoyment of the property, have expired, a charitable contribution of the remainder interest is treated as having been made by A in 1966. Such remainder interest shall also be valued according to paragraph (f), Table 1, of § 20.2031-7 of Part 20 of this chapter (Estate Tax Regulations).

(iii) Section 209(f)(3) of the Revenue Act of 1964 (78 Stat. 47) provides an exception to the rule set forth in section 170(f). Pursuant to the exception, section 170(f) and subdivision (i) of this subparagraph shall not apply in the case of a transfer of a future interest in tangible personal property made after December 31, 1963, and before July 1, 1964, where—

(*a*) The sole intervening interest or right is a nontransferable life interest reserved by the donor, or

(*b*) In the case of a joint gift by husband and wife, the sole intervening interest or right is a nontransferable life interest reserved by the donors which expires not later than the death of whichever of such donors dies later.

For purposes of the preceding sentence, the right to make a transfer of the reserved life interest to the donee of the future interest shall not be treated as making a life interest transferable.

* * * * *

PAR. 2. Section 1.170–2 is amended by revising paragraph (b)(1), by redesignating paragraph (b)(5) as paragraph (b)(6), by adding a subparagraph (5) to paragraph (b), and by adding a paragraph (g) at the end of such section. These revised, redesignated, and added provisions read as follows:

§ 1.170–2 Charitable deductions by individuals; limitation.

* * * * *

(b) *Additional 10-percent deduction*—(1) *In general.* In addition to the deduction which may be allowed for contributions subject to the general 20-percent limitation, an individual may deduct charitable contributions made during the taxable year to the organizations specified in section 170(b)(1)(A) to the extent that such contributions in the aggregate do not exceed 10 percent of his adjusted gross income (computed without regard to any net operating loss carryback to the taxable year under section 172). The additional 10-percent deduction may be allowed with respect to contributions to—

(i) A church or a convention or association of churches,

(ii) An educational organization referred to in section 503(b)(2) and defined in subparagraph (3)(i) of this paragraph,

(iii) A hospital referred to in section 503(b)(5) and defined in subparagraph (4)(i) of this paragraph,

(iv) Subject to certain conditions and limitations set forth in subparagraph (4)(ii) of this paragraph, and for taxable years beginning after December 31, 1955, a medical research organization referred to in section 503(b)(5),

(v) Subject to certain limitations and conditions set forth in subparagraph (3)(ii) of this paragraph, and for taxable years beginning after December 31, 1960, an organization referred to in section 503(b)(3) which is organized and operated for the benefit of certain State and municipal colleges and universities,

(vi) For taxable years beginning after December 31, 1963, a governmental unit referred to in section 170(c)(1), and

(vii) Subject to certain limitations and conditions set forth in subparagraph (5) of this paragraph, and for taxable years beginning after December 31, 1963, an organization referred to in section 170(c)(2).

To qualify for the additional 10-percent deduction the contributions must be made "to", and not merely "for the use of", one of the specified organizations. A contribution shall be considered as made "to" an organization referred to in section 170(b)(1)(A) only if the organization is given money or other property absolutely and forever for its immediate, sole, and exclusive use, benefit, and enjoyment. For purposes of the preceding sentence, money or other property may be considered as given absolutely and forever for the immediate, sole, and exclusive use, benefit, and enjoyment of an organization referred to in section 170(b)(1)(A) even though the donor expresses a desire, or specifically provides, that the organization shall use the money or property for a specific purpose in the exercise or performance by such organization of its purpose or function as an organization referred to in section 170(b)(1)(A) or that the organization shall use only the income generated by the donated money or property in the exercise or performance of such purpose or function. Accordingly, the contribution of a future interest in intangible or real property made (or the contribution of a future interest in tangible personal property which, pursuant to the provisions of paragraph (d)(2)(i) of § 1.170–1, is treated as made) after (insert date on which the notice of proposed rule making is published in the FEDERAL REGISTER) shall be considered as made "for the use of" rather than "to" the organization. Further, a contribution to a trust where the beneficiary is an organization referred to in section 170(b)(1)(A) shall be considered as made "for the use of" rather than "to" the organization. A contribution to an organization referred to in section 170(c)(2) (other than an organization specified in subdivisions (i) through (vi) of this subparagraph) which, for taxable years beginning after December 31, 1963, is not "publicly supported" under the rules of subparagraph (5) of this paragraph will not qualify for the additional 10-percent deduction even though such organization makes the contribution available to an organization which is specified in section 170(b)(1)(A). The computation of this additional deduction is not necessary unless the total contributions paid during the taxable year are in excess of the general 20-percent limitation. Where the total contributions exceed the 20-percent limitation, the taxpayer should first ascertain the amount of charitable contributions subject to the 10-percent limitation, and any excess over the 10-percent limitation should then be added to all other contributions and limited by the 20-percent limitation. For provisions relating to a carryover of certain charitable contributions made by individuals, see paragraph (g) of this section.

* * * * *

(5) *Corporation, trust, or community chest, fund, or foundation*—(i) *In general.* (*a*) For taxable years beginning after December 31, 1963, gifts made to a corporation, trust, or community chest, fund, or foundation, referred to in section 170(c)(2) (other than an organization specified in subparagraph (1)(i) through (vi) of this paragraph), may be taken into account in computing the additional 10-percent limitation, provided the organization is a "publicly supported" organization. For purposes of this subparagraph, an organization is "publicly supported" if it normally receives a substantial part of its support from a governmental unit referred to in section 170(c)(1) or from direct or indirect contributions from the general public.

(*b*) An important factor in determining whether an organization normally receives a substantial part of its support from "direct or indirect contributions from the general public" is the extent to which the organization derives its support from or through voluntary contributions made by persons representing the general public. Except in unusual situations (particularly in the case of newly created organizations), an organization is not "publicly supported" if it receives contributions only from the members of a single family or from a few individuals.

(ii) *Special rules and meaning of terms.* (*a*) For purposes of this subparagraph, the term "support", except as otherwise provided in (*b*) of this subdivision (ii), means all forms of support including (but not limited to) contributions received by the organization, investment income (such as, interest, rents, royalties, and dividends), and net income from unrelated business activities whether or not such activities are carried on regularly as a trade or business.

(*b*) The term "support" does not include—

(*1*) Any amounts received from the exercise or performance by an organization of its charitable, educational, or other purpose or function constituting the basis for its exemption under section 501(a). In general, such amounts include amounts received from any activity the conduct of which is substantially related to the furtherance of such purpose or function (other than through the production of income).

(*2*) Any gain upon the sale or exchange of property which would be considered under any section of the Code as gain from the sale or exchange of a capital asset.

(*3*) Contributions of services for which a deduction is not allowable.

(*c*) The term "support from a governmental unit" includes—

(*1*) Any amounts received from a governmental unit including donations or contributions and amounts received in connection with a contract entered into with a governmental unit for the performance of services or in connection with a government research grant, provided such amounts are not excluded from the term "support" under (*b*) of this subdivision (ii). For purposes of (*b*)(*1*) of this subdivision (ii), an amount paid by a governmental unit to an organization is not received from the exercise or performance of its charitable, educational, or other purpose or function constituting the basis for its exemption under section 501(a) if the purpose of the payment is to enable the organization to provide a service to, or maintain a facility for, the direct benefit of the public, as, for example, the maintenance of library facilities which are open to the public.

(*2*) Tax revenues levied for the benefit of the organization and either paid to or expended on behalf of the organization.

(*3*) The value of services or facilities (exclusive of services or facilities generally furnished, without charge, to the public) furnished by a governmental unit to the organization without charge, as, for example, where a city pays the salaries of personnel used to guard a museum, art gallery, etc., or provides, rent free, the use of a building. However, the term does not include the value of any exemption from Federal, State, or local tax or any similar benefit.

(*d*) The term "indirect contributions from the general public" includes contributions received by the organization from organizations which normally receive a substantial part of their support from direct contributions from the general public.

(iii) *Determination of whether organization is "publicly supported"—*(*a*) *In general.* No single test which would be appropriate in every case may be prescribed for determining whether a corporation, trust, or community chest, fund, or foundation, referred to in section 170(c)(2), is "publicly supported". For example, since the statutory test is whether the organization normally receives a substantial part of its support from the prescribed sources, a test which would be appropriate in the case of an organization which has been in operation for a number of years would not necessarily be appropriate in the case of a newly established organization. The determination of whether an organization is "publicly supported" depends on the facts and circumstances in each case. Thus, although a "mechanical test" is set forth in (*b*) of this subdivision (iii), such test is not an exclusive test. Accordingly, an organization which does not qualify as a "publicly supported" organization by application of the "mechanical test" may qualify as a "publicly supported" organization on the basis of the facts and circumstances in its case. For provisions relating to the facts and circumstances test, see (*c*) of this subdivision (iii).

(*b*) *Mechanical test.* An organization will be considered to be a "publicly supported" organization for its current taxable year and the taxable year immediately succeeding its current year, if, for the four taxable years immediately preceding the current taxable year, the total amount of the support which the organization receives from governmental units, from donations made directly or indirectly by the general public, or from a combination of these sources equals 33⅓ percent or more of the total support of the organization for such four taxable years. The rule in the preceding sentence does not apply if there are substantial changes in the organization's character, purposes, or methods of operation in the current year, and does not apply in respect of the immediately succeeding taxable year if such changes occur in such year. In determining whether the 33⅓-percent-of-support test is met, contributions by an individual, trust, or corporation shall be taken into account only to the extent that the total amount of the contributions by any such individual, trust, or corporation during the four-taxable-year period does not exceed 1 percent of the organization's total support for such four taxable years. In applying the 1-percent limitation, all contributions made by a donor and by any person or persons standing in a relationship to the donor which is described in section 267(b) and the regulations thereunder shall be treated as made by one person. The 1-percent limitation shall not apply to support from governmental units referred to in section 170(c)(1) or to contributions from "publicly supported" organizations. A national organization which carries out its purposes through local chapters with which it has an identity of aims and purposes may, for purposes of determining whether the organization and the local chapters meet the mechanical test, make the computation on an aggregate basis.

Example. For the years 1964 through 1967, X, an organization referred to in section 170(c)(2), received support (as defined in subdivision (ii) of this subparagraph) of $600,000 from the following sources:

Investment income	$300,000
City Y (a governmental unit referred to in section 170(c)(1))	40,000
United Fund (an organization referred to in section 170(c)(2) which is "publicly supported")	40,000
Contributions	220,000
Total support	$600,000

For the years 1964 through 1967, X received in excess of 33⅓ percent of its support from a governmental unit referred to in section 170(c)(1) and from direct and indirect contributions from the general public computed as follows:

33⅓ percent of total support	$200,000
Support from a governmental unit referred to in section 170(c)(1)	40,000
Indirect contributions from the general public (United Fund)	40,000
Contributions by various donors (no one donor having made contributions which total in excess of $6,000—1 percent of total support)	50,000
12 contributions (each in excess of $6,000—1 percent of total support) 12×$6,000	72,000
	$202,000

Since the amount of X's support from governmental units referred to in section 170(c)(1) and from direct and indirect contributions from the general public in the years 1964 through 1967 is in excess of 33⅓ percent of X's total support for such four taxable years, X is considered a "publicly supported" organization with respect to contributions made to it during 1968 and 1969 without regard to whether X receives 33⅓ percent of its support during 1968 or 1969 from such sources (assuming that there are no substantial changes in X's character, purposes, or methods of operation).

(*c*) *Facts and circumstances test.* (*1*) A corporation, trust, or community chest, fund or foundation referred to in section 170(c)(2) which does not qualify as a "publicly supported" organization under the mechanical test described in (*b*) of this subdivision (iii) (including an organization which has not been in existence for a sufficient length of time to make such test applicable) may be a "publicly supported" organization on the basis of all the facts and circumstances in its case.

(*2*) In applying the facts and circumstances test, no single factor or characteristic is, in itself, conclusive. However, the following characteristics indicate that an organization is "publicly supported":

(*i*) The organization is constituted so as to receive and attract contributions, directly or indirectly, from a wide segment of the public. An organization is so constituted if it can establish that it receives contributions from a number of persons in the community in which it

operates; that pursuant to its organizational structure and method of operation it makes bona fide solicitations for broad based public support, or, in the case of a newly created organization, that its organizational structure and method of operation are such as to require bona fide solicitations for broad based public support; that it is included among those organizations receiving support from a community chest or similar public federated fund raising organization, such as a United Fund or United Appeal; or that it has a substantial number of members (in relation to the community it serves and its total support) who pay annual membership dues.

(*ii*) The organization has a governing body (whether designated in the organization's by-laws, certificate of incorporation, deed of trust, etc. as a Board of Directors, Board of Trustees, etc.) which is comprised of public officials, of individuals chosen by public officials acting in their capacity as such, etc., as distinguished from individuals selected by a limited number of donors to the organization or by any person or persons standing in a relationship to such donors which is described in section 267(b) and the regulations thereunder.

(*iii*) The organization is required to make available and, in the case of other than newly created organizations, does make available at regular intervals to the public financial reports of its operations (exclusive of any information or other return required to be filed with a governmental unit). An organization shall be considered as making financial reports of its operations available to the public if it publishes a financial report in a newspaper which is widely circulated in the community in which the organization operates, or if it makes a bona fide dissemination of a brochure containing a financial report.

(*iv*) If the organization is of a type which generally holds open to the public its buildings (such as a museum) or performances conducted by it (symphonic orchestra), the organization actually follows such practice, or, in the case of a newly created organization, is so organized as to require that it be open to the public.

(3) The application of this subdivision (*c*) may be illustrated by the following examples:

Example (*1*). M, a community trust, is an organization referred to in section 170(c)(2). In 1950, M was organized in the X Community by several leading trusts and financial institutions with the purpose of serving permanently the educational and charitable needs of the X Community by providing a means by which the public may establish funds or make gifts of various amounts to established funds which are administered as an aggregate fund with provision for distribution of income and, in certain cases, principal for educational or charitable purposes by a single impartial committee. The M Organization, by distribution of pamphlets to the public through participating trustee banks, actively solicits members of the X Community and other concerned parties to establish funds within the trust or to contribute to established funds within the trust. Under the declaration of trust, a contributor to a fund may suggest or request (but not require) that his contribution be used in respect of his preferred charitable, educational, or other benevolent purpose, and distributions of the income from the fund, and in certain cases the principal, will be made by the Distribution Committee with regard to such request unless changing conditions make such purpose unnecessary, undesirable, impractical, or impossible in which case income and (where the contributor has so specified) principal will be distributed by the Distribution Committee in order to more effectively promote the public welfare. Where a contributor has not expressed a desire as to a charitable, educational, or other benevolent purpose, the Distribution Committee will distribute the entire annual income from the fund to such a purpose agreed upon by such committee. The Distribution Committee is composed of representatives of the community chosen one each by the X Bar Association, the X Medical Society, the mayor of X Community, the judge of the highest X Court, and the president of the X College, and two representatives chosen by the participating trustee banks. There are a number of separate funds within the trust administered by several participating banks. M has consistently distributed or used its entire annual income (after expenses of the type referred to in section 212 (1) and (2)) for projects with purposes described in section 170(c)(2)(B) from which members of the public may benefit or to other organizations described in section 170(b)(1)(A) which so distribute or use such income. Through its participating trustee banks, M annually makes available to the public a brochure containing a financial statement of its operations including a list of all receipts and disbursements. Under the facts and circumstances, M is a "publicly supported" organization.

Example (*2*). Assume the same facts as in example (1) except that M has been in existence for only one year and only two contributors have established funds within the trust. The Distribution Committee has been chosen and is required by the governing declaration of trust to make annual distribution of the entire income (after expenses of the type referred to in section 212 (1) and (2)) of the trust to projects with purposes described in section 170(c)(2)(B) from which members of the public may benefit or to other organizations described in section 170(b)(1)(A) which so distribute or use such income. The declaration of trust and other governing instruments require (1) that the M Community Trust actively solicit contributions from members of the X Community through dissemination of literature and other public appeals, and (2) that it make available to the members of the X Community, annual financial reports of its operations. Under the facts and circumstances, M is a "publicly supported" organization.

Example (*3*). N, an art museum, is an organization referred to in section 170(c)(2). In 1930, N was founded in Y City by the members of a single family to collect, preserve, interpret, and display to the public important works of art. Since 1945, members of the founding family have annually constituted less than one sixth of N's governing body, the Board of Trustees. The remaining board members are representative citizens of Y City and are not appointed or selected by, or on behalf of, members of the founding family. N solicits contributions from the general public and for each of its four most recent taxable years has received total contributions in small sums (less than $100) in excess of $10,000. For N's four most recent taxable years, investment income from several large endowment funds has constituted 75 percent of its total support. N normally expends its entire income (after expenses of the type referred to in section 212 (1) and (2)) for purposes described in section 170(c)(2)(B). N has, for the entire period of its existence, been open to the public and more than 300,000 people (from the Y Community and elsewhere) have visited the museum in each of its four most recent taxable years. N annually publishes a financial report of its operation in the Y City newspaper. Since a majority of N's governing body are representatives of Y City and contributions are received from a wide segment of the public, N Museum is a "publicly supported" organization.

Example (*4*). In 1960, the O Philharmonic Orchestra was organized in Z City through the combined efforts of a local music society and a local women's club to present to the public a wide variety of musical programs intended to foster music appreciation in the community. O is an organization referred to in section 170(c)(2). The orchestra is composed of professional musicians who are paid by the association. Twelve performances, open to the public, are scheduled each year. The admission charge for each of these performances is $3. In addition, several performances are staged annually without charge. In each of its four most recent taxable years, O has received separate contributions of $10,000 from A, B, C, and D (not members of a single family) and support of $5,000 from the Z Community Chest, a public federated fund raising organization operating in Z City. O is governed by a Board of Directors comprised of five individuals. A local college, a local music society, a local women's club, the mayor of Z City, and the Z Chamber of Commerce each choose one member of the Board of Directors. A, one of the large contributors, served on the Board of Directors for two of O's four most recent taxable years solely as a result of her association with the local women's club. O annually files a financial report with Z City which makes such report available for public inspection. For each of its four most recent taxable years, O has used all of the amounts received through admission charges and contributions in presenting the annual program. Since O's governing body is comprised of representatives of Z City, support is received from a public federated fund raising organization, and all its performances are open to the public, O is a "publicly supported" organization.

Example (*5*). P is a newly created organization of a type referred to in section 170(c)(2). P's charter requires that its governing body be selected by public officials and by public organizations representing the community in which it operates. Pursuant to P's charter, a continuing fund raising campaign which will encompass the entire community has been planned. P's charter requires that its entire annual income be distributed to or used for projects with purposes described in section 170(c)(2)(B) and that it make available to the public annual financial reports of its operations. By reason of the express provisions of P's charter relating to its organizational structure and prescribed methods of operation, P is a "publicly supported" organization.

(6) *Examples.* The application of the special 10-percent limitation and the general 20-percent limitation on contributions by individuals may be illustrated by the following examples:

Example (1). A, an individual, reports his income on the calendar year basis and for the year 1957 has an adjusted gross income of $10,000. During 1957 he made the following charitable contributions:

1. Contributions qualifying for the additional 10-percent deduction under section 170(b)(1)(A)	$2,400	
2. Other charitable contributions	700	
3. Total contributions paid	3,100	
		Deductible contributions
4. Contributions qualifying for the additional 10-percent deduction under section 170(b)(1)(A)	2,400	
5. Special limitation under section 170(b)(1)(A): 10 percent of adjusted gross income	1,000	
6. Deductible amount: line 4 or line 5, whichever is the lesser		$1,000
7. Excess of line 4 over line 5	1,400	
8. Add: Other charitable contributions	700	
9. Contributions subject to the general 20-percent limitation under section 170(b)(1)(B)	2,100	
10. Limitation under section 170(b)(1)(B): 20 percent of the adjusted gross income	2,000	
11. Deductible amount: line 9 or line 10, whichever is the lesser		2,000
12. Contributions not deductible	100	
13. Total deduction for contributions		3,000

Example (2). B, an individual, reports his income on the calendar year basis and for the year 1957 has an adjusted gross income of $10,000. During 1957 he made the following charitable contributions:

1. Contributions qualifying for the additional 10-percent deduction under section 170(b)(1)(A)	$700	
2. Other charitable contributions	2,400	
3. Total contributions paid	3,100	
4. Contributions qualifying for the additional 10-percent deduction under section 170(b)(1)(A)	700	
5. Limitation described in section 170(b)(1)(A): 10 percent of the adjusted gross income	1,000	
6. Deductible amount: line 4 or line 5, whichever is the lesser		$700
7. Excess of line 4 over line 5	0	
8. Add: Other charitable contributions	2,400	
9. Contributions subject to the general 20-percent limitation under section 170(b)(1)(B)	2,400	
10. Limitation under section 170(b)(1)(B): 20 percent of the adjusted gross income	2,000	
11. Deductible amount: line 9 or line 10, whichever is the lesser		2,000
12. Contributions not deductible	400	
13. Total deduction for contributions		2,700

* * * * * * *

(g) *Charitable contributions carryover of individuals*—(1) *Computation of excess charitable contributions made in contribution year.* Subject to certain conditions and limitations, the excess of—

(i) The amount of the charitable contributions made by an individual in a taxable year beginning after December 31, 1963 (hereinafter in this paragraph referred to as the "contribution year"), to organizations specified in section 170(b)(1)(A) (see paragraph (b) of this section), over

(ii) Thirty percent of his adjusted gross income (computed without regard to any net operating loss carryback to such year under section 172) for such contribution year,

shall be treated as a charitable contribution paid by him to an organization specified in section 170(b)(1)(A) and paragraph (b) of this section, relating to the additional 10-percent deduction, in each of the 5 taxable years immediately succeeding the contribution year in order of time. (For provisions requiring a reduction of such excess, see subparagraph (5) of this paragraph.) The provisions of this subparagraph apply even though the taxpayer elects under section 144 to take the standard deduction in the contribution year instead of itemizing the deductions (other than those specified in sections 62 and 151) allowable in computing taxable income for the contribution year. No excess charitable contribution carryover shall be allowed with respect to contributions "for the use of" rather than "to" organizations described in section 170(b)(1)(A) and paragraph (b) of this section or with respect to contributions made "to" or "for the use of" organizations which are not described in such sections. The provisions of section 170(b)(5) and this paragraph are not applicable in the case of estates or trusts, see section 642(c), relating to deductions for amounts paid or permanently set aside for a charitable purpose, and the regulations thereunder. The provisions of this subparagraph may be illustrated by the following examples:

Example (1). Assume that H and W (husband and wife) have adjusted gross income for 1964 of $50,000 and for 1965 of $40,000 and file a joint return for each year. Assume further that in 1964 they contribute $16,500 to a church and $1,000 to X (an organization not referred to in section 170(b)(1)(A)) and in 1965 contribute $11,000 to the church and $400 to X. They may claim a charitable contribution deduction of $15,000 in 1964, and the excess of $16,500 (contribution to the church) over $15,000 (30 percent of adjusted gross income) or $1,500 constitutes a charitable contribution carryover which shall be treated as a charitable contribution paid by them to an organization referred to in section 170(b)(1)(A) in each of the 5 succeeding taxable years in order of time. No carryover is allowed with respect to the $1,000 contribution made to X in 1964. Since 30 percent of their adjusted gross income for 1965 ($12,000) exceeds the charitable contributions of $11,000 made by them in 1965 to organizations referred to in section 170(b)(1)(A) (computed without regard to section 170(b)(5) and this paragraph) the portion of the 1964 carryover equal to such excess of $1,000 ($12,000 minus $11,000) is treated, pursuant to the provisions of subparagraph (2) of this paragraph, as paid to a section 170(b)(1)(A) organization in 1965; the remaining $500 constitutes an unused charitable contribution carryover. No carryover is allowed with respect to the $400 contribution made to X in 1965.

Example (2). Assume the same facts as in example (1) except that H and W have adjusted gross income for 1965 of $42,000. Since 30 percent of their adjusted gross income for 1965 ($12,600) exceeds by $1,600 the charitable contribution of $11,000 made by them in 1965 to organizations referred to in section 170(b)(1)(A) (computed without regard to section 170(b)(5) and this paragraph), the full amount of the 1964 carryover of $1,500 is treated, pursuant to the provisions of subparagraph (2) of this paragraph, as paid to a section 170(b)(1)(A) organization in 1965. They may also claim a charitable contribution of $100 ($12,600 −$12,500 ($11,000+$1,500)) with respect to the gift to X in 1965. No carryover is allowed with respect to the $300 ($400−$100) of the contribution to X which is not deductible in 1965.

(2) *Determination of amount treated as paid in taxable years succeeding contribution year.* Notwithstanding the provisions of subparagraph (1) of this paragraph, the amount of the excess computed in accordance with the provisions of subparagraphs (1) and (5) of this paragraph which is to be treated as paid in any one of the 5 taxable years immediately succeeding the contribution year to an organization specified in section 170(b)(1)(A) shall not exceed the lesser of the amount computed under subdivision (i) or (ii) of this subparagraph:

(i) The amount by which (*a*) 30 percent of the taxpayer's adjusted gross income for such succeeding taxable year (computed without regard to any net operating loss carryback to such succeeding taxable year under section 172) exceeds (*b*) the sum of (*1*) the charitable contributions actually made (computed without regard to the provisions of section 170(b)(5) and this paragraph) by the taxpayer in such succeeding taxable year to organizations referred to in section 170(b)(1)(A), and (2) the charitable contributions made to organizations referred to in section 170(b)(1)(A) in taxable years (excluding any taxable year beginning before January 1, 1964) preceding the contribution year which, pursuant to the provisions of section 170(b)(5) and this paragraph, are treated as having been paid to an organization referred to in section 170(b)(1)(A) in such succeeding year.

(ii) In the case of the first taxable year succeeding the contribution year, the amount of the excess charitable contribution in the contribution year, computed under subparagraphs (1) and (5) of this paragraph. In the case of the second, third, fourth, and fifth succeeding taxable years, the portion of the excess charitable contribution in the contribution year (computed under subparagraphs (1) and (5) of this paragraph) which has not been treated as paid to a section 170(b)(1)(A) organization in a year intervening between the contribution year and such succeeding taxable year.

If a taxpayer, in any one of the four taxable years succeeding a contribution year, elects under section 144 to take the standard deduction in the amount provided for in section 141 instead of itemizing the deductions (other than those specified in sections 62 and 151) allowable in computing taxable income, there shall be treated as paid (but not allowable as a deduction) in the standard deduction year the amount determined under the preceding sentence. The provisions of this subparagraph may be illustrated by the following examples:

Example (1). Assume that B has adjusted gross income for 1966 of $20,000 and for 1967 of $30,000. Assume further that in 1966 B contributed $8,000 to a church and in 1967 he contributes $7,500 to the church. B may claim a charitable contribution deduction of $6,000 in 1966, and the excess of $8,000 (contribution to the church) over $6,000 (30 percent of B's adjusted gross income) or $2,000 constitutes a charitable contribution carryover which shall be treated as a charitable contribution paid by B to an organization referred to in section 170(b)(1)(A) in the 5 taxable years succeeding 1966 in order of time. (B made no excess contributions in 1964 or 1965 which should be treated as paid in years succeeding 1964 or 1965.) B may claim a charitable contribution deduction of $9,000 in 1967. Such $9,000 consists of the $7,500 contribution to the church in 1967 and $1,500 carried over from 1966 and treated as a charitable contribution paid to a section 170(b)(1)(A) organization in 1967. The $1,500 contribution treated as paid in 1967 is computed as follows:

1966 excess contributions		$2,000
30 percent of B's adjusted gross income for 1967		9,000
Less:		
Contributions actually made in 1967 to section 170(b)(1)(A) organizations	$7,500	
Contributions made to section 170(b)(1)(A) organizations in taxable years prior to 1966 treated as having been paid in 1967	0	7,500
		1,500
Amount of 1966 excess treated as paid in 1967—the lesser of $2,000 (1966 excess contributions) or $1,500 (30 percent of adjusted gross income for 1967 ($9,000) over the section 170(b)(1)(A) contributions actually made in 1967 ($7,500) and the section 170(b)(1)(A) contributions made in years prior to 1966 treated as having been paid in 1967 (0))		1,500

If the excess contributions made by B in 1966 had been $1,000 instead of $2,000, then, for purposes of this example, the amount of the 1966 excess treated as paid in 1967 would be $1,000 rather than $1,500.

Example (2). Assume the same facts as in example (1), and, in addition, that B has adjusted gross income for 1968 of $10,000 and for 1969 of $20,000. Assume further with respect to 1968 that B elects under section 144 to take the standard deduction in computing taxable income and that his actual contributions to organizations specified in section 170(b)(1)(A) are $300. Assume further with respect to 1969, that B itemizes his deductions which include a $5,000 contribution to a church. B's deductions for 1968 are not increased by reason of the $500 available as a charitable contribution carryover from 1966 (excess contributions made in 1966 ($2,000) less the amount of such excess treated as paid in 1967 ($1,500)) since B elected to take the standard deduction in 1968. However, for purposes of determining the amount of the excess charitable contributions made in 1966 which is available as a carryover to 1969, B is required to treat such $500 as a charitable contribution paid in 1968—the lesser of $500 or $2,700 (30 percent of adjusted gross income ($3,000) over contributions actually made in 1968 to section 170(b)(1)(A) organizations ($300)). Therefore, even though the $5,000 contribution made by B in 1969 to a church does not amount to 30 percent of B's adjusted gross income for 1969 (30 percent of $20,000=$6,000), B may claim a charitable contribution deduction of only the $5,000 actually paid in 1969 since the entire excess charitable contribution made in 1966 ($2,000) has been treated as paid in 1967 ($1,500) and 1968 ($500).

Example (3). Assume the following factual situation for C who itemizes his deductions in computing taxable income for each of the years set forth in the example:

	1964	1965	1966	1967	1968
Adjusted gross income	$10,000	$7,000	$15,000	$10,000	$9,000
Contributions to section 170(b)(1)(A) organizations (no other contributions)	4,000	3,000	5,000	1,000	1,500
Allowable charitable contributions deductions computed without regard to carryover of contributions	3,000	2,100	4,500	1,000	1,500
Excess contributions for taxable year to be treated as paid in 5 succeeding taxable years	1,000	900	500	0	0

Since C's contributions in 1967 and 1968 to section 170(b)(1)(A) organizations are less than 30 percent of his adjusted gross income for such years, the excess contributions for 1964, 1965, and 1966 are treated as having been paid to section 170(b)(1)(A) organizations in 1967 and 1968 as follows:

1967

Contribution year	*Total excess*	*Less: Amount treated as paid in year prior to 1967*	*Available charitable contribution carryovers*
1964	$1,000	0	$1,000
1965	900	0	900
1966	500	0	500
			2,400
30 percent of B's adjusted gross income for 1967			3,000
Less: Charitable contributions made in 1967 to section 170(b)(1)(A) organizations			1,000
			2,000
Amount of excess contributions treated as paid in 1967—the lesser of $2,400 (available carryovers to 1967) or $2,000 (excess of 30 percent of adjusted gross income ($3,000) over contributions actually made in 1967 to section 170(b)(1)(A) organizations ($1,000))			2,000

1968

Contribution year	*Total excess*	*Less: Amount treated as paid in year prior to 1968*	*Available charitable contribution carryovers*
1964	$1,000	$1,000	0
1965	900	900	0
1966	500	100	$400
1967	0	0	0
			400
30 percent of B's adjusted gross income for 1968			2,700
Less: Charitable contributions made in 1968 to section 170(b)(1)(A) organizations			1,500
			1,200
Amount of excess contributions treated as paid in 1968—the lesser of $400 (available carryovers to 1968) or $1,200 (30 percent of adjusted gross income $2,700) over contributions actually made in 1968 to section 170(b)(1)(A) organizations ($1,500)			400

(3) *Effect of net operating loss carryback to contribution year.* The amount of the excess contribution for a contribution year (computed as provided in subparagraphs (1) and (5) of this paragraph) shall not be increased because a

net operating loss carryback is available as a deduction in the contribution year. In addition, in determining (under the provisions of section 172(b)(2)) the amount of the net operating loss for any year subsequent to the contribution year which is a carryback or carryover to taxable years succeeding the contribution year, the amount of contributions made to organizations referred to in section 170(b)(1)(A) shall be limited to the amount of such contributions which did not exceed 30 percent of the donor's adjusted gross income (computed without regard to any net operating loss carryback or any of the modifications referred to in section 172(d)) for the contribution year.

(4) *Effect of net operating loss carryback to taxable years succeeding the contribution year.* The amount of the charitable contribution from a preceding taxable year which is treated as paid (as provided in subparagraph (2) of this paragraph) in a current taxable year (hereinafter referred to in this subparagraph as the "deduction year") shall not be reduced because a net operating loss carryback is available as a deduction in the deduction year. In addition, in determining (under the provisions of section 172(b)(2)) the amount of the net operating loss for any year subsequent to the deduction year which is a carryback or carryover to taxable years succeeding the deduction year, the amount of contributions made to organizations referred to in section 170(b)(1)(A) in the deduction year shall be limited to the amount of such contributions which were actually made in such year and those which were treated as paid in such year which did not exceed 30 percent of the donor's adjusted gross income (computed without regard to any net operating loss carryback or any of the modifications referred to in section 172(d)) for the deduction year.

(5) *Reduction of excess contributions.* An individual having a net operating loss carryover from a prior taxable year which is available as a deduction in a contribution year must apply the special rule of section 170(b)(5)(B) and this subparagraph in computing the excess described in subparagraph (1) of this paragraph for such contribution year. In determining the amount of excess charitable contributions that shall be treated as paid in each of the 5 taxable years succeeding the contribution year, the excess charitable contributions described in such subparagraph (1) must be reduced by the amount by which such excess reduces taxable income (for purposes of determining the portion of a net operating loss which shall be carried to taxable years succeeding the contribution year under the second sentence of section 172(b)(2)) and increases the net operating loss which is carried to a succeeding taxable year. In reducing taxable income under the second sentence of section 172(b)(2), an individual who has made charitable contributions in the contribution year to both organizations specified in section 170(b)(1)(A) (see paragraph (b) of this section) and to organizations not so specified must first deduct contributions made to the section 170(b)(1)(A) organizations from his adjusted gross income computed without regard to his net operating loss deduction before any of the contributions made to organizations not specified in section 170(b)(1)(A) may be deducted from such adjusted gross income. Thus, if the excess of the contributions made in the contribution year to organizations specified in section 170(b)(1)(A) over the amount deductible in such contribution year is utilized to reduce taxable income (under the provisions of section 172(b)(2)) for such year, thereby serving to increase the amount of the net operating loss carryover to a succeeding year or years, no part of the excess charitable contributions made in such contribution year shall be treated as paid in any of the 5 immediately succeeding taxable years. If only a portion of the excess charitable contributions is so used, the excess charitable contributions will be reduced only to that extent. The provisions of this subparagraph may be illustrated by the following examples:

Example (1). B, an individual, reports his income on the calendar year basis and for the year 1964 has adjusted gross income (computed without regard to any net operating loss deduction) of $50,000. During 1964 he made charitable contributions in the amount of $20,000 all of which were to organizations specified in section 170(b)(1)(A). B has a net operating loss carryover from 1963 of $50,000. In the absence of the net operating loss deduction B would have been allowed a deduction for charitable contributions of $15,000. After the application of the net operating loss deduction, B is allowed no deduction for charitable contributions, and there is (before applying the special rule of section 170(b)(5)(B) and this subparagraph) a tentative excess charitable contribtuion of $20,000. For purposes of determining the net operating loss which remains to be carried over to 1965, B computes his taxable income for his prior taxable year, 1964, under section 172(b)(2) by deducting the $15,000 charitable contribution. After the $50,000 net operating loss carryover is applied against the $35,000 of taxable income for 1964 (computed in accordance with section 172(b)(2), assuming no deductions other than the charitable contribution deduction are applicable in making such computation), there remains a $15,000 net operating loss carryover to 1965. Since the application of the net operating loss carryover of $50,000 from 1963 reduces the 1964 adjusted gross income (for purposes of determining 1964 tax liability) to zero, no part of the $20,000 of charitable contributions in that year is deductible under section 170(b)(1). However, in determining the amount of the excess charitable contributions which shall be treated as paid in taxable years 1965, 1966, 1967, 1968, 1969, the $20,000 must be reduced by the portion thereof ($15,000) which was used to reduce taxable income for 1964 (as computed for purposes of the second sentence of section 172(b)(2)) and which thereby served to increase the net operating loss carryover to 1965 from zero to $15,000.

Example (2). Assume the same facts as in example (1), except that B's total contributions of $20,000 made during 1964 consisted of $15,000 to organizations specified in section 170(b)(1)(A) and $5,000 to organizations not so specified. Under these facts there is a tentative excess charitable contribution of $15,000, rather than $20,000 as in example (1). For purposes of determining the net operating loss which remains to be carried over to 1965, B computes his taxable income for his prior taxable year, 1964, under section 172(b)(2) by deducting the $15,000 of charitable contributions made to organizations specified in section 170(b)(1)(A). Since the excess charitable contribution of $15,000 determined in accordance with subparagraph (1) of this paragraph was used to reduce taxable income for 1964 (as computed for purposes of the second sentence of section 172(b)(2)) and thereby served to increase the net operating loss carryover to 1965 from zero to $15,000, no part of such excess charitable contributions made in the contribution year shall be treated as paid in any of the five immediately succeeding taxable years. No carryover is allowed with respect to the $5,000 of charitable contributions made in 1964 to organizations not specified in section 170(b)(1)(A).

(6) *Change in type of return filed—*(i) *From joint return to separate returns.* If a husband and wife—

(*a*) Make a joint return for a contribution year and compute an excess charitable contribution for such year in accordance with the provisions of subparagraphs (1) and (5) of this paragraph, and

(*b*) Make separate returns for one or more of the 5 taxable years immediately succeeding such contribution year,

any excess charitable contribution for the contribution year which is unused at the beginning of the first such taxable year for which separate returns are filed shall be allocated between the husband and wife. For purposes of the allocation, a computation shall be made of the amount of any excess charitable contribution which each spouse would have computed in accordance with subparagraphs (1) and (5) of this paragraph if separate returns (rather than a joint return) had been filed for the contribution year. The portion of the total unused excess charitable contribution for the contribution year allocated to each spouse shall be an amount which bears the same ratio to such unusued excess charitable contribution as such spouse's excess contribution (based on the separate return computation) bears to the total excess contributions of both spouses (based on the separate return computation). To the extent that a portion of the amount allocated to either spouse in accordance with the foregoing provisions of this subdivision is not treated in accordance with the provisions of subparagraph (2) of this paragraph as a charitable contribution paid to an organization specified in section 170(b)(1)(A) in the taxable year in which a separate return or separate returns are filed, each spouse shall for purposes of subparagraph (2) of this paragraph treat his respective unused portion as the available charitable contributions carryover to the next succeeding taxable year in which the joint excess charitable contribution may be treated as paid in accordance with subparagraph (1) of this paragraph. If such husband and wife make a joint return in one of the five taxable years im-

mediately succeeding the contribution year with respect to which a joint excess charitable contribution is computed and following the first succeeding year in which such husband and wife filed a separate return or separate returns, the amounts allocated to each spouse in accordance with this subdivision for such first year reduced by the portion of such amounts treated as paid to an organization specified in section 170(b)(1)(A) in such first year and in any taxable year intervening between such first year and the succeeding taxable year in which the joint return is filed shall be aggregated for purposes of determining the amount of the available charitable contributions carryover to such succeeding taxable year. The provisions of this subdivision (i) may be illustrated by the following example:

Example. H and W file joint returns for 1964, 1965, and 1966, and in 1967 they file separate returns. In each such year H and W itemize their deductions in computing taxable income. Assume the following factual situation with respect to H and W for 1964:

1964	*H*	*W*	*Joint return*
Adjusted gross income	$50,000	$40,000	$90,000
Contributions to section 170(b)(1)(A) organization (no other contributions)	27,000	20,000	47,000
Allowable charitable contribution deductions	15,000	12,000	27,000
Excess contributions for taxable year to be treated as paid in 5 succeeding taxable years	12,000	8,000	20,000

The joint excess charitable contribution of $20,000 is to be treated as having been paid to a section 170(b)(1)(A) organization in the five succeeding taxable years. Assume that in 1965, the portion of such excess treated as paid by H and W is $3,000 and that in 1966, the portion of such excess treated as paid is $7,000. Thus, the unused portion of the excess charitable contribution made in the contribution year is $10,000 ($20,000 less $3,000 (amount treated as paid in 1965) and $7,000 (amount treated as paid in 1966)). Since H and W file separate returns in 1967, $6,000 of such $10,000 is allocable to H and $4,000 is allocable to W. Such allocation is computed as follows:

$$\frac{\text{\$12,000 (excess charitable contributions made by H (based on separate return computation) in 1964)}}{\text{\$20,000 (total excess charitable contributions made by H and W (based on separate return computation) in 1964)}} \times \$10,000 = \$6,000$$

$$\frac{\text{\$8,000 (excess charitable contributions made by W (based on separate return computation) in 1964)}}{\text{\$20,000 (total excess charitable contributions made by H and W (based on separate return computation) in 1964)}} \times \$10,000 = \$4,000$$

In 1967 H has adjusted gross income of $70,000 and he contributes $14,000 to an organization specified in section 170(b)(1)(A). In 1967 W has adjusted gross income of $50,000, and she contributes $10,000 to an organization specified in section 170(b)(1)(A). H may claim a charitable contribution deduction of $20,000 in 1967, and W may claim a charitable contribution deduction of $14,000 in 1967. H's $20,000 deduction consists of the $14,000 contribution to the section 170(b)(1)(A) organization in 1967 and $6,000 carried over from 1964 and treated as a charitable contribution paid to a section 170(b)(1)(A) organization in 1967. W's $14,000 deduction consists of the $10,000 contribution made to a section 170(b)(1)(A) organization in 1967 and $4,000 carried over from 1964 and treated as a charitable contribution paid to a section 170(b)(1)(A) organization in 1967. The $6,000 contribution treated as paid in 1967 by H, and the $4,000 contribution treated as paid in 1967 by W are computed as follows:

	H	*W*
Available charitable contribution carryover (see computations above)	$6,000	$4,000
30-percent of adjusted gross income	21,000	15,000
Contributions made in 1967 to section 170(b)(1)(A) organization (no other contributions)	14,000	10,000
Amount of allowable deduction unused	7,000	5,000
Amount of excess contributions treated as paid in 1967—the lesser of $6,000 (available carryover of H to 1967) or $7,000 (excess of 30 percent of adjusted gross income ($21,000) over contributions actually made in 1967 to section 170(b)(1)(A) organizations ($14,000))	6,000	
The lesser of $4,000 (available carryover of W to 1967) or $5,000 (excess of 30 percent of adjusted gross income ($15,000) over contributions actually made in 1967 to section 170(b)(1)(A) organizations ($10,000))	------	4,000

(ii) *From separate returns to joint return and remarried taxpayers.* If in the case of a husband and wife—

(*a*) Either or both of the spouses make a separate return for a contribution year and compute an excess charitable contribution for such year in accordance with the provisions of subparagraphs (1) and (5) of this paragraph, and

(*b*) Such husband and wife make a joint return for one or more of the taxable years immediately succeeding such contribution year,

the excess charitable contribution of the husband and wife for the contribution year which is unused at the beginning of the first taxable year for which a joint return is filed shall be aggregated for purposes of determining the portion of such unused charitable contribution which shall be treated in accordance with subparagraph (2) of this paragraph as a charitable contribution paid to an organization specified in section 170(b)(1)(A). The provisions of this subdivision are also applicable in the case of two single individuals who are subsequently married and file a joint return. A remarried taxpayer who filed a joint return with a former spouse in a contribution year with respect to which an excess charitable contribution was computed and who in any one of the five taxable years immediately succeeding such contribution year files a joint return with his (or her) present spouse shall treat the unused portion of such excess charitable contribution allocated to him (or her) in accordance with subdivision (i) of this subparagraph in the same manner as the unused portion of an excess charitable contribution computed in a contribution year in which he filed a separate return for purposes of determining the amount which in accordance with subparagraph (2) of this paragraph shall be treated as paid to an organization specified in section 170(b)(1)(A) in such succeeding year.

(7) *Information required in support of a deduction of an amount treated as paid.* If, in a taxable year, a deduction is claimed in respect of an excess charitable contribution which, in accordance with the provisions of subparagraph (2) of this paragraph, is treated (in whole or in part) as paid in such taxable year, the taxpayer shall attach to his return a statement showing:

(i) The year (or years) in which the excess charitable contributions were made (the contribution year or years),

(ii) The excess charitable contributions made in each contribution year,

(iii) The portion of such excess (or each such excess) treated as paid in accordance with subparagraph (2) of this paragraph in any taxable year intervening between the contribution year and the taxable year for which the return is made, and

(iv) Such other information as the return or the instructions relating thereto may require.

PAR. 3. Paragraph (c) of § 1.170–3 is amended to read as follows:

§ 1.170–3 Contributions or gifts by corporations.

* * * * *

(c) *Charitable contributions carryover of corporations*—(1) *Contributions made in taxable years beginning before January 1, 1962.* Subject to the rules set forth in subparagraph (3) of this paragraph, any contributions made by a corporation in a taxable year (hereinafter in this paragraph referred to as the contribution year) subject to the Code beginning before January 1, 1962, in excess of the amount deductible in such contribution year under the 5-percent limitation of section 170(b)(2) are deductible in each of the two succeeding taxable years in order of time, but only to the extent of the lesser of the following amounts:

(i) The excess of the maximum amount deductible for the succeeding year under the 5-percent limitation of section 170(b)(2) over the contributions made in that year; and

(ii) In the case of the first taxable year succeeding the contribution year, the amount of the excess contributions; and, in the case of the second taxable year succeeding the contribution year, the portion of the excess contributions not deductible in the first succeeding taxable year.

The application of the rules in this subparagraph may be illustrated by the following example:

Example. A corporation which reports its income on the calendar year basis makes a charitable contribution of $10,000 in June 1961, anticipating taxable income for 1961 of $200,000. Its actual taxable income (with-

out regard to any deduction for charitable contributions) for 1961 is only $50,000 and the charitable deduction for that year is limited to $2,500 (5 percent of $50,000). The excess charitable contribution not deductible in 1961 ($7,500) represents a carryover potentially available as a deduction in the two succeeding taxable years. The corporation has taxable income (without regard to any deduction for charitable contributions) of $150,000 in 1962 and makes a charitable contribution of $2,500 in that year. For 1962, the corporation may deduct as a charitable contribution the amount of $7,500 (5 percent of $150,000). This amount consists first of the $2,500 contribution made in 1962, and $5,000 of the $7,500 carried over from 1961. The remaining $2,500 carried over from 1961 and not allowable as a deduction in 1962 because of the 5-percent limitation may be carried over to 1963. The corporation has taxable income (without regard to any deduction for charitable contributions) of $100,000 in 1963 and makes a charitable contribution of $3,000. For 1963, the corporation may deduct under section 170 the amount of $5,000 (5 percent of $100,000). This amount consists first of the $3,000 contributed in 1963, and $2,000 of the $2,500 carried over from 1961 to 1963. The remaining $500 of the carryover from 1961 is not allowable as a deduction in any year because of the 2-year limitation with respect to excess contributions made in taxable years beginning before January 1, 1962.

(2) *Contributions made in taxable years beginning after December 31, 1961.* Subject to the rules set forth in subparagraph (3) of this paragraph, any contributions made by a corporation in a taxable year (hereinafter in this paragraph referred to as the contribution year) beginning after December 31, 1961, in excess of the amount deductible in such contribution year under the 5-percent limitation of section 170(b)(2) are deductible in each of the five succeeding taxable years in order of time, but only to the extent of the lesser of the following amounts:

(i) The excess of the maximum amount deductible for such succeeding taxable year under the 5-percent limitation of section 170(b)(2) over the sum of the contributions made in that year plus the aggregate of the excess contributions which were made in taxable years before the contribution year and which are deductible under this paragraph in such succeeding taxable year; or

(ii) In the case of the first taxable year succeeding the contribution year, the amount of the excess contributions, and in the case of the second, third, fourth, or fifth taxable years succeeding the contribution year, the portion of the excess contributions not deductible under this subparagraph for any taxable year intervening between the contribution year and such succeeding taxable year.

The application of the rules of this subparagraph may be illustrated by the following example:

Example. A corporation which reports its income on the calendar year basis makes a charitable contribution of $20,000 in June 1964, anticipating taxable income for 1964 of $400,000. Its actual taxable income (without regard to any deduction for charitable contributions) for 1964 is only $100,000 and the charitable deduction for that year is limited to $5,000 (5 percent of $100,000). The excess charitable contribution not deductible in 1964 ($15,000) represents a carryover potentially available as a deduction in the five succeeding taxable years. The corporation has taxable income (without regard to any deduction for charitable contributions) of $150,000 in 1965 and makes a charitable contribution of $5,000 in that year. For 1965 the corporation may deduct as a charitable contribution the amount of $7,500 (5 percent of $150,000). This amount consists first of the $5,000 contribution made in 1965, and $2,500 carried over from 1964. The remaining $12,500 carried over from 1964 and not allowable as a deduction for 1965 because of the 5-percent limitation may be carried over to 1966. The corporation has taxable income (without regard to any deduction for charitable contributions) of $200,000 in 1966 and makes a charitable contribution of $5,000. For 1966, the corporation may deduct the amount of $10,000 (5 percent of $200,000). This amount consists first of the $5,000 contributed in 1966, and $5,000 of the $12,500 carried over from 1964 to 1966. The remaining $7,500 of the carryover from 1964 is available for purposes of computing the charitable contributions carryover from 1964 to 1967, 1968, and 1969.

(3) *Reduction of excess contributions.* A corporation having a net operating loss carryover (or carryovers) must apply the special rule of section 170(b)(3) and this subparagraph before computing under subparagraph (1) or (2) of this paragraph the charitable contributions carryover for any taxable year subject to the Internal Revenue Code of 1954. In determining the amount of charitable contributions that may be deducted in accordance with the rules set forth in subparagraph (1) or (2) of this paragraph in taxable years succeeding the contribution year, the excess of contributions made by a corporation in the contribution year over the amount deductible in such year must be reduced by the amount by which such excess reduces taxable income (for purposes of determining the net operating loss carryover under the second sentence of section 172(b)(2)) and increases a net operating loss carryover to a succeeding taxable year. Thus, if the excess of the contributions made in a taxable year over the amount deductible in the taxable year is utilized to reduce taxable income (under the provisions of section 172(b)(2)) for such year, thereby serving to increase the amount of the net operating loss carryover to a succeeding year or years, no charitable contributions carryover will be allowed. If only a portion of the excess charitable contributions is so used, the charitable contributions carryover will be reduced only to that extent. The application of the rules of this subparagraph may be illustrated by the following example:

Example. A corporation which reports its income on the calendar year basis makes a charitable contribution of $10,000 during the taxable year 1960. Its taxable income for 1960 is $80,000 (computed without regard to any net operating loss deduction and computed in accordance with section 170(b)(2) without regard to any deduction for charitable contributions). The corporation has a net operating loss carryover from 1959 of $80,000. In the absence of the net operating loss deduction the corporation would have been allowed a deduction for charitable contributions of $4,000 (5 percent of $80,000). After the application of the net operating loss deduction the corporation is allowed no deduction for charitable contributions, and there is a tentative charitable contribution carryover of $10,000. For purposes of determining the net operating loss carryover to 1961 the corporation computes its taxable income for its prior taxable year 1960 under section 172(b)(2) by deducting the $4,000 charitable contribution. Thus, after the $80,000 net operating loss carryover is applied against the $76,000 of taxable income for 1960 (computed in accordance with section 172(b)(2)), there remains a $4,000 net operating loss carryover to 1961. Since the application of the net operating loss carryover of $80,000 from 1959 reduces the taxable income for 1960 to zero, no part of the $10,000 of charitable contributions in that year is deductible under section 170(b)(2). However, in determining the amount of the allowable charitable contributions carryover to the taxable years 1961 and 1962, the $10,000 must be reduced by the portion thereof ($4,000) which was used to reduce taxable income for 1960 (as computed for purposes of the second sentence of section 172(b)(2)) and which thereby served to increase the net operating loss carryover to 1961 from zero to $4,000.

(4) *Year contribution is made.* For purposes of this paragraph, contributions made by a corporation in a contribution year include contributions which, in accordance with the provisions of section 170(a)(2) and paragraph (b) of this section, are considered as paid during such contribution year.

(5) *Effect of net operating loss carryback to contribution year.* The amount of the excess contribution for a contribution year (computed as provided in this paragraph) shall not be increased because a net operating loss carryback is available as a deduction in the contribution year. In addition, in determining (under the provisions of section 172(b)(2)) the amount of the net operating loss for any year subsequent to the contribution year which is a carryback or carryover to taxable years succeeding the contribution year, the amount of contributions shall be limited to the maximum amount deductible under the 5-percent limitation of section 170(b)(2) computed without regard to any net operating loss carryback or any of the modifications referred to in section 172(d)) for the contribution year.

(6) *Effect of net operating loss carryback to taxable years succeeding the contribution year.* The amount of the charitable contribution from a preceding taxable year which is deductible (as provided in this paragraph) in a current taxable year (hereinafter referred to in this subparagraph as the "deduction year") shall not be reduced because a net operating loss carryback is available as a deduction in the deduction year. In addition, in determining (under the provisions of section 172(b)(2)) the amount of the net operating loss for any year subsequent to the deduction year which is a carryback or a carryover to taxable years succeeding the deduction year, the amount of contributions shall be limited to the maximum amount deductible under the 5-percent limitation of section 170(b)(2) (computed without regard to any net operating loss carryback or any of the modifications referred to in section 172(d)) for the deduction year.

PAR. 4. Paragraph (a)(3)(ii) of § 1.172–5 is amended by revising the portion thereof which precedes example (1) to read as follows:

§ 1.172–5 Taxable income which is subtracted from net operating loss to determine carryback or carryover.

(a) *Taxable year subject to the Internal Revenue Code of 1954.* * * *

(3) *Modifications applicable to all taxpayers.* * * *

(ii) *Recomputation of percentage limitations.* Unless otherwise specifically provide in this subchapter, any deduction which is limited in amount to a percentage of the taxpayer's taxable income or adjusted gross income shall be recomputed upon the basis of the taxable income or adjusted gross income, as the case may be, determined with the modifications prescribed in this paragraph. Thus, in the case of an individual the deduction for medical expenses would be recomputed after making all the modifications prescribed in this paragraph, whereas the deduction for charitable contributions would be determined without regard to any net operating loss carryback but with regard to any other modifications so prescribed. See, however, the regulations under paragraph (g) of § 1.170–2 (relating to charitable contributions carryover of individuals) and paragraph (c) of § 1.170–3 (relating to charitable contributions carryover of corporations) for special rules regarding charitable contributions in excess of the percentage limitations which may be treated as paid in succeeding taxable years.

* * * * *

PAR. 5. Section 1.381(c)(19) is amended to read as follows:

§ 1.381(c)(19) Statutory provisions; carryovers in certain corporate acquisitions; items of the distributor or transferor corporation; charitable contributions in excess of prior years' limitation.

Sec. 381. *Carryovers in certain corporate acquisitions.* * * *

(c) *Items of the distributor or transferor corporation.* The items referred to in subsection (a) are:

* * * * *

(19) *Charitable contributions in excess of prior years' limitations.* Contributions made in the taxable year ending on the date of distribution or transfer and the 4 prior taxable years by the distributor or transferor corporation in excess of the amount deductible under section 170(b)(2) for such taxable years shall be deductible by the acquiring corporation for its taxable years which begin after the date of distribution or transfer, subject to the limitations imposed in section 170(b)(2). In applying the preceding sentence, each taxable year of the distributor or transferor corporation beginning on or before the date of distribution or transfer shall be treated as a prior taxable year with reference to the acquiring corporation's taxable years beginning after such date.

[Sec. 381(c)(19) as amended by sec. 209(d)(2), Rev. Act 1964 (78 Stat. 46)]

PAR. 6. Section 1.381(c)(19)–1 is amended by revising paragraph (a), paragraph (b)(3), paragraph (c), and paragraph (d). These revised provisions read as follows:

§ 1.381(c)(19)–1 Charitable contribution carryovers in certain acquisitions.

(a) *Carryover requirement.* Section 381(c)(19) provides that, in computing taxable income for its taxable years which begin after the date of distribution or transfer to which section 381(a) applies, the acquiring corporation shall take into account any charitable contributions made by a distributor or transferor corporation during the taxable year ending on the date of distribution or transfer, and in certain immediately preceding taxable years, which are in excess of the maximum amount deductible for those taxable years under section 170(b)(2) in the following manner:

(1) If the taxable year of the distributor or transferor corporation ending on the date of distribution or transfer begins before January 1, 1962, the acquiring corporation shall, in computing taxable income for its first 2 taxable years which begin after the date of such distribution or transfer, take into account the excess contributions made by the distributor or transferor corporation in the taxable year ending on the date of distribution or transfer and in the immediately preceding taxable year;

(2) If the taxable year of the distributor or transferor corporation ending on the date of distribution or transfer begins after December 31, 1961, the acquiring corporation shall, in computing taxable income for certain taxable years which begin after the date of distribution or transfer, take into account the excess contributions made by the distributor or transferor corporation in the taxable year ending on such date of distribution or transfer and in any of the four taxable years immediately preceding such taxable year but excluding any taxable year beginning before January 1, 1962 (see paragraph (c)(3) of this section). Notwithstanding the preceding sentence, if the taxable year of the distributor or transferor corporation ending on the date of distribution or transfer begins after December 31, 1961, and before January 1, 1963, the acquiring corporation shall, in computing taxable income for its first taxable year which begins after the date of distribution or transfer, also take into account the excess contributions made by the distributor or transferor corporation in the taxable year immediately preceding the taxable year of the distributor or transferor corporation ending on the date of distribution or transfer (see paragraph (c)(2) of this section).

To determine the amount of excess contributions made by a distributor or transferor corporation and to integrate them with contributions made by the acquiring corporation for the purpose of determining the charitable contributions deductible by the acquiring corporation for its taxable years beginning immediately after the date of distribution or transfer, it is necessary to apply the provisions of section 170(b)(2) and § 1.170–3 in accordance with the conditions and limitations of section 381(c)(19) and this section.

(b) *Manner of computing excess charitable contribution carryovers.* * * *

(3) The excess charitable contributions made by a distributor or transferor corporation in its taxable year ending on the date of distribution or transfer and in certain immediately preceding taxable years (see paragraph (c) of this section) which are not deductible by the distributor or transferor corporation because of the 5-percent limitation of section 170(b)(2) shall be available to the acquiring corporation without diminution by reason of the fact that the acquiring corporation does not acquire 100 percent of the assets of the distributor or transferor corporation. Thus, if a parent corporation owning 80 percent of all classes of stock of its subsidiary corporation were to acquire its share of the assets of the subsidiary corporation upon a complete liquidation described in paragraph (b)(1)(i) of § 1.381(a)–1, then, subject to the conditions and limitations of this section, 100 percent of the excess contributions made by the subsidiary corporation would be available to the acquiring corporation.

(c) *Taxable years to which carryovers apply and amount deductible*—(1) *Taxable years beginning before January 1, 1962.* If the taxable year of the distributor or transferor corporation ending on the date of distribution or transfer begins before January 1, 1962:

(i) The excess charitable contributions made by a distributor or transferor corporation in its taxable year immediately preceding that ending on the date of distribution or transfer, to the extent not deductible by it because of the limitations of section 170(b)(2) in its taxable year ending on that date, shall be deductible by the acquiring corporation to the extent prescribed by section 170(b)(2) in its first taxable year beginning after the date of distribution or transfer. Any portion of such excess which is not deductible under this section by the acquiring corporation in such first taxable year shall not be deducted by that corporation in any other taxable year.

(ii) The excess charitable contributions made by a distributor or transferor corporation in its taxable year ending on the date of distribution or transfer shall first be deductible by the acquiring corporation to the extent prescribed by section 170(b)(2) and this section in its first taxable year beginning after that date and then, to the extent prescribed by section 170(b)(2) and this section, in its second taxable year beginning after that date. Any portion of such excess which is not deductible under this section by the acquiring corporation in such first and second taxable years shall not be deducted by that corporation in any other taxable year.

(2) *Taxable years beginning in 1962.* If the taxable year of the distributor or transferor corporation ending on the date of distribution or transfer begins after December 31, 1961, and before January 1, 1963:

(i) The excess charitable contributions made by a distributor or transferor corporation in its taxable year immediately preceding that ending on the date of distribution or transfer, to the extent not deductible by it because of the limitations of section 170(b)(2) in its taxable year ending on that date, shall be deductible by the acquiring corporation to the extent prescribed by section 170(b)(2) in its first taxable year beginning after the date of distribution or transfer. Any portion of such excess which is not deductible under this section by the acquiring corporation in such first year shall not be deducted by that corporation in any other taxable year.

(ii) The excess charitable contributions made by a distributor or transferor corporation in its taxable year ending on the date of distribution or transfer and beginning after December 31, 1961, and before January 1, 1963, shall first be deductible by the acquiring corporation to the extent prescribed by section 170(b)(2) and this section in its first taxable year beginning after that date and then, to the extent prescribed by section 170(b)(2) and this section, in its second, third, fourth, and fifth taxable year, in order of time, beginning after that date. Any portion of such excess which is not deductible under this section by the acquiring corporation in such 5 taxable years shall not be deducted by that corporation in any other taxable year.

(3) *Taxable years beginning after December 31, 1962.* (i) If the taxable year of the distributor or transferor corporation ending on the date of distribution or transfer begins after December 31, 1962, the excess charitable contributions made by a distributor or transferor corporation in its taxable year ending on the date of distribution or transfer and in each of its 4 immediately preceding taxable years (excluding any taxable year beginning before January 1, 1962), to the extent not deductible by it because of the limitations of section 170(b)(2) in its taxable year ending on the date of distribution or transfer or its prior taxable years, shall be deductible by the acquiring corporation to the extent prescribed by section 170(b)(2) and subdivision (ii) of this subparagraph, in its taxable years which begin after the date of distribution or transfer. However, any portion of the excess charitable contributions made by a distributor or transferor corporation in a particular taxable year (to which this subparagraph is applicable) which is not deductible under this section within the 5 taxable years immediately following the taxable year in which the contribution was paid by the distributor or transferor corporation shall not be deductible by the acquiring corporation in any other taxable year.

(ii) For purposes of determining the 5 taxable years in which the excess contributions may be deducted, all taxable years of the distributor or transferor corporation subsequent to the taxable year in which the excess contribution was made, including the taxable year ending on the date of distribution or transfer shall be treated as taxable years of the acquiring corporation.

(iii) The provisions of this subparagraph may be illustrated by the following example:

Example. X Corporation and Y Corporation both compute taxable income on the calendar year basis. X Corporation has excess charitable contributions for 1962 and 1964. On December 31, 1966, X Corporation distributes all its assets to Y Corporation in a complete liquidation to which section 381(a) applies. The excess 1962 charitable contributions of X Corporation (to the extent not deductible by X because of the limitations of section 170(b)(2) in its taxable years 1963 through 1966) may be deducted by Y Corporation only in 1967. Y Corporation's taxable year 1967 is the fifth taxable year succeeding the taxable year 1962 (the year in which the excess contributions were made), and the portion of such excess contributions which is not deductible in the 5 taxable years immediately succeeding 1962 (1963 through 1967) is not deductible by Y Corporation in any other taxable year. Any excess charitable contributions for 1964 to which Y Corporation may be entitled must be deducted by Y Corporation (if deductible at all) in 1967, 1968, and 1969 since such years are the third, fourth, and fifth taxable years succeeding the taxable year 1964 (the year in which the excess contributions were paid).

(4) *General rules.* No excess charitable contributions made by a distributor or transferor corporation shall be deductible by the acquiring corporation in its taxable year which includes the date of distribution or transfer. In addition, an excess charitable contribution made by a distributor or transferor corporation in a taxable year prior to the taxable year of the transfer is only deductible by the distributor or transferor corporation, subject to the limitations of section 170(b)(2), in its subsequent taxable years which begin on or before the date of distribution or transfer, and by the acquiring corporation in its taxable year (or years) beginning after the date of distribution or transfer.

(d) *Rules governing amounts deductible by acquiring corporations.* (1) In applying the provisions of section 170(b)(2) for the purpose of determining the amount of excess charitable contributions which are deductible by the acquiring corporation in its taxable years beginning after the date of distribution or transfer, all taxable years of the distributor or transferor and acquiring corporations which, with respect to a particular taxable year beginning after the date of distribution or transfer, constitute the same numbered preceding taxable year shall together be considered as one taxable year even though the taxable years involved may not end on the same date. Thus, for example, all taxable years of the distributor or transferor and acquiring corporations which, with respect to the first taxable year of the acquiring corporation beginning after the date of distribution or transfer, constitute the second preceding taxable year shall together be considered as one taxable year even though the taxable years involved may not end on the same date. Any excess charitable contributions carried over from preceding taxable years which are considered as one taxable year shall be taken into account by the acquiring corporation as one amount, without regard to the extent to which the contributions were made by a distributor or transferor corporation or the acquiring corporation.

(2) For purposes of this paragraph, each taxable year of the distributor or transferor corporation beginning on or before the date of distribution or transfer shall be treated as a preceding taxable year with reference to the acquiring corporation's taxable years beginning after such date. For example, the taxable year of a distributor or transferor corporation which ends on the date of distribution or transfer shall be considered a first preceding taxable year with reference to the acquiring corporation's first taxable year beginning after that date, a second preceding taxable year with reference to the acquiring corporation's second taxable year beginning after that date, and so forth with respect to succeeding taxable years of the acquiring corporation. Also, for example, the taxable year of a distributor or transferor corporation which immediately precedes its taxable year ending on the date of distribution or transfer shall be considered a second preceding taxable year with reference to the acquiring corporation's first taxable year beginning after that date.

* * * * *

PAR. 7. Section 1.545 is amended by revising section 545(b) (1) and (2), and by revising the historical note. These revised provisions read as follows:

§ 1.545 Statutory provisions; undistributed personal holding company income.

SEC. 545. *Undistributed personal holding company income.* * * *

(b) *Adjustments to taxable income.* * * *

(1) *Taxes.* There shall be allowed as a deduction Federal income and excess profits taxes (other than the excess profits tax imposed by subchapter E of chapter 2 of the Internal Revenue Code of 1939 for taxable years beginning after December 31, 1940) and income, war profits and excess profits taxes of foreign countries and possessions of the United States (to the extent not allowable as a deduction under section 275(a)(4)), accrued during the taxable year or deemed to be paid by a domestic corporation under section 902(a)(1) or 960(a)(1)(C) for the taxable year, but not including the accumulated earnings tax imposed by section 531, the personal holding company tax imposed by section 541, or the taxes imposed by corresponding sections of a prior income tax law. A taxpayer which, for each taxable year in which it was subject to the tax imposed by section 500 of the Internal Revenue Code of 1939, deducted Federal income and excess profits taxes when paid for the purpose of computing subchapter A net income under such Code, shall deduct taxes under this paragraph when paid, unless the taxpayer elects, in its return for a taxable year ending after June 30, 1954, to deduct the taxes described in this paragraph when accrued. Such an election shall be irrevocable and shall apply to the taxable year for which the election is made and to all subsequent taxable years.

(2) *Charitable contributions.* The deduction for charitable contributions provided under section 170 shall be allowed, but in computing such deduction the limitations in section 170(b)(1)(A) and (B) shall apply, and section 170(b)(2) and (5) shall not apply. For purposes of this paragraph, the

term "adjusted gross income" when used in section 170(b)(1) means the taxable income computed with the adjustments (other than the 5-percent limitation) provided in the first sentence of section 170(b) (2) and (5) and without deduction of the amount disallowed under paragraph (8) of this subsection.

* * * * *

[Sec. 545 as amended by sec. 32, Technical Amendments Act 1958 (72 Stat. 1631); sec. 9(d)(2), Rev. Act 1962 (76 Stat. 1001); secs. 207(b)(5) and 209(c)(2), Rev. Act 1964 (78 Stat. 42, 46)]

PAR. 8. Paragraph (b) of § 1.545–2 is amended by revising subparagraphs (1) and (2) to read as follows:

§ 1.545–2 Adjustments to taxable income.

* * * * *

(b) *Charitable contributions.* (1) Section 545(b)(2) provides that, in computing the deduction for charitable contributions for purposes of determining undistributed personal holding company income of a corporation, the limitations in section 170(b)(1) (A) and (B) (relating to charitable contributions by individuals) shall apply and section 170 (b) (2) and (5) (relating to charitable contributions by corporations and carryover of certain excess charitable contributions made by individuals, respectively) shall not apply.

(2) Although the limitations of section 170(b)(1) (A) and (B) are 10 and 20 percent, respectively, of the individual's adjusted gross income, the limitations are applied for purposes of section 545(b)(2) by using 10 and 20 percent, respectively, of the corporation's taxable income as adjusted for purposes of section 170(b)(2) (that is, the same amount of taxable income to which the 5-percent limitation applied). Thus, the term "adjusted gross income" when used in section 170(b)(1) means the corporation's taxable income computed with the adjustments (other than the 5-percent limitation) provided in the first sentence of section 170(b)(2). However, a further adjustment for this purpose is that the taxable income shall also be computed without the deduction of the amount disallowed under section 545(b)(8) (relating to expenses and depreciation applicable to property of the taxpayer). The carryover of charitable contributions made in a prior year, otherwise allowable as a deduction in computing taxable income to the extent provided in section 170(b)(2) and, with respect to contributions paid in taxable years beginning after December 31, 1963, in section 170(b)(5), shall not be allowed as a deduction in computing undistributed personal holding company income for any taxable year.

* * * * *

PAR. 9. Section 1.556 is amended by revising section 556(b) (1) and (2), and by revising the historical note. These revised provisions read as follows:

§ 1.556 Statutory provisions; undistributed foreign personal holding company income.

Sec. 556. *Undistributed foreign personal holding company income*— * * *

(b) *Adjustments to taxable income.* * * *

(1) *Taxes.* There shall be allowed as a deduction Federal income and excess profits taxes (other than the excess profits tax imposed by subchapter E of chapter 2 of the Internal Revenue Code of 1939 for taxable years beginning after December 31, 1940) and income, war profits, and excess-profits taxes of foreign countries and possessions of the United States (to the extent not allowable as a deduction under section 275(a)(4)), accrued during the taxable year, but not including the accumulated earnings tax imposed by section 531, the personal holding company tax imposed by section 541, or the taxes imposed by corresponding sections of a prior income tax law. A taxpayer which, for each taxable year in which it was subject to the provisions of supplement P of the Internal Revenue Code of 1939, deducted Federal income and excess profits taxes when paid for the purpose of computing undistributed supplement P net income under such code, shall deduct taxes under this paragraph when paid, unless the corporation elects, under regulations prescribed by the Secretary or his delegate, after the date of enactment of this title to deduct the taxes described in this paragraph when accrued. Such election shall be irrevocable and shall apply to the taxable year for which the election is made and to all subsequent taxable years.

(2) *Charitable contributions.* The deduction for charitable contributions provided under section 170 shall be allowed, but in computing such deduction the limitations in section 170(b)(1) (A) and (B) shall apply, and section 170(b) (2) and (5) shall not apply. For purposes of this paragraph, the term "adjusted gross income" when used in section 170(b)(1) means the taxable income computed with the adjustments (other than the 5-percent limitation) provided in the first sentence of section 170(b) (2) and (5) and without the deduction of the amounts disallowed under paragraphs (5) and (6) of this subsection or the inclusion in gross income of the amounts includible therein as dividends by reason of the application of the provisions of section 555(b) (relating to the inclusion in gross income of a foreign personal holding company of its distributive share of the undistributed foreign personal holding company income of another company in which it is a shareholder).

* * * * *

[Sec. 556 as amended by sec. 33, Technical Amendments Act 1958 (72 Stat. 1632); secs. 207(b)(6) and 209(c)(2), Rev. Act 1964 (78 Stat. 42, 46)]

PAR. 10. Paragraph (b) of § 1.556–2 is amended by revising subparagraphs (1) and (2) to read as follows:

§ 1.556–2 Adjustments to taxable income.

* * * * *

(b) *Charitable contributions.* (1) Section 556(b)(2) provides that, in computing the deduction for charitable contributions for purposes of determining the undistributed foreign personal holding company income of a corporation, the limitations in section 170(b)(1) (A) and (B) (relating to charitable contributions by individuals) shall apply and section 170(b) (2) and (5) (relating to charitable contributions by corporations and carryover of certain excess charitable contributions made by individuals, respectively) shall not apply.

(2) Although the limitations of section 170(b)(1) (A) and (B) are 10 and 20 percent, respectively, of the individual's adjusted gross income, the limitations are applied for purposes of section 556(b)(2) by using 10 and 20 percent, respectively, of the corporation's taxable income as adjusted for purposes of section 170(b)(2) (that is, the same amount of taxable income to which the 5-percent limitation applied). Thus, the term "adjusted gross income" when used in section 170(b)(1) means the corporation's taxable income computed with the adjustments (other than the 5-percent limitation) provided in the first sentence of section 170(b)(2). However, a further adjustment for this purpose is that the taxable income shall also be computed without the deduction of the amount disallowed under section 556(b)(5) (relating to expenses and depreciation applicable to property of the taxpayer), and section 556(b)(6) (relating to taxes and contributions to pension trusts), and without the inclusion of the amounts includible as dividends under section 555(b) (relating to the inclusion in gross income of a foreign personal holding company of its distributive share of the undistributed foreign personal holding company income of another company in which it is a shareholder). The carryover of charitable contributions made in a prior year, otherwise allowable as a deduction in computing taxable income to the extent provided in section 170(b)(2) and, with respect to contributions paid in taxable years beginning after December 31, 1963, in section 170(b)(5), shall not be allowed as a deduction in computing undistributed foreign personal holding company income for any taxable year.

* * * * *

[F.R. Doc. 65–12084; Filed, Nov. 9, 1965; 8:45 a.m.]

FEDERAL AVIATION AGENCY

[14 CFR Part 71]

[Airspace Docket No. 65–CE–133]

TRANSITION AREA

Proposed Designation

The Federal Aviation Agency is considering an amendment to Part 71 of the Federal Aviation Regulations which would alter controlled airspace in the Columbus, Ind., terminal area.

The Federal Aviation Agency, having completed a comprehensive review of the terminal airspace structural requirements in the Columbus terminal area as a result of the recent installation by the City of Columbus, Ind., of an "MH" facility to serve the Columbus Municipal Airport and the development of an ADF instrument procedure utilizing this facility as a navigational aid, proposes the following airspace action:

Designate the Columbus, Ind., transition area as that airspace extending upward from 700 feet above the surface within a 5-mile radius of the Columbus Municipal Airport (latitude 39°08'09" N., longitude 85°55'29" W.), and within 2 miles each side of the 225° T (224° M) bearing from the Columbus Municipal Airport extending from the 5-mile radius

area to 12 miles SW of the airport, excluding that portion which overlies the Atterbury, Ind., 700-foot transition area.

The ADF instrument approach procedure will become effective concurrently with the effective date of the airspace action proposed herein. Specific details concerning this procedure may be examined by contacting the Chief, Airspace Branch, Air Traffic Division, Central Region, Federal Aviation Agency, 4825 Troost Avenue, Kansas City, Mo., 64110.

The controlled airspace proposed herein will underlie a 1,200-foot transition area proposed for the Louisville, Ky., terminal area.

The floors of the airways that would traverse the transition area proposed herein would automatically coincide with the floors of the transition area. The proposed transition area will provide protection for departing aircraft during climb from 700 to 1,200 feet above the surface. It will also provide controlled airspace protection for aircraft executing the prescribed instrument approach procedure during descent from 1,500 to 700 feet above the surface.

Interested persons may submit such written data, views, or arguments as they may desire. Communications should be submitted in triplicate to the Director, Central Region, Attention: Chief, Air Traffic Division, Federal Aviation Agency, 4825 Troost Avenue, Kansas City, Mo., 64110. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Regional Air Traffic Division Chief. Any data, views, or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The public docket will be available for examination by interested persons in the office of the Regional Counsel, Federal Aviation Agency, 4825 Troost Avenue, Kansas City, Mo., 64110.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued at Kansas City, Mo., on October 28, 1965.

EDWARD C. MARSH,
Director, Central Region.

[F.R. Doc. 65-12066; Filed, Nov. 9, 1965; 8:46 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 65-SW-31]

TRANSITION AREA

Proposed Alteration

The Federal Aviation Agency is considering an amendment to Part 71 of the Federal Aviation Regulations which would alter the Stuttgart, Ark., transition area.

The Stuttgart, Ark., transition area is designated as that airspace extending upward from 700 feet above the surface within a 5-mile radius of the Stuttgart Municipal Airport (latitude 34°36'15'' N., longitude 91°34'30'' W.); and within 2 miles each side of the Little Rock VORTAC 098° radial extending from the 5-mile radius area to 20 miles E of the Little Rock VORTAC.

The Federal Aviation Agency proposes to redesignate the Stuttgart, Ark., transition area as that airspace extending upward from 700 feet above the surface within a 5-mile radius of the Stuttgart Municipal Airport (latitude 34°36'15'' N., longitude 91°34'30'' W.); and within 2 miles each side of the Little Rock VORTAC 098° radial (092° magnetic) extending from the 5-mile radius area to 20 miles E of the Little Rock VORTAC; and within 2 miles each side of the 350° bearing (344° magnetic) from the Stuttgart RBN (latitude 34°39'52'' N., longitude 91°35'30'' W.) extending from the 5-mile radius area to 8 miles north of the RBN.

This proposal would add a north extension to the existing Stuttgart, Ark., transition area which will be necessary to provide protection for aircraft executing an ADF approach procedure to be established upon the commissioning of the Stuttgart radio beacon approximately November 1, 1965.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Chief, Air Traffic Division, Southwest Region, Federal Aviation Agency, Post Office Box 1689, Fort Worth, Tex., 76101. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Chief, Air Traffic Division. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official Docket will be available for examination by interested persons at the Office of the Regional Counsel, Southwest Region, Federal Aviation Agency, Fort Worth, Tex. An informal Docket will also be available for examination at the Office of the Chief, Air Traffic Division.

This amendment is proposed under the authority of sec. 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Fort Worth, Tex., on November 1, 1965.

HENRY L. NEWMAN,
Director, Southwest Region.

[F.R. Doc. 65-12067; Filed, Nov. 9, 1965; 8:46 a.m.]

[14 CFR Part 91]

[Docket No. 6747; Notice No. 65-34]

CONSUMPTION OF ALCOHOLIC BEVERAGES BY CREWMEMBERS BEFORE OPERATION OF AIRCRAFT

Notice of Proposed Rule Making

The Federal Aviation Agency is considering amending Part 91 of the Federal Aviation Regulations to prohibit any person from acting as a crewmember of a civil aircraft within eight hours after he consumes any alcoholic beverage.

Interested persons may participate in the making of the proposed rule by submitting such written data, views, or arguments as they may desire. Communications should identify the regulatory docket or notice number and be submitted in duplicate to the Federal Aviation Agency, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, D.C., 20553. All communications received on or before January 10, 1966, will be considered by the Administrator before taking action on the proposed rule. The proposal contained in this notice may be changed in the light of comments received. All comments submitted will be available for examination in the Rules Docket before and after the closing date for comments.

The present provisions related to drinking are in § 91.11, and provide that no person may act as a crewmember while under the influence of intoxicating liquor, but there is now no specific regulation against drinking by crewmembers before or during flight.

On June 25, 1965, an advance notice of proposed rule making was issued (30 F.R. 8799) stating the Agency was considering the need for an expanded regulation concerning the drinking of alcoholic beverages by crewmembers before and during flight. Public participation was invited in identifying and selecting a course or alternate courses of action to prohibit or otherwise restrict persons from acting as crewmembers of civil aircraft after the consumption of alcoholic beverages.

Each aircraft accident that occurs has an adverse affect on the entire aviation community. It is the duty of this Agency to take all reasonable steps available to prevent these accidents. From the statistical data available to the Agency, it appears that there is a reasonable possibility that the use of alcohol has contributed to the cause of a number of these accidents. Measurable blood alcohol was found in a number of autopsies performed on pilots in command who were fatally injured. The Agency therefore considers that it would be in the public interest to formulate a practical rule for the guidance of the aviation community with respect to the use of alcohol before or during flight.

Even small amounts of alcohol affect judgment, coordination, performance, and reaction time. Also, altitude accentuates the effects of alcohol, and harmful effects of alcohol continue after the alcohol itself has left the blood, even in the absence of a hangover.

As stated in the advance notice, the ability of a crewmember to perform without impairment of his judgment, coordination, and reaction time is an essential element in the safety of flight, and in the effectiveness of air traffic systems in controlling air traffic. The possible effect of alcohol consumption by a crewmember upon this performance is a matter of serious concern to the Agency. It is also a matter of the most serious concern to the flying public sharing the airspace with the drinker as well as to persons and property on the ground.

The advance notice referred to several possible methods of control: prohibiting a person from acting as a crewmember for some fixed period of time after consuming any alcoholic beverage or at any time the alcohol in his blood exceeded a specific level. It also referred to possible issuance of an Advisory Circular providing guidelines to the public on the alcohol blood levels that would be present after drinking various kinds and quantities of alcoholic beverages, variations among individuals, and the passage of time.

A majority of the comments received from the public on Notice No. 65–15 favored the Agency's proposal to strengthen its regulations. Of those endorsing the program, the majority further indicated that a specific time limit should be established that would prohibit the consumption of alcoholic beverages within twelve hours, or even a longer time, before engaging in flight operations. A smaller number favored only the educational process, or the regulatory establishment of specific blood alcohol levels, and such enforcement means as spot checks, and "implied consent" provisions requiring crewmembers, upon obtaining airman certificates, to consent to sobriety examinations when airport officials or other responsible persons have reason to believe they have been drinking before or during flight. The comments opposed to additional regulatory controls generally were concerned with the problem of enforceability. However, the Agency believes that the proposal made in this notice will strengthen the enforceability of the present regulations and also serve as a deterrent against a person's serving as a crewmember too soon after or while drinking.

After further study of the matter, in view of the available data and in consideration of the views expressed by the large majority of the comments on Notice No. 65–15, the Agency believes that a person should be prohibited from acting as a crewmember of a civil aircraft within a specified period of time after consumption of alcoholic beverages. This notice of proposed rule making proposes the addition of such a prohibition to § 91.11.

Of the favorable comments, some did not specify a preferred time period, a few favored an 8-hour or 8- to 12-hour time period, and approximately one-half favored a time period of 12 hours or longer. The Agency has carefully considered what time limit should be proposed, and it has concluded that an 8-hour rule is appropriate for the deterrence and enforcement purposes involved, as a "rock-bottom" minimum beyond which safety would be jeopardized. It is therefore proposed that the amendment to § 91.11 provide a prohibition for this time period. At the same time, it must be clearly understood that the proposed rule is not intended to induce the relaxation of any stricter rules that a number of air carriers and other operators of aircraft have in effect. The Agency is by no means endeavoring to indicate that longer time limits should not be self-imposed, or should be disregarded, by these aircraft operators.

It should be noted that the discussions of alcohol and flying in the advance notice and this notice of proposed rule making are not intended to indict pilots and other crewmembers as a group. The primary concern, in proposing an additional regulation, is not with responsible crewmembers, but with the small marginal group for whom it is needed. The Agency believes that the proposed regulation will serve as a deterrent for some of the latter group and, when necessary, will be helpful in the enforcement of the regulations against others of this group.

The Agency will continue its studies with respect to alcohol and flying, and the related matters of publicity, education, and regulatory establishment of specific blood alcohol levels.

The term "intoxicating liquor" has been used in § 91.11(a) and its predecessor provision, § 43.43 of Part 43 of the Civil Air Regulations. The term "alcoholic beverage" has been used in § 121.575 of Part 121 of the Federal Aviation Regulations as well as predecessor provisions from which it was recodified. The terms "alcohol" and "alcoholic beverage" would now be used in § 91.11 for consistency and accuracy.

In consideration of the foregoing, it is proposed to amend paragraph (a) of § 91.11 of the Federal Aviation Regulations to read as follows:

§ 91.11 Liquor and drugs.

(a) No person may act as a crewmember of a civil aircraft—

(1) Within 8 hours after the consumption of any alcoholic beverage;

(2) While under the influence of alcohol; or

(3) While using any drug that affects his faculties in any way contrary to safety.

* * * * *

This amendment is proposed under the authority of sections 313(a) and 601 of the Federal Aviation Act of 1958 (49 U.S.C. 1354, 1421).

Issued in Washington, D.C., on November 3, 1965.

WILLIAM F. MCKEE,
Administrator.

[F.R. Doc. 65-12068; Filed, Nov. 9, 1965; 8:46 a.m.]

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR Part 73]

[Docket No. 15936; FCC 65-999]

FM BROADCAST STATIONS, NEW CASTLE, IND.

Table of Assignments

Report and order. 1. The Commission has under consideration its notice of proposed rule making, FCC 65-277, issued on April 2, 1965, and proposing to add the assignment of FM Channel 221A to New Castle, Ind.

2. Newcastle Broadcasting Corp., an applicant for a new standard broadcast station at New Castle, filed comments in support of the proposal. However, it has been brought to the Commission's attention that the proposed assignment would be short-spaced to an existing station, WTTV-FM, on Channel 222 at Bloomington, Ind., the transmitter of which is located about 26.5 miles northeast of the city. In view of this short spacing the proposal will have to be withdrawn.

3. In view of the foregoing, the proposed amendment of § 73.202 is withdrawn: *And it is ordered*, That this proceeding is terminated.

Adopted: November 3, 1965.

Released: November 5, 1965.

FEDERAL COMMUNICATIONS COMMISSION,[1]
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 65-12101; Filed, Nov. 9, 1965; 8:48 a.m.]

INTERSTATE COMMERCE COMMISSION

[49 CFR Parts 176, 187]

[Ex Parte No. MC-19, MC-61]

MOTOR COMMON CARRIERS OF HOUSEHOLD GOODS

Practices and Released Rates

NOVEMBER 2, 1965.

Practices of motor common carriers of household goods, ex parte No. MC-19; released rates of motor common carriers of household goods, ex parte No. MC-61.

In AAA Storage Co. v. United States, Civil No. 65-21-PH, S.D. Cal., August 12, 1965, the decision of the Commission in these proceedings, adopting a number of new rules governing the transportation of household goods, rescinding outstanding released rates orders, and adopting a new uniform released rates order, MC-505, was affirmed in part and reversed in part. The court stated:

The plaintiffs have challenged the action of the Interstate Commerce Commission on

[1] Commissioner Hyde absent, Commissioner Cox concurring and issuing a statement filed as part of the original document.

several grounds and in several particulars. All of such challenges are rejected save one. * * *

With respect to the rate per hundredweight over and above the base rate to be charged by a carrier under Order No. MC–505 to a shipper where the carrier is to be liable for the shipper's actual loss up to an amount of $10,000, Order No. MC–505 establishes a rate which plainly is not "dependent upon or varying with declared or agreed values," as required by the Act.

We therefore hold that Order No. MC–505 is void in its fixing of the rate of fifty (50) cents per hundredweight to be charged by the carrier for liability of the carrier for actual loss to the shipper, released to a value greater than sixty (60) cents per pound per article, up to a total of $10,000 per shipment. The rate to be charged under the order for liability for actual loss to the shipper in an amount to exceed $10,000 insofar as that rate is predicated upon the rate for liability for actual loss up to $10,000 is also void.

In all other respects the Court holds that the action of the Commission complained of is valid.

The matter is remanded to the Interstate Commerce Commission for further consideration and proceedings consistent herewith, and in the meanwhile the present injunction will remain in force, subject to dissolution on motion at the conclusion of such remanded proceedings.

By order dated September 7, 1965, the Commission has reopened these proceedings for further consideration.

There may be any number of courses of action consistent with the Court's instructions, and the Commission, by this notice, invites the suggestions and comments of all interested persons, as well as verified statements by anyone wishing to file them on any pertinent matter herein. Without prejudging the matter, but rather in the interest of stimulating comment, criticism, and counter-proposals, the Commission has prepared and attached hereto proposed orders providing for liability, at basic rates, of 60 cents per pound per article, and further providing for full liability up to a declared value upon payment of a charge of 50 cents per $100 of valuation, with a further provision requiring a minimum declaration in order to prevent excessive undervaluation of shipments.

Suggestions, comments, criticisms, and verified statements, if any, should be submitted in original and 14 copies, to the Secretary of the Commission not later than December 1, 1965. No specific form is prescribed for these comments. However, they should be as brief as possible.

Notice to the general public will be given by depositing a copy of this notice in the office of the Secretary of the Commission for inspection, and by filing a copy with the Director, office of the Federal Register. In addition, copies of this notice will be served upon all parties of record.

By the Commission.

[SEAL] H. NEIL GARSON,
Secretary.

Upon reconsideration of the record in Ex Parte No. MC–61, Released Rates of Motor Common Carriers of Household Goods, the Commission, on the date hereof, has made and filed its report herein setting forth the basis for its conclusions and findings therein, which report is hereby referred to and made a part hereof:

It is ordered, That, § 187.201 (49 CFR 187.201) be, and it is hereby, amended to read as follows:

§ 187.201 Released rates on household goods.

(a) *Establishment authorized; rate bases.* Subject to the conditions specified in succeeding paragraphs hereof, each motor common carrier authorized to perform the specialized service of a household goods carrier be, and it is hereby, authorized to establish and maintain by filing and posting in the manner required by the Interstate Commerce Act, commodity rates for the transportation in interstate or foreign commerce, and charges for accessorial services in connection therewith, of household goods, as defined by the Commission, said rates and charges to be applicable only when the value of the property as declared by the shipper in writing, or agreed upon in writing as the released value thereof is as follows:

Released values and liability limitations	Transportation rate basis	Storage in transit rate basis
Released to a value not exceeding 60 cents per pound per article for the actual weight of any article or articles in a shipment.	Base transportation rate.	Base storage rate.
Released to a declared lump sum value for an entire shipment. However, if the value declared is less than $1.00 times the actual weight (in pounds) of the shipment, such declaration will be ineffective, and the shipment will be deemed instead to have been released to a declared lump sum value equal to $1.00 times the actual total weight (in pounds) of the shipment.	Base transportation rate plus a valuation charge of 50 cents for each $100.00 or fraction thereof of the released value of the entire shipment.	Base storage rate for first 60-day period of storage. Thereafter, base storage rate plus a value charge of 10 cents per $100.00 or fraction thereof, for each storage period of 30 days or fraction thereof.

No rule of coresponsibility may be employed to reduce the liability of the carrier for loss, damage, or delay to the property. The total parts comprising any article knocked down or taken apart for handling or loading shall constitute one article for the purpose of determining the carrier's liability as provided above.

(b) *Changes in rates or released valuations.* Changes may be made in the rates or charges established under the authority of this order, but the released values provided herein may not be decreased, nor may the value charges as specified herein be increased without specific authority of this Commission.

(c) *Statement on orders for services and bills of lading.* The order for services and the bill of lading issued for any shipment accepted for transportation and storage at released rates and charges established and maintained under authority of this order, shall have printed in distinctive color in boldface type on the face thereof a statement reading as follows:

Unless the shipper expressly releases the shipment to a value of 60 cents per pound per article, the carrier's maximum liability for loss and damage shall be either the lump sum value declared by the shipper or an amount equal to $1.00 for each pound of weight in the shipment, whichever is greater.

The release of value must be entered in the following form directly below and immediately following the foregoing statement, and must be completed only by the person signing it.

Shipper, by signature below, agrees to the conditions hereon and the contract terms and conditions on the back hereof and hereby releases the entire shipment to a value not exceeding----------

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(to be completed by the person signing below)

NOTICE: The shipper signing this contract must insert in the space above, in his own handwriting, either his declaration of the actual value of the shipment, or the words "60 cents per pound per article."

(Shipper)

(Date)

(d) *Statement in tariffs.* Tariffs containing rates or charges established under authority of this order shall specifically provide that the carrier's maximum liability for loss of or damage to property shall be the lump sum value declared or an amount equal to $1.00 for each pound of weight in the shipment, whichever is greater, unless the shipper expressly releases the shipment to a value of 60 cents per pound per article, in which case the carrier's liability shall not exceed that value. No rule of coresponsibility may be employed. Such tariffs shall show the following notation:

Rates or charges herein based on released value have been authorized by the Interstate Commerce Commission in Released Rates Order No. ------ of ------ subject to complaint or suspension.

(e) *Limitation of authority.* This section does not constitute authority for the establishment of released rates or charges on any description of traffic other than herein specifically indicated, nor on traffic originating in an adjacent foreign country destined to points in the United States.

(f) *Lawfulness of rates.* The Commission does not hereby approve the lawfulness, except under sections 20(11) and 219 of the Interstate Commerce Act of any rate or charge which may be filed under authority of this section.

It is further ordered, That Released Rates Orders Nos. MC–2–B of April 21, 1953, MC–309 of March 28, 1950, MC–330 of May 22, 1951, MC–362 of May 24, 1954, and MC–429 of September 26, 1958, be, and they are hereby, rescinded as of ----------, the date this order is to become effective.

(Sec. 204, 49 Stat. 546, as amended, 49 U.S.C. 304, interpret or apply Sec. 219, as amended, 20, as amended, 49 Stat. 563, as amended, 24 Stat. 386, as amended, 49 U.S.C. 319, 20)

Upon reconsideration of the record in these proceedings, the Commission, on the date hereof, has made and filed its report herein setting forth the basis for its conclusions and findings therein, which report is hereby referred to and made a part hereof:

It is ordered, That the paragraphs of § 176.12 (49 CFR 176.12) entitled "Transportation rates and released values" and "Carrier responsibility for loss and damage" be, and they are hereby, amended to read as follows:

Transportation rates and released values. Rates are stated in amounts per hundred pounds, depending upon the distance involved. The carriers' charges also vary according to the released or declared value of the shipment. The carrier's tariff provides that at its lowest rates the carrier's responsibility for loss or damage caused by it is limited to 60 cents per pound per article for the actual weight of each lost or damaged article. Many articles are worth more than this, and some are worth a great deal more. If you wish to be paid full value for lost or damaged items, you must declare a lump sum value and pay an extra charge depending upon the value you declare. The charge is 50 cents for each $100 of value declared. The carrier will then be fully liable up to the amount you declare, for loss or damage to any articles unless due to an excepted cause as provided in its tariff. By the time you receive this information sheet, the carrier should have provided you with a copy of its bill of lading containing a full list of these exceptions, and if you have not received one, you should request it.

If you declare a lump sum value but your declaration is for a total value less than $1.00 for each pound of weight in the shipment, your declaration will be automatically increased to the latter amount in order to protect both you and the carrier from an excessive underestimate. The average household goods shipment is worth about $1.00 per pound.

Carrier responsibility for loss and damage. At its lowest rates, the carrier's responsibility for loss or damage caused by it is limited to 60 cents per pound per article for the actual weight of each lost or damaged article. Many articles are worth more than this, and some are worth a great deal more. If you wish to be paid full value for lost or damaged items, you must declare a lump sum value and pay an extra charge depending upon the value you declare. The charge is 50 cents for each $100 of value declared. The carrier will then be fully liable up to the amount you declare, for loss or damage to any articles unless due to an excepted cause as provided in its tariff. By the time you receive this information sheet, the carrier should have provided you with a copy of its bill of lading containing a full list of these exceptions, and if you have not received one, you should request it.

If you declare a lump sum value but your declaration is for a total value less than $1.00 for each pound of weight in the shipment, your declaration will be automatically increased to the latter amount in order to protect both you and the carrier from an excessive underestimate. The average household goods shipment is worth about $1.00 per pound.

It is further ordered, That a new rule numbered § 176.15 (49 CFR § 176.15) be, and it is hereby, added to read as follows:

§ 176.15 Bill of lading conditions.

During the course of the first interview with every prospective shipper, every carrier of household goods shall cause to be given to the prospective shipper a blank form of its bill of lading, showing all exceptions, conditions, and limitations bearing upon the carrier's liability for loss and damage.

It is further ordered, That the rules herein prescribed and the released rates order attached hereto, be, and they are hereby, prescribed to become effective on

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It is further ordered, That the proceedings in Ex Parte No. MC–19, Practices of Motor Common Carriers of Household Goods, and Ex Parte No. MC–61, Released Rates of Motor Common Carriers of Household Goods, be, and they are hereby, discontinued.

And it is further ordered, That notice of this order shall be given to the general public by depositing a copy thereof in the office of the Secretary of the Commission at Washington, D.C., and by filing a copy with the Director, Office of the Federal Register.

(Secs. 204, 216, 217, 219, 220, 223, 49 Stat. 546, as amended, 558, as amended, 560, as amended, 563, as amended, 565, as amended; 49 U.S.C. 304, 316, 317, 319, 320, 323)

[F.R. Doc. 65–11977; Filed, Nov. 9, 1965; 8:45 a.m.]

SMALL BUSINESS ADMINISTRATION

[13 CFR Part 121]

SIZE STANDARDS

Notice of Hearing on Definition of Small Business for Purpose of Bidding on Government Procurements for Products Classified in SIC 2026, Fluid Milk

Notice is hereby given that the Small Business Administration proposes to hold a hearing on the definition of a small business for the purpose of bidding on Government contracts for products classified in SIC Industry 2026, Fluid Milk. The hearing will take place November 30, 1965, at 10 a.m., e.s.t., in Room 1143, 811 Vermont Avenue NW., Washington, D.C. Interested persons may file with the Office of Economic Analysis, on or before November 26, 1965, written statements of facts, opinions, or arguments concerning the appropriate definition of small business for the purpose of bidding on Government procurements for products classified in SIC Industry 2026, Fluid Milk.

All correspondence on this matter should be addressed to:

Padraic P. Frucht, Assistant Administrator for Economics,
Office of Economic Analysis,
Small Business Administration,
811 Vermont Avenue NW.,
Washington, D.C., 20416.

On September 14, 1965, a notice of proposal was published in the FEDERAL REGISTER (30 F.R. 11734) which proposed to amend the definition of a small business for the purpose of bidding on Government procurements for products classified in SIC Industry No. 2026, Fluid Milk, by increasing the present size standard of 500 employees or less to 750 employees or less.

Due to the wide variance of opinions within industry as to the effect on competition which would result from an increase in the size standard, SBA has decided that it would be in the public interest to hold an industry hearing to allow interested parties an opportunity to state their positions, furnish information in support of their positions, and make comments in rebuttal of or in support of the positions taken by other parties.

The Small Business Act provides that competition should be maintained and strengthened by requiring the Federal Government to purchase a "fair share" of its procurements from small business.

Therefore, SBA is interested in receiving information relating to the following: (1) What is the present competitive structure of the Fluid Milk industry, both nationally and in a given market area? (2) Is there a difference in the size structure of concerns bidding on Government procurements for products classified in SIC 2026, Fluid Milk (both procurements set-aside for small business and non-set-aside procurements) as compared with the overall competitive structure of the industry? and (3) What are the economies of scale in the industry and the competitive advantages of concerns of certain size as compared with concerns of a smaller size?

Dated: November 3, 1965.

ROSS D. DAVIS,
Executive Administrator.

[F.R. Doc. 65–12078; Filed, Nov. 9, 1965; 8:47 a.m.]

Notices

DEPARTMENT OF THE TREASURY

Office of Foreign Assets Control

ASIATIC HUMAN HAIR ITEMS

Importation

Notice is hereby given that effective November 10, 1965, wigs and certain other hair products containing Asiatic human hair formerly considered for purposes of the Regulations as manufactures, and for this reason exempt from the import licensing requirements when made outside Communist China, North Korea, or North Viet-Nam, will be regarded as processed forms of human hair. Henceforth, except as noted below, these items and all other products made from Asiatic human hair will be permitted entry into the U.S. only when an appropriate certificate of origin or specific license has been obtained. Such certificates establish the absence of mainland Chinese, North Korean, or North Viet-Namese hair in the certified product and that it was made in the certifying country. Appropriate certificates of origin are defined in § 500.536 of the regulations (31 CFR 500.536).

The items formerly considered as manufactures and now considered as processed forms of hair are the following: Hair pieces, wigs, wiglets, wefted wiglets, chignons, switches, beards, mustaches, and eyelashes. A number of countries already have established agreed certification procedures which can be extended to cover the affected items and Treasury is prepared to consider proposals from other countries.

Licenses will generally be issued for imports of hair items with respect to which letters of credit have been opened prior to November 10, 1965, the effective date, and with respect to hair items exported (loaded aboard carrier) to the U.S. within 20 days after November 10, 1965, the effective date, whether or not a letter of credit was opened prior thereto.

[SEAL] MARGARET W. SCHWARTZ,
Director, Office of Foreign Assets Control.

[F.R. Doc. 65-12137; Filed, Nov. 9, 1965; 8:49 a.m.]

DEPARTMENT OF THE INTERIOR

Fish and Wildlife Service

[Docket No. A-346]

BERT ARTHUR BENDER

Notice of Loan Application

Bert Arthur Bender, 7730 Sunnyside Avenue North, Seattle, Wash., 98103, has applied for a loan from the Fisheries Loan Fund to aid in financing the purchase of a used 30-foot wood gill net vessel to engage in the fishery for salmon in the Cook Inlet area of Alaska.

Notice is hereby given pursuant to the provisions of Public Law 89-85 and Fisheries Loan Fund Procedures (50 CFR Part 250, as revised August 11, 1965) that the above entitled application is being considered by the Bureau of Commercial Fisheries, Fish and Wildlife Service, Department of the Interior, Washington, D.C., 20240. Any person desiring to submit evidence that the contemplated operation of such vessel will cause economic hardship or injury to efficient vessel operators already operating in that fishery must submit such evidence in writing to the Director, Bureau of Commercial Fisheries, within 30 days from the date of publication of this notice. If such evidence is received it will be evaluated along with such other evidence as may be available before making a detemination that the contemplated operations of the vessel will or will not cause such economic injury or hardship.

H. E. CROWTHER,
Acting Director,
Bureau of Commercial Fisheries.

NOVEMBER 4, 1965.

[F.R. Doc. 65-12073; Filed, Nov. 9, 1965; 8:46 a.m.]

[Docket No. A-344]

JULIUS R. MAJDIC

Notice of Loan Application

Julius R. Majdic, Post Office Box 2018, Kodiak, Alaska, 99615, has applied for a loan from the Fisheries Loan Fund to aid in financing the purchase of a new 32 foot wood combination seine and gill net vessel to engage in the fishery for salmon in the Kodiak area of Alaska.

Notice is hereby given pursuant to the provisions of Public Law 89-85 and Fisheries Loan Fund Procedures (50 CFR Part 250, as revised August 11, 1965) that the above entitled application is being considered by the Bureau of Commercial Fisheries, Fish and Wildlife Service, Department of the Interior, Washington, D.C., 20240. Any person desiring to submit evidence that the contemplated operation of such vessel will cause economic hardship or injury to efficient vessel operators already operating in that fishery must submit such evidence in writing to the Director, Bureau of Commercial Fisheries, within 30 days from the date of publication of this notice. If such evidence is received it will be evaluated along with such other evidence as may be available before making a determination that the contemplated operations of the vessel will or will not cause such economic injury or hardship.

H. E. CROWTHER,
Acting Director,
Bureau of Commercial Fisheries.

[F.R. Doc. 65-12074; Filed, Nov. 9, 1965; 8:46 a.m.]

Office of the Secretary

OUTER CONTINENTAL SHELF LANDS OFF SOUTHERN CALIFORNIA

Twinning of Existing Core Holes

Pursuant to sec. 11 of the Outer Continental Shelf Lands Act (67 Stat. 462) the Regional Oil and Gas Supervisor of the U.S. Geological Survey is hereby authorized to approve the drilling of core hole wells on unleased outer Continental Shelf lands off the coast of Southern California for the purpose of obtaining geological data provided (1) the well to be drilled is located within 100 feet of a well heretofore drilled under a State permit or such greater distance from such a well as the Supervisor may prescribe where the prior drilled well is less than three geographical miles from the coast line, (2) the maximum depth to which a well may be drilled shall be the depth of the prior drilled well, (3) the approvals to drill core holes granted by the Supervisor shall be conditioned upon compliance with the regulations in 30 CFR Part 250 including those that pertain to the drilling and abandonment of wells and the prevention of pollution or waste, and such other reasonable requirements as he may prescribe, and (4) no approval to drill shall be granted until the applicant has posted an acceptable corporate surety bond in the amount prescribed in 43 CFR 3384.1, conditioned on compliance with all of the requirements set forth in the permits to drill granted by the Supervisor.

Pending decree of the Supreme Court of the United States pursuant to opinion of May 17, 1965, in United States v. California, No. 5, Original, the authorization provided herein shall not extend to the approval of core drilling on submerged lands landward of lines three geographical miles seaward of lines from Point Dume to Point Vicente (in front of Santa Monica Bay) and from Point Fermin to Point Lasuen (in front of San Pedro Bay), unless a mutually satisfactory procedure governing core drilling in these areas is agreed upon in advance between authorized representatives of the State and Federal Governments.

Dated: November 3, 1965.

STEWART L. UDALL,
Secretary of the Interior.

[F.R. Doc. 65-12077; Filed, Nov. 9, 1965; 8:47 a.m.]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

ROHM & HAAS CO.

Notice of Filing of Petition for Food Additive Polyglyceryl Phthalate Ester

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(b)(5), 72 Stat. 1786; 21 U.S.C. 348 (b)(5)), notice is given that a petition (FAP 4H1478) has been filed by Rohm & Haas Co., Independence Mall West, Philadelphia, Pa., 19105, proposing the issuance of a regulation to provide for the safe use of polyglyceryl phthalate ester of edible coconut oil fatty acids diluted with ethylene dichloride as an adjuvant which is added to pesticide-use dilutions by a grower or applicator prior to application to the raw agricultural commodity.

Dated: November 3, 1965.

MALCOLM R. STEPHENS,
Assistant Commissioner for Regulations.

[F.R. Doc. 65-12095; Filed, Nov. 9, 1965; 8:48 a.m.]

CIVIL AERONAUTICS BOARD

[Docket No. 15234]

INTERNATIONAL TOURS, JACK E. HUMMEL

Enforcement Proceeding; Notice of Reassignment of Hearing

Notice is given herewith that public hearing in the above-entitled proceeding heretofore assigned to be held in Room 1027, Universal Building, on November 16, 1965, will now be held in Room 925, Universal Building, Connecticut and Florida Avenues NW., Washington, D.C., at the same hour and on the same date, 10 a.m., e.s.t., on November 16, 1965.

Dated at Washington, D.C., November 3, 1965.

[SEAL] RICHARD A. WALSH,
Hearing Examiner.

[F.R. Doc. 65-12098; Filed, Nov. 9, 1965; 8:48 a.m.]

[Docket No. 16567]

LOS ANGELES AIRWAYS ET AL.

Notice of Prehearing Conference

Los Angeles Airways, Inc., American Airlines, Inc., and United Air Lines, Inc.

Notice is hereby given that a prehearing conference in the above-entitled matter is assigned to be held on November 12, 1965, at 10 a.m., e.s.t., in Room 911, Universal Building, Connecticut and Florida Avenues NW., Washington, D.C., before Examiner Merritt Ruhlen.

Dated at Washington, D.C., November 3, 1965.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F.R. Doc. 65-12099; Filed, Nov. 9, 1965; 8:48 a.m.]

[Docket No. 16643; Order E-22846]

WTC AIR FREIGHT

Parcel Post Liability Rule; Order of Investigation and Suspension

Adopted by the Civil Aeronautics Board at its office in Washington, D.C., on the 4th day of November 1965.

By tariff revision[1] marked to become effective November 7, 1965, WTC Air Freight (WTC) proposes to establish exceptions to its liability rule applicable to "parcel-post" type traffic. The exceptions provide that the forwarder's liability for loss or damage regarding any parcel post shipment shall be limited to $25.00 per shipment unless a higher value is declared by the shipper at the time the shipment is received by the forwarder, and also to establish a new sliding scale of charges for excess valuation of parcel post shipments, which reach the level of $5.00 per $1000. The effective liability rule, which is applicable to parcel post shipments as well as other shipments, specifies a declared value of 50 cents per pound (but not less than $50.00), and an excess valuation charge of 10 cents per $100.

No complaints have been filed.

The services rendered by WTC are common carrier services irrespective of the carrier's designation of this service as "parcel post." Such forwarder services have historically been subject to liability rules which contemplate a basic liability on the part of the carrier or forwarder for loss or damage to any shipment, and afford an opportunity to any shipper to increase the carrier liability by declaring excess valuation and paying an added charge therefor. While the proposed tariff exceptions contain these elements, the basic liability of the carrier for loss or damage would be reduced and limited to one-half that applicable to nonparcel post shipments, and the charges for excess valuation would be substantially increased for parcel post shipments. Both the limitations and the rates in the proposed rule appear to be unreasonable and the carrier has submitted no data or information in support of this stringent rule applicable to this particular type of traffic.

Upon consideration of the foregoing matter, it appears that the proposed liability rule, affecting the carrier's liability for loss of or damage to any "parcel post" type shipment and increasing the excess valuation charges therefor, may be unjust and unreasonable, unjustly discriminatory or unduly preferential or prejudicial and therefore should be investigated. In view of the substantial impact which this tariff rule may have upon the shipping public and the novelty of establishing such a significantly different liability rule and increased rate scale for a single type of air freight, the Board finds that the proposal should be suspended pending investigation.

Accordingly, pursuant to the Federal Aviation Act of 1958, and particularly sections 204(a), 403, 404, and 1002 thereof,

It is ordered, That:

1. An investigation is instituted to determine whether the charges and provisions on 6th Revised Page 10 of WTC Air Freight, CAB No. 7, and rules, regulations, or practices affecting such charges and provisions are, or will be, unjust or unreasonable, unjustly discriminatory, unduly preferential, unduly prejudicial, or otherwise unlawful and if found to be unlawful, to determine and prescribe the lawful charges and provisions and rules, regulations, and practices affecting such provisions;

2. Pending hearing and decision by the Board, all charges and provisions on 6th Revised Page 10 of WTC Air Freight, CAB No. 7, are suspended and their use deferred to and including February 4, 1966, unless otherwise ordered by the Board and that no changes be made therein during the period of suspension except by order or special permission of the Board;

3. This investigation shall be set for hearing before an Examiner of the Board at a time and place hereafter to be designated; and

4. A copy of this order shall be filed with the aforementioned tariff and be served upon WTC Air Freight which is made a party to the investigation ordered herein.

This order will be published in the FEDERAL REGISTER.

By the Civil Aeronautics Board.

[SEAL] HAROLD R. SANDERSON,
Secretary.

[F.R. Doc. 65-12100; Filed, Nov. 9, 1965; 8:48 a.m.]

[1] WTC Air Freight Domestic General Commodity Rate Tariff, CAB No. 7, Rule 35 on 6th revised page 10.

FEDERAL COMMUNICATIONS COMMISSION

[Docket Nos. 16033, 16034; FCC 65M-1457]

EASTERN LONG ISLAND BROADCASTERS, INC., AND REUNION BROADCASTING CORP.

Order Continuing Hearing

In re applications of Eastern Long Island Broadcasters, Inc., Sag Harbor, N.Y., Docket No. 16033, File No. BPH-4321; Reunion Broadcasting Corp., East Hampton, N.Y., Docket No. 16034, File No. BPH-4460; for construction permits.

The Hearing Examiner having under consideration the procedure in the above-styled matter; a joint petition filed on November 1, 1965, by the applicants, requesting continuance of the evidentiary hearing scheduled for November 3, 1965;

and the oral argument heard at the hearing on November 3, 1965; and

It appearing, that under the particular circumstances of this proceeding, as set forth in detail on the record of the November 3 argument, it is deemed advisable to continue the evidentiary hearing in this proceeding for a short period of time; and

It further appearing, that all counsel, because of the particular facts and circumstances relating to the procedural posture of this case, are agreeable to a continuance of the evidentiary hearing in this proceeding, but not for the reasons set forth in the joint petition for continuance, and have agreed to the date hereinafter set forth;

It is, therefore, ordered, This 3d day of November 1965, that the evidentiary hearing in the above-styled proceeding be and the same is hereby continued until 2 p.m., November 17, 1965, in Washington, D.C.; and the said joint petition be and the same is hereby dismissed as moot.

Released: November 5, 1965.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 65-12102; Filed, Nov. 9, 1965; 8:49 a.m.]

[Docket Nos. 16025, 16026; FCC 65M-1460]

WEBSTER COUNTY BROADCASTING CO. AND HOLMES COUNTY BROADCASTING CO. (WXTN)

Order Scheduling Prehearing Conference

In re applications of William E. Hardy and James E. Myers doing business as Webster County Broadcasting Co., Eupora, Miss., Docket No. 16025, File No. BP-16372; Marvin L. Mathis, Robin H. Mathis, Ralph C. Mathis and John B. Skelton, Jr., doing business as Holmes County Broadcasting Co. (WXTN), Lexington, Miss., Docket No. 16026, File No. BP-16601; for construction permits.

The Hearing Examiner having under consideration the "Motion for Cancellation of Procedural Dates" filed in the above-entitled matter on November 2, 1965, by counsel for Holmes County Broadcasting Co.;

It appearing, that the two above-named parties have reached an agreement whereby the Webster County proposal would be dismissed, and have submitted the same to the Review Board for action; and

It further appearing, that the Review Board has withheld action on the agreement, pending publication of the proposed dismissal by Webster County in the Eupora weekly newspaper; and

It further appearing, that the last publication is to take place November 4, 1965, and that any interested party could file for the same facility proposed by Webster County on or before December 4, 1965; and

It further appearing, that in any event, no useful purpose would be served by the procedural and hearing dates heretofore agreed upon; and

It further appearing, that counsel for Webster County Broadcasting Co. joins in the aforesaid motion, and that counsel for the Broadcast Bureau has indicated that he has no objection to the requested cancellation, nor any objection to the Examiner's immediate consideration of said motion;

It is ordered, This 4th day of November 1965, that the "Motion for Cancellation of Procedural Dates" filed on November 2, 1965, by Holmes County Broadcasting Co., be, and the same is, hereby granted; that the presently scheduled proceeding dates, be, and the same are, hereby cancelled; that the hearing date of December 14, 1965, be, and the same is, hereby cancelled; and that a further prehearing conference shall be scheduled for December 14, 1965, at 9:30 a.m., in the Offices of the Commission in Washington, D.C.

Released: November 5, 1965.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 65-12079; Filed, Nov. 9, 1965; 8:49 a.m.]

SMALL BUSINESS ADMINISTRATION

[Delegation of Authority 30, Chicago Regional Office; Disaster No. 1-66]

MANAGER, DISASTER FIELD OFFICE, LOCKPORT, ILL.

Delegation Relating to Financial Assistance Functions; Rescission

Notice is hereby given that Delegation of Authority No. 30 Disaster 1-66 (30 F.R. 11987), is hereby rescinded in its entirety.

Effective date: October 22, 1965.

THOMAS E. GAUSE,
Regional Director, Chicago, Ill.

[F.R. Doc. 65-12079; Filed, Nov. 9, 1965; 8:47 a.m.]

[Delegation of Authority 30, Chicago Regional Office; Disaster No. 3-66]

MANAGER, DISASTER FIELD OFFICE, MATTESON, ILL.

Delegation Relating to Financial Assistance Functions; Rescission

Notice is hereby given that Delegation of Authority No. 30 Disaster 2-66 (30 F.R. 11987), is hereby rescinded in its entirety.

Effective date: October 22, 1965.

THOMAS E. GAUSE,
Regional Director, Chicago, Ill.

[F.R. Doc. 65-12080; Filed, Nov. 9, 1965; 8:47 a.m.]

HOUSING AND HOME FINANCE AGENCY

Office of the Administrator

HHFA REGIONAL ADMINISTRATOR, REGION V (FORT WORTH)

Delegation of Authority With Respect to Urban Planning Program—Portion of St. Louis Metropolitan Area in Illinois

The Regional Administrator of the Housing and Home Finance Agency, Region V (Fort Worth) is hereby authorized to administer the provisions of section 701 of the Housing Act of 1954, as amended (40 U.S.C. 461), with respect to grants for metropolitan planning within that portion of Illinois located in the St. Louis metropolitan area.

The delegation with respect to the urban planning program, republished October 14, 1960 (25 F.R. 9874), as amended, as it applies to the HHFA Regional Administrators, Region V (Fort Worth) and Region IV (Chicago), is modified accordingly.

(62 Stat. 1283 (1948), as amended by 64 Stat. 80 (1950), 12 U.S.C. 1701c)

Effective as of the 8th day of November 1965.

[SEAL] ROBERT C. WEAVER,
Housing and Home Finance Administrator.

[F.R. Doc. 65-12104; Filed, Nov. 9, 1965; 8:49 a.m.]

FEDERAL POWER COMMISSION

[Docket No. G-14953, etc.]

HUGHES SEEWALD, ET AL.

Findings and Order After Statutory Hearing

NOVEMBER 1, 1965.

Each of the Applicants listed herein has filed an application pursuant to section 7 of the Natural Gas Act for a certificate of public convenience and necessity authorizing the sale and delivery of natural gas in interstate commerce, for permission and approval to abandon service, or a petition to amend an existing certificate authorization, all as more fully described in the respective applications and petitions (and any supplements or amendments thereto) which are on file with the Commission.

The Applicants herein have filed related FPC Gas Rate Schedules and propose to initiate or abandon, add or delete natural gas service in interstate commerce as indicated by the tabulation herein. All sales certificated herein are either equal to or below the ceiling prices established by the Commission's Statement of General Policy 61-1, as amended, or involve sales for which permanent certificates have been previously issued.

George P. and Houston Hill, doing business as Hill & Hill, Applicants in Docket No. CI66-183, propose, inter alia,

to continue in part the sale of natural gas heretofore authorized in Docket No. G–15188 and made pursuant to Pan American Petroleum Corp. (Operator), et al., FPC Gas Rate Schedule No. 223. The contract comprising Pan American's rate schedule will also be accepted for filing as Applicants' rate schedule. The presently effective rate under said rate schedule is in effect subject to refund in Docket No. RI63–469.[1] Applicants have filed a motion to be made parties respondent in said proceeding. Accordingly, Applicants will be made co-respondents, the proceeding will be redesignated, and Applicants will be required to file an agreement and undertaking to assure the refund of any amounts collected by them in excess of the amount determined to be just and reasonable in said proceeding.

After due notice, a petition to intervene by the Long Island Lighting Co. and a notice of intervention by the New York Public Service Commission were filed on June 1, 1965, and August 18, 1965, respectively, in Docket Nos. CI65–1168 and CI65–1185, respectively. Notices of withdrawal of the interventions by the respective interveners were filed on October 1, 1965, and October 7, 1965, respectively, in said dockets. No other petitions to intervene, notices of intervention, or protests to the granting of any of the respective applications or petitions in this order have been received.

At a hearing held on October 28, 1965, the Commission on its own motion received and made a part of the record in these proceedings all evidence, including the applications, amendments and exhibits thereto, submitted in support of the respective authorizations sought herein, and upon consideration of the record,

The Commission finds:

(1) Each Applicant herein is a "natural-gas company" within the meaning of the Natural Gas Act as heretofore found by the Commission or will be engaged in the sale of natural gas in interstate commerce for resale for ultimate public consumption, subject to the jurisdiction of the Commission, and will therefore, be a "natural-gas company" within the meaning of said Act upon the commencement of the service under the respective authorizations granted hereinafter.

(2) The sales of natural gas hereinbefore described, as more fully described in the respective applications, amendments and/or supplements herein, will be made in interstate commerce, subject to the jurisdiction of the Commission, and such sales by the respective Applicants, together with the construction and operation of any facilities subject to the jurisdiction of the Commission necessary therefore, are subject to the requirements of subsections (c) and (e) of section 7 of the Natural Gas Act.

(3) The sales of natural gas by the respective Applicants, together with the construction and operation of any facilities subject to the jurisdiction of the Commission necessary therefor, are required by the public convenience and necessity and certificates therefor should be issued as hereinafter ordered and conditioned.

(4) The respective Applicants are able and willing properly to do the acts and to perform the services proposed and to conform to the provisions of the Natural Gas Act and the requirements, rules and regulations of the Commission thereunder.

(5) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act and the public convenience and necessity require that the certificate authorizations heretofore issued by the Commission in Docket Nos. G–14953, G–15188, G–19697, CI61–2, CI63–105, CI63–106, CI63–147, CI63–1519, and CI64–1392 should be amended as hereinafter ordered.

(6) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that Applicants in Docket Nos. CI65–1168 and CI65–1185 should be authorized to continue the sales of natural gas heretofore authorized in Docket No. G–10263, and the certificate heretofore issued in Docket No. G–10263 should be terminated.

(7) The sales of natural gas proposed to be abandoned by the respective Applicants, as hereinbefore described, all as more fully described in the tabulation herein and in the respective applications, are subject to the requirements of subsection (b) of section 7 of the Natural Gas Act, and such abandonments should be permitted and approved as hereinafter ordered.

(8) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that the certificates of public convenience and necessity heretofore issued to the respective Applicants herein relating to the abandonments hereinafter permitted and approved should be terminated.

(9) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that Applicants in Docket No. CI66–183 should be made co-respondents in the proceeding pending in Docket No. RI63–469, that said proceeding should be redesignated, and that Applicants should be required to file an agreement and undertaking.

(10) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that the respective related rate schedules and supplements as designated or redesignated in the tabulation herein should be accepted for filing as hereinafter ordered.

The Commission orders:

(A) Certificates of public convenience and necessity are issued upon the terms and conditions of this order, authorizing the sales by the respective Applicants herein of natural gas in interstate commerce for resale, together with the construction and operation of any facilities subject to the jurisdiction of the Commission necessary for such sales, all as hereinbefore described and as more fully described in the respective applications, amendments, supplements, and exhibits in this proceeding.

(B) The certificates granted in paragraph (A) above are not transferable and shall be effective only so long as Applicants continue the acts or operations hereby authorized in accordance with the provisions of the Natural Act and the applicable rules, regulations and orders of the Commission.

(C) The grant of the certificates issued in paragraph (A) above shall not be construed as a waiver of the requirements of section 4 of the Natural Gas Act or of Part 154 or Part 157 of the Commission's regulations thereunder, and is without prejudice to any findings or orders which have been or may hereafter be made by the Commission in any proceeding now pending or hereafter instituted by or against the respective Applicants. Further, our action in this proceeding shall not foreclose nor prejudice any future proceedings or objections relating to the operation of any price or related provisions in the gas purchase contracts herein involved. Nor shall the grant of the certificates aforesaid for service to the particular customers involved imply approval of all of the terms of the respective contracts, particularly as to the cessation of service upon termination of said contracts, as provided by section 7(b) of the Natural Gas Act. Nor shall the grant of the certificates aforesaid be construed to preclude the imposition of any sanctions pursuant to the provisions of the Natural Gas Act for the unauthorized commencement of any sales of natural gas subject to said certificates.

(D) The grant of the certificates issued herein on all applications filed after April 15, 1965, is upon the condition that no increase in rate which would exceed the ceiling prescribed for the given area by paragraph (d) of the Commission's Statement of General Policy 61–1, as amended, shall be filed prior to the applicable dates, as indicated by footnotes 4 and 7 in the attached tabulation.

(E) The certificates issued herein in Docket Nos. CI64–19 and CI66–184 are subject to the conditions set forth in paragraphs (B), (C), and (D) of the order accompanying Opinion No. 464, issued June 10, 1965, in Docket Nos. G–8087, et al. (33 FPC ____).

(F) The certificates issued herein in Docket Nos. CI64–1109 and CI64–1399 are conditioned upon Applicants filing within 30 days from the date of this order, supplements to the rate schedules providing for proportional downward B.t.u. adjustment as required by the Commission's Opinion No. 464, issued June 10, 1965, in Docket Nos. G–8087, et al. (33 FPC ____).

(G) The certificate issued herein in Docket No. CI65–992 is subject to the conditions set forth in paragraphs (E), (F), and (G) of the order accompanying Opinion No. 350 (27 FPC 35).

(H) In view of the certificates issued herein in Docket Nos. CI65–1168 and CI65–1185 wherein Tenneco Oil Co. and Continental Oil Co., respectively, are authorized to sell gas from acreage acquired from Delhi-Taylor Oil Corp. in Docket No. G–10263, the certificate heretofore issued in Docket No. G–10263 is terminated.

[1] Consolidated with Docket No. AR64–1, et al.

(I) The certificate heretofore issued in Docket Nos. G–14953, CI61–2, CI63–147, and CI64–1392 are amended by adding thereto or deleting therefrom authorization to sell natural gas to the same purchasers and in the same areas as covered by the original authorizations, pursuant to the rate schedule supplements as indicated in the tabulation herein.

(J) The certificates heretofore issued in Docket Nos. G–15188 and CI63–1519 are amended by deleting therefrom authorization to sell natural gas from acreage assigned to Applicants in Docket Nos. CI66–183 and CI66–184.

(K) The certificates heretofore issued in Docket Nos. G–19697, CI63–105, and CI63–106 are amended by changing the certificate holders to the respective successors in interest as indicated in the tabulation herein.

(L) Permission for and approval of the abandonment of service by the respective Applicants, as hereinbefore described and as more fully described in the respective applications herein are granted.

(M) The certificates heretofore issued in Docket Nos. G–16307, CI63–673, and CI64–356 are terminated.

(N) George P. and Houston Hill, doing business as Hill & Hill, are made corespondents with Pan American Petroleum Corp. (Operator), et al., in the proceeding pending in Docket No. RI63–469, and said proceeding is redesignated accordingly.[2]

(O) Within 30 days from the issuance of this order, George P. and Houston Hill, doing business as Hill & Hill, shall execute, in the form set out below, and shall file with the Secretary of the Commission, an acceptable agreement and undertaking in Docket No. RI63–469 to assure the refund of any amount collected by them, together with interest at the rate of seven percent per annum, in excess of the amount determined to be just and reasonable in said docket. Unless notified to the contrary by the Secretary of the Commission within 30 days from the date of submission, such agreement and undertaking shall be deemed to have been accepted for filing.

(P) George P. and Houston Hill, doing business as Hill & Hill, shall comply with the refunding and reporting procedure required by the Natural Gas Act and § 154.102 of the regulations thereunder, and their agreement and undertaking filed in Docket No. RI63–469 shall remain in full force and effect until discharged by the Commission.

(Q) The respective related rate schedules and supplements as indicated in the tabulation herein are accepted for filing; further, the rate schedules relating to the successions herein are redesignated and accepted, subject to the applicable Commission Regulations under the Natural Gas Act to be effective on the dates as indicated in the tabulation herein.

By the Commission.

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

[2] Pan American Petroleum Corp. (Operator), et al., and George P. and Houston Hill, doing business as Hill & Hill.

Docket No. and date filed	Applicant	Purchaser, field, and location	FPC rate schedule to be accepted		
			Description and date of document	No	Supp.
G–14953 D 12–16–63	Hughes Seewald (Operator), et al.	Colorado Interstate Gas Co., Keyes Field, Cimarron County, Okla.	Amendatory agreement 9–1–63.	1	15
			Amendatory agreement 3–10–64.[1] [2]	1	16
G–19697 E 9–7–65	W. J. Riley (Operator), et al. (successor to Arnold Well Service (Operator), et al.).	Banquete Gas Co., a Division of Crestmont Consolidated Co., Odem Field, San Patricio County, Tex.	Arnold Well Service (Operator), et al., FPC GRS No. 2.	6	----
			Notice of succession (undated).	----	----
			Assignment 4–26–60 [3]	6	1
			Effective date: 4–26–60	----	----
CI61–2 C 8–30–65 [4]	Graham-Michaelis Drilling Co. (Operator), et al.	Kansas-Nebraska Natural Gas Co., Inc., Camrick Field, Texas County, Okla.	Letter agreement 8–17–65.[5]	40	10
CI63–105 E 9–14–65	Texam Oil Corp. (Operator), et al. (successor to Santiago Oil & Gas Co. (Operator), et al.).	Coastal States Gas Producing Co., Tiger Field, Duval County, Tex.	Santiago Oil & Gas Co. (Operator), et al., FPC GRS No. 4.	9	----
			Supplement No. 1	9	1
			Notice of succession 9–8–65.	----	----
			Agreement (undated) [6]	9	2
			Effective date: 3–26–63	----	----
CI63–106 E 9–13–65	Texam Oil Corp. (Operator), et al. (successor to Santiago Oil & Gas Co. (Operator), et al.).	do	Santiago Oil & Gas Co. (Operator), et al., FPC GRS No. 3.	10	----
			Supplement No. 1	10	1
			Notice of succession 9–8–65.	----	----
			Agreement (undated) [6]	10	2
			Effective date: 3–26–63	----	----
CI63–147 C 9–7–65 [7]	Hollandsworth and Travis (Operator), et al.	Arkansas Louisiana Gas Co., Waskom Field, Harrison County, Tex.	Supplemental agreement 8–7–65.[8]	4	4
CI64–19 A 7–5–63	Viersen & Cochran	Michigan Wisconsin Pipe Line Co., Laverne Field, Harper County, Okla.	Contract 4–22–63 [9]	6	----
			Letter 8–9–63 [9]	6	1
			Amendment 9–23–65 [9] [10]	6	2
CI64–1109 A 3–20–64	Falcon Seaboard Drilling Co. (Operator), et al.[10a]	Michigan Wisconsin Pipe Line Co., South May Field, Ellis County, Okla.	Contract 12–18–63 [9]	20	----
			Letter 4–30–64 [9]	20	1
CI64–1302 C 9–10–65 [4]	Monsanto Co. (Operator), et al.	Lone Star Gas Co., North Dibble and Southeast Boyle Areas, McClain County, Okla.	Ratified 4–27–65 [9] [11]	78	3
CI64–1399 A 5–22–64	Alma Oringderff [11] [4]	Michigan Wisconsin Pipe Line Co., Lovedale Field, Harper County, Okla.	Contract 3–26–64 [9]	1	----
			Letter 6–30–64 [9]	1	1
CI65–992 A 4–8–65	Thomas N. Berry & Co., et al.[12]	Panhandle Eastern Pipe Line Co., South Teagarden Field, Woods County, Okla.	Contract 6–18–64 [13]	5	----
			Contract 5–27–64 [14]	5	1
			Assignment 1–2–65 [15]	5	2
			Assignment 4–15–65 [16]	5	3
A CI65–1168 (G–10263) F 5–5–65 7–21–65 [17]	Tenneco Oil Co. (successor to Delhi-Taylor Oil Corp.).[18]	Florida Gas Transmission Co., McGill Ranch Field, Kenedy County, Tex.	Delhi-Taylor Oil Corp., FPC GRS No. 25.	177	----
			Notice of succession 4–12–65.[18]	----	----
			Assignment 4–1–60 [18]	177	1
			Assignment 6–1–61 [20]	177	2
			Effective date: 1–1–64	----	----
A CI65–1185 (G–10263) F 5–10–65 7–22–65 [17]	Continental Oil Co. (successor to Delhi-Taylor Oil Corp.).	Florida Gas Transmission Co., McGill Ranch Field, Kenedy County, Tex.	Contract 12–30–55	304	----
			Notice of succession 5–6–65.[18]	----	----
			Assignment 4–1–60 [18]	304	1
			Assignment 6–1–61 [20]	304	2
			Effective date: 1–1–64	----	----
CI66–180 A 8–30–65 [4]	Graham-Michaelis Drilling Co. (Operator), et al.	Northern Natural Gas Co., Southwest Hooker Field, Texas County, Okla.	Contract 8–19–65 [9]	73	----
CI66–182 (CI64–356) B 9–3–65	William K. Davis (Operator), et al.	Texas Eastern Transmission Corp., Cosden West Field, Bee County, Tex.	Notice of cancellation 9–1–65 [2] [21]	5	1
A CI66–183 [4] (G–15188) F 9–2–65	George P. and Houston Hill, d.b.a. Hill & Hill.	Panhandle Eastern Pipe Line Co., Mocane-Laverne Field, Beaver County, Okla.	Contract 8–3–65	10	----
			Contract 3–5–58 [22]	11	----
			Assignment 5–18–65 [4] [23]	11	1
A CI66–184 (CI63–1519) F 9–7–65	Global Oils, Inc. (successor to Joe A. Humphrey).	Panhandle Eastern Pipe Line Co., West Valley Center Field, Dewey County, Okla.	Contract 4–23–63 [24]	[25] 7	----
			Assignment 7–6–65	7	1
			Effective date: 7–1–65	----	----
CI66–185 A 9–7–65 9–24–65 [7] [26]	J. M. Huber Corp.	Cities Service Gas Co., Northwest Boggs Field, Barber County, Kans.	Contract 7–8–65	6	----
CI66–192 A 9–13–65 [4]	Anadarko Production Co.	Western Gas Service Co., acreage in Beaver County, Okla.	Contract 9–1–65 [9]	113	----
CI66–200 A 9–13–65 [7]	Austin Brady	Cities Service Gas Co., Hugoton Field, Finney County, Kans.	Contract 7–26–65 [9]	3	----
CI66–203 (G–16307) B 9–13–65	Socony Mobil Oil Co., Inc.	Trunkline Gas Co., Cowpen Creek Field, Beauregard Parish, La.	Notice of cancellation 9–10–65. [2] [27]	165	7
CI66–206 A 9–13–65 [4]	Quintin Little	Lone Star Gas Co., East Doyle Field, Stephens County, Okla.	Ratified 7–6–65 [28]	2	----
			Contract 10–25–62	2	1
			Amendment 4–27–64 [9] [29]	2	2

Filing code: A—Initial service.
B—Abandonment.
C—Amendment to add acreage.
D—Amendment to delete acreage.
E—Succession.
F—Partial succession.

See footnotes at end of table.

Docket No. and date filed	Applicant	Purchaser, field, and location	FPC rate schedule to be accepted		
			Description and date of document	No.	Supp.
C166-207..... A 9-9-65 [7] [20]	Max Wiley.....	Wheeler Gas Co., East Panhandle Field, Wheeler County, Tex.	Statement 9-5-65 [21].....	1	.....
C166-209..... (C163-673) B 9-10-65	Sooner Pipe & Supply Corp. (Operator), et al.	Cities Service Gas Co., Sporn Field, Lincoln County, Okla.	Notice of cancellation 9-7-65, [1] [F]	1	1

[1] Deletes 160 acres from the basic contract for the reason that acreage was erroneously dedicated to Colorado Interstate Gas Co.
[2] Effective date: Date of this order.
[3] Assignment whereby Riley acquired Arnold Well Service's interest.
[4] July 1, 1967, moratorium date pursuant to Commission's Statement of General Policy 61-1, as amended.
[5] Effective date: Date of initial delivery.
[6] Merger between Santiago Oil & Gas Co. and Texam Oil Corp.
[7] Jan. 1, 1968, moratorium date pursuant to Commission's Statement of General Policy 61-1, as amended.
[8] Date of initial delivery. Filing has previously been accepted by letter order granting temporary certificate.
[9] Accepts conditioned temporary certificate. Has been previously accepted for filing.
[10] Filed Sept. 27, 1965. Applicant unilaterally amends its contract to provide for proportional downward B.t.u. adjustment (1000 B.t.u. base).
[10a] By letter filed Sept. 23, 1969, Applicant agreed to accept a permanent certificate conditioned to require a downward B.t.u. adjustment from a 1000 B.t.u. base.
[11] Sarkeys, Inc., ratifies Monsanto's contract dated May 1, 1964, and Monsanto will dispose of Sarkeys' gas.
[11a] By letter filed Oct. 7, 1965, Applicant agreed to accept a permanent certificate conditioned to require a downward B.t.u. adjustment from a 1000 B.t.u. base.
[12] By letter filed June 14, 1965, Applicant advised its willingness to accept a permanent certificate at 17.0 cents per Mcf conditioned as were the certificates issued in Opinion No. 350.
[13] Contract between Barrett Petroleum Co. and Panhandle Eastern which ratifies and adopts contract dated May 27, 1964.
[14] Contract between J. M. Huber Corp. and Panhandle Eastern Pipe Line Co.
[15] Assignment from Barrett Petroleum Co. to Adobe Oil Co. and Thomas N. Berry & Co.
[16] Assignment from Adobe Oil Co. to the Greenlee Children Trust No. 1.
[17] Submitted revised contract summary to reflect initial price of 16.5 cents in lieu of 17.5 cents per Mcf.
[18] Succession to 50 percent interest of Delhi-Taylor Oil Corp.
[19] Conveys acreage from Delhi-Taylor to G. I. Becker, trustee.
[20] Conveys acreage from Delhi-Taylor to W. D. Kennard.
[21] Reservoir is exhausted and unable to produce enough gas of sufficient pressure to economically justify continued production.
[22] Contract also on file as Pan American Petroleum Corp., FPC GRS No. 223 in Docket No. G-15188.
[23] From Pan American Petroleum Corp. to Applicant.
[24] On file as Joe A. Humphrey, FPC GRS No. 1.
[25] Contractual rate is 17.0 cents; however, Applicant states it is willing to accept a certificate conditioned to a rate of 15.0 cents similar to the certificate issued to its predecessor, Joe A. Humphrey, by Opinion No. 464.
[26] No related rate filing. Applicant submits an amended certificate application and a revised billing statement to reflect that its No. 1 Mee Unit is composed of 160 acres in lieu of the 640 acres originally shown. The sale is covered by Huber's FPC GRS No. 67.
[27] Source of gas depleted.
[28] Ratifie's contract of Oct. 25, 1962, between Sinclair Oil & Gas Co. and buyer.
[29] Adds acreage to contract of Oct. 25, 1962.
[30] This is a June 7, 1954, filing.
[31] Reflects terms of oral agreement effective Nov. 20, 1944.

[F.R. Doc. 65-12001; Filed, Nov. 9, 1965; 8:45 a.m.]

FEDERAL RESERVE SYSTEM

VIRGINIA COMMONWEALTH CORP.

Notice of Application for Approval of Acquisition of Shares of a Bank

Notice is hereby given that application has been made to the Board of Governors of the Federal Reserve System pursuant to section 3(a)(2) of the Bank Holding Company Act of 1956 (12 U.S.C. 1842(a)(2)), by Virginia Commonwealth Corp., which is a bank holding company located in Richmond, Va., for the prior approval of the Board of the acquisition by Applicant of more than 80 percent of the voting shares of The Bank of Central Virginia, Lynchburg, Va., which, prior to the acquisition of stock, is to be converted from State Industrial Loan Corp., Lynchburg, Va.

In determining whether to approve this application submitted pursuant to section 3(a)(2) of the Bank Holding Company Act, the Board is required by that Act to take into consideration the following factors: (1) The financial history and condition of the company and the bank concerned; (2) their prospects; (3) the character of their management; (4) the convenience, needs, and welfare of the communities and the area concerned; and (5) whether or not the effect of such acquisition would be to expand the size or extent of the bank holding company system involved beyond limits consistent with adequate and sound banking, the public interest, and the preservation of competition in the field of banking.

Not later than thirty (30) days after the publication of this notice in the FEDERAL REGISTER, comments and views regarding the proposed acquisition may be filed with the Board. Communications should be addressed to the Secretary, Board of Governors of the Federal Reserve System, Washington, D.C., 20551.

Dated at Washington, D.C., this 4th day of November 1965.

By order of the Board of Governors.

[SEAL] MERRITT SHERMAN, *Secretary.*

[F.R. Doc. 65-12069; Filed, Nov. 9, 1965; 8:46 a.m.]

RENEGOTIATION BOARD

GENERAL COUNSEL

Notice of Basic Compensation

Pursuant to the provisions of section 309 of P.L. 88-426, and of section 15(b) of P.L. 89-301, the General Counsel of The Renegotiation Board shall receive compensation at the rate of $25,382 per annum, effective October 10, 1965.

Dated: November 5, 1965.

LAWRENCE E. HARTWIG, *Chairman.*

[F.R. Doc. 65-12096; Filed, Nov. 9, 1965; 8:48 a.m.]

INTERSTATE COMMERCE COMMISSION

[Notice 83]

MOTOR CARRIER TEMPORARY AUTHORITY APPLICATIONS

NOVEMBER 5, 1965.

The following are notices of filing of applications for temporary authority under section 210a(a) of the Interstate Commerce Act provided for under the new rules in Ex Parte No. MC 67 (49 CFR Part 240), published in the FEDERAL REGISTER, issue of April 27, 1965, effective July 1, 1965. These rules provide that protests to the granting of an application must be filed with the field official named in the FEDERAL REGISTER publication, within 15 calendar days after the date notice of the filing of the application is published in the FEDERAL REGISTER. One copy of such protests must be served on the applicant, or its authorized representative, if any, and the protests must certify that such service has been made. The protest must be specific as the service which such protestant can and will offer, and must consist of a signed original and six (6) copies.

A copy of the application is on file, and can be examined, at the Office of the Secretary, Interstate Commerce Commission, Washington, D.C., and also in the Field Office to which protests are to be transmitted.

MOTOR CARRIERS OF PROPERTY

No. MC 58813 (Sub-No. 66 TA), filed November 3, 1965. Applicant: SELMAN'S EXPRESS, INC., 460 West 35th Street, New York, N.Y. Applicant's representative: Solomon Granett, 1740 Broadway, New York, N.Y. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Wearing apparel*, loose, on hangers only, from Wedowee, Ala., to New York, N.Y., and *materials and supplies used in the manufacture of wearing apparel*, from New York, N.Y., to Wedowee, Ala., for 120 days. Supporting shipper: M & M Manufacturing Co., Inc., Post Office Box A, Wedowee, Ala. Send protests to: Stephen P. Tomany, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 346 Broadway, New York, N.Y., 10013.

No. MC 66562 (Sub-No. 2127 TA), filed November 3, 1965. Applicant: RAILWAY EXPRESS AGENCY, INCORPORATED, 219 East 42d Street, New York, N.Y., 10017. Applicant's representative: William H. Marx (same address as above). Authority sought to operate as

a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, moving in express service, (1) between White River Junction, Vt., and St. Albans, Vt., from White River Junction over U.S. Highway 4 to junction of Vermont Highway 12, thence over Vermont Highway 12 to junction of U.S. Highway 2, thence over U.S. Highway 2 to junction Interstate Highway 89, thence over Interstate Highway 89 to junction Interstate Highway 189, thence over Interstate Highway 189 to junction of U.S. Highway 7, thence over U.S. Highway 7 to St. Albans, Vt., and return over the same route, serving the intermediate points of Bethel, Randolph, Montpelier, and Burlington, Vt., and the off-route points of Roxbury and Richmond, Vt., and (2) from White River Junction, Vt., over Interstate Highway 89 to St. Albans, Vt., and return over the same route, serving no additional points, not listed in (1) above, when additional sections of this road are completed. Supporting shippers: No shipper letters of support attached to original BOR–95 application. Letter dated October 27, 1965, from Central Vermont Railway, Inc., re discontinuance of certain train service. Send protests to: Stephen P. Tomany, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 346 Broadway, New York, N.Y., 10013.

No. MC 95540 (Sub-No. 657 TA), filed November 3, 1965. Applicant: WATKINS MOTOR LINES, INC., Post Office Box 828, Albany Highway, Thomasville, Ga. Applicant's representative: Jack Holloway (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Yeast*, from Jacksonville, Fla., to Thomasville, Ga., for 180 days. Supporting shipper: Anheuser-Busch, Inc., St. Louis, Mo., 63118. Send protests to: George H. Fauss, Jr., District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, Post Office Box 4969, Jacksonville, Fla., 32201.

No. MC 106400 (Sub-No. 60 TA), filed November 3, 1965. Applicant: KAW TRANSPORT COMPANY, 701 North Sterling, Sugar Creek, Mo., 64054. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Sodium aluminate and ferrous sulfate*, liquid, in bulk, from the plantsite of Conservation Chemical Co., Kansas City, Mo., to points in Kansas, for 180 days. Supporting shipper: Conservation Chemical Co., Box 6404, Sheffield Station, Kansas City, Mo., 64125. Send protests to: B. J. Schreier, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 1100 Federal Office Building, 911 Walnut, Kansas City, Mo., 64106.

No. MC 107496 (Sub-No. 418 TA), filed November 3, 1965. Applicant: RUAN TRANSPORT CORPORATION, Keosauqua at Third, Post Office Box 855, Des Moines, Iowa, 50309. Applicant's representative: H. L. Fabritz (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Water solutions of piperazine hydrochloride*, in tank vehicles, from Denver, Colo., to points in Nebraska, Missouri, Illinois, Indiana, and Kentucky, for 180 days. Supporting shipper: Alpha Laboratories, Post Office Box 22223, Denver, Colo., 60222. Send protests to: Ellis L. Annett, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 227 Federal Office Building, Des Moines, Iowa, 50309.

No. MC 107496 (Sub-No. 419 TA), filed November 3, 1965. Applicant: RUAN TRANSPORT CORPORATION, Keosauqua at Third, Post Office Box 855, Des Moines, Iowa, 50309. Applicant's representative: H. L. Fabritz (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Corn syrup and liquid sugar, and blends of corn syrup and liquid sugar*, in bulk, in tank vehicles, from Sioux City, Iowa, to Sioux Falls and Watertown, S. Dak., and Hastings, Nebr., for 180 days. Supporting shipper: Staley Manufacturing Co., Decatur, Ill. Send protests to: Ellis L. Annett, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 227 Federal Office Building, Des Moines, Iowa, 50309.

No. MC 110393 (Sub-No. 24 TA), filed November 3, 1965. Applicant: FRIGID FOOD EXPRESS, INCORPORATED, 4205 Camp Ground Road, Louisville, Ky., 40216. Applicant's representative: Rudy Yessin, Sixth Floor, McLure Building, Frankfort, Ky., 40601. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Dairy products*, from plantsite of Plainview Farms, near Louisville, Ky., to Jacksonville, Miami, St. Petersburg, and Tampa, Fla., for 180 days. Supporting shipper: R. D. Blaine, traffic manager, Bowman Dairy Co., 201 North Wells Street, Chicago, Ill., 60606. Send protests to: Wayne L. Merilatt, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 426 Post Office Building, Louisville, Ky., 40202.

No. MC 115491 (Sub-No. 84 TA), filed November 3, 1965. Applicant: COMMERCIAL CARRIER CORPORATION, 502 East Bridgers Avenue, Post Office Drawer 67, Auburndale, Fla. Applicant's representative: George W. Clapp (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen prepared foods*, from Humboldt, Tenn., to points in Connecticut, Delaware, Illinois, Indiana, Kentucky, Maine, Maryland, Massachusetts, Michigan, New Hampshire, New Jersey, New York, Ohio, Pennsylvania, Rhode Island, Vermont, West Virginia, Wisconsin, and the District of Columbia, for 150 days. Supporting shipper: Ocoma Foods Co., Humboldt, Tenn., a subsidiary of Consolidated Foods Corp., 135 South La Salle Street, Chicago, Ill., 60603. Send protests to: Joseph B. Teichert, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, Room 1621, 51 Southwest First Avenue, Miami, Fla., 33130.

No. MC 118561 (Sub-No. 8 TA), filed November 3, 1965. Applicant: HERBERT B. FULLER, doing business as FULLER TRANSFER COMPANY, 212 East Street, Post Office Box 422, Maryville, Tenn., 37801. Applicant's representative: Harold Seligman, Life & Casualty Tower, Nashville, Tenn., 37219. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meat, meat products, and meat byproducts* as described in section A of appendix I to the report in *Description in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, in vehicles equipped with temperature control devices, in refrigerated vehicles, from Knoxville, Tenn., and points in Blount County, Tenn., to points in the following named counties of the State of Georgia: Catoosa, Chattooga, Dade, Gordon, Murray, Walker, and Whitfield, for 180 days. Supporting shipper: Oscar Mayer & Co., Inc., Madison, Wis., Richard C. Flesch. Send protests to: J. E. Gamble, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 706 U.S. Courthouse, Nashville, Tenn., 37203.

No. MC 124964 (Sub-No. 3 TA), filed November 3, 1965. Applicant: JOSEPH M. BOOTH, doing business as J. M. BOOTH TRUCKING, Post Office Box 907, Eustis, Fla., 32726. Applicant's representative: George A. Olsen, 69 Tonnele Avenue, Jersey City, N.J., 07306. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Citrus, and fruit juices* in packages, when transported in the same vehicle with exempt commodities, from Umatilla, Fla., to points in North Carolina, Virginia, Maryland, Delaware, New Jersey, New York, Pennsylvania, Connecticut, Rhode Island, Massachusetts, and the District of Columbia, for 150 days. Supporting shipper: Doric Foods Corp., State Road Nineteen, Umatilla, Fla., 32784. Send protests to: George H. Fauss, Jr., District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, Post Office Box 4969, Jacksonville, Fla., 32201.

No. MC 125417 (Sub-No. 7 TA), filed November 3, 1965. Applicant: BULK FREIGHTWAYS, 8332 Wilcox Avenue, South Gate, Calif. Applicant's representative: Wyman C. Knapp, 740 Roosevelt Building, 727 West Seventh Street, Los Angeles, Calif., 90017. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Sodium phosphate*, in bulk, in hopper type equipment, from Los Angeles, Calif., to points in the St. Louis, Mo.-East St. Louis, Ill., commercial zone, for 180 days. Supporting shipper: Monsanto Co., 600 North Lindbergh Boulevard, St. Louis, Mo., 63166. Send protests to: Ernest D. Salm, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, Room 7708, 300 North Los Angeles Street, Los Angeles, Calif., 90012.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary*.

[F.R. Doc. 65–12086; Filed, Nov. 9, 1965; 8:47 a.m.]

[Notice 372]

MOTOR CARRIER ALTERNATE ROUTE DEVIATION NOTICES

NOVEMBER 5, 1965.

The following letter-notices of proposals to operate over deviation routes for operating convenience only have been filed with the Interstate Commerce Commission, under the Commission's Deviation Rules Revised, 1957 (49 CFR 211.1(c)(8)) and notice thereof to all interested persons is hereby given as provided in such rules (49 CFR 211.1(d)(4)).

Protests against the use of any proposed deviation route herein described may be filed with the Interstate Commerce Commission in the manner and form provided in such rules (49 CFR 211.1(e)) at any time, but will not operate to stay commencement of the proposed operations unless filed within 30 days from the date of publication.

Successively filed letter-notices of the same carrier under the Commission's Deviation Rules Revised, 1957, will be numbered consecutively for convenience in identification and protests if any should refer to such letter-notices by number.

MOTOR CARRIERS OF PROPERTY

No. MC 879 (Deviation No. 7), SERVICE LINES, INC., 225 Lynch Street, St. Louis 18, Mo., filed October 28, 1965. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over deviation routes as follow: (1) From junction U.S. Highway 460 and By-Pass U.S. Highway 50 at Belleville, Ill., over By-Pass U.S. Highway 50 to junction Illinois Highway 161, thence over Illinois Highway 161 to junction Illinois Highway 37, thence over Illinois Highway 37 to junction U.S. Highway 460 at Mount Vernon, Ill.; and (2) from junction U.S. Highway 460 and Illinois Highway 158 at Belleville, Ill., over Illinois Highway 158 to junction Illinois Highway 161, thence over Illinois Highway 161 to junction Illinois Highway 37, thence over Illinois Highway 37 to junction U.S. Highway 460 at Mount Vernon, Ill.; and return over the same routes, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities over a pertinent service route as follows: From Belleville, Ill., over U.S. Highway 460 to Mount Vernon, Ill., and return over the same route.

No. MC 11220 (Deviation No. 13), GORDONS TRANSPORT, INC., Post Office Box 2696, Memphis, Tenn., 38102, filed October 25, 1965. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From Idabel, Okla., over Oklahoma Highway 37 to the Oklahoma-Texas State line, thence over Texas Highway 37 to Mount Vernon, Tex., thence over U.S. Highway 67 and/or Interstate Highway 30 to Dallas, Tex., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities, over a pertinent service route, as follows: From Idabel, Okla., over U.S. Highway 70 to Durant, Okla., thence over U.S. Highway 75 to Dallas, Tex., and return over the same route.

No. MC 59488 (Deviation No. 7), SOUTHWESTERN TRANSPORTATION COMPANY, 1517 West Front Street, Tyler, Tex., filed October 28, 1965. Applicant's representative: Lloyd M. Roach, 1517 West Front Street, Tyler, Tex., 75702. Carrier proposes to operate as a common carrier, by motor vehicle, of *general commodities*, with certain exceptions over a deviation route as follows: (1) From junction U.S. Highway 61 and Missouri Highway 74, west of Cape Girardeau, Mo., over Missouri Highway 74 to junction Missouri Highway 25, thence over Missouri Highway 25 to junction U.S. Highway 60, thence over U.S. Highway 60 to junction U.S. Highway 67, thence over U.S. Highway 67 to North Little Rock, Ark., and (2) from junction U.S. Highway 61 and U.S. Highway 60 near Sikeston, Mo., over U.S. Highway 60 to junction U.S. Highway 67, thence over U.S. Highway 67 to North Little Rock, Ark., and return over the same routes, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities over a pertinent service route as follows: From Cape Girardeau, Mo., over Missouri Highway 74 to junction U.S. Highway 61, thence over U.S. Highway 61 to junction U.S. Highway 70 at West Memphis, Ark., and thence over U.S. Highway 70 to North Little Rock, Ark., and return over the same route.

No. MC 109095 (Deviation No. 10), ANDERSON MOTOR SERVICE, INC., 1516 East 14th Street, St. Louis, Mo., 63106, filed October 28, 1965. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *general commodities*, with certain exceptions, over a deviation route as follows: From Indianapolis, Ind., over U.S. Highway 36 to junction Indiana Highways 9 and 67, thence over Indiana Highways 9 and 67 to junction Interstate Highway 69, thence over Interstate Highway 69 to junction U.S. Highway 24 at which point it is proposed to resume regular authority over U.S. Highway 24 to Fort Wayne, Ind., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport the same commodities over a pertinent service route as follows: From Indianapolis, Ind., over U.S. Highway 36 to junction Indiana Highway 67, thence over Indiana Highway 67 to junction Indiana Highway 9, thence over Indiana Highway 9 to junction Indiana Highway 37, thence Indiana Highway 37 to junction U.S. Highway 24, thence over U.S. Highway 24 to Fort Wayne, Ind., and return over the same route.

MOTOR CARRIERS OF PASSENGERS

No. MC 1515 (Deviation No. 272), GREYHOUND LINES, INC. (WESTERN GREYHOUND LINES DIVISION), Market and Fremont Streets, San Francisco, Calif., 94106. Carrier's representative: W. T. Meinhold, 371 Market Street, San Francisco, Calif., 94105, filed October 25, 1965. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *passengers and their baggage* and *express and newspapers*, in the same vehicle with passengers, over a deviation route as follows: Between Chico, Calif., and junction U.S. Highway 99E and unnumbered highway (Centerville Road Interchange), over U.S. Highway 99E, for operating convenience only. The notice indicates that the carrier is presently authorized to transport passengers and the same property over a pertinent service route as follows: Between Red Bluff, Calif., and Roseville, Calif., over U.S. Highway 99E.

No. MC 1515 (Deviation No. 273) (Cancels Deviation No. 230), GREYHOUND LINES, INC. (WESTERN GREYHOUND LINES DIVISION), Market and Fremont Streets, San Francisco, Calif., 94106. Carrier's representative: W. T. Meinhold, 371 Market Street, San Francisco, Calif., 94105, filed October 29, 1965. Carrier proposes to operate as a *common carrier*, by motor vehicle, of *passengers and their baggage* and *express and newspapers*, in the same vehicle with passengers, over deviation routes as follows: (1) From junction unnumbered highway and U.S. Highway 101 (Crannell Junction), over U.S. Highway 101 to junction unnumbered highway (Mad River Bridge); (2) from junction unnumbered highway and U.S. Highway 101 (Humboldt Hill Road Junction), over U.S. Highway 101 to junction unnumbered highway (Salmon Avenue Junction); (3) from junction unnumbered highway and U.S. Highway 101 (North Fields Landing Junction), over U.S. Highway 101 to junction unnumbered highway (South Fields Landing Junction); (4) from junction unnumbered highway and U.S. Highway 101 (North Whites Slough Junction), over U.S. Highway 101 to junction unnumbered highway (South Whites Slough Junction); (5) from junction unnumbered highway and U.S. Highway 101 (North Fortuna Interchange), over U.S. Highway 101 to junction unnumbered highway (Rohnerville Overcrossing); (6) from junction California Highway 254 and U.S. Highway 101 (Englewood) over U.S. Highway 101 to junction California Highway 254 (Tuttle Creek Junction).

(7) From junction unnumbered highway and U.S. Highway 101 (Forsythe Creek Junction), over U.S. Highway 101, to junction unnumbered highway (South Ukiah Overcrossing); (8) from junction unnumbered highway and U.S. Highway 101 (North Hiatt Road Junction), over U.S. Highway 101 to junction unnumbered highway (Rich Ranch Road Junction); and (9) from junction unnumbered highway and U.S. Highway 101 (North Healdsburg Junction), over U.S. Highway 101 to junction Business Route U.S. Highway 101 (North Santa Rosa Junction); and return over the same routes, for operating convenience only.

The notice indicates that the carrier is presently authorized to transport passengers and the same property over a pertinent service route as follows: From the intersection of the Oregon-California State line and U.S. Highway 101, over U.S. Highway 101 to junction unnumbered highway (North Healdsburg Junction), thence over unnumbered highway via Healdsburg to junction U.S. Highway 101 (South Healdsburg Junction), thence over U.S. Highway 101 to junction Business Route U.S. Highway 101 (North Santa Rosa Junction), thence over Business Route U.S. Highway 101 through Santa Rosa to junction U.S. Highway 101 (South Santa Rosa Junction), thence over U.S. Highway 101 to junction unnumbered highway north of Cotati (North Cotati Junction) thence over unnumbered highway through Cotati and Petaluma to junction U.S. Highway 101 (Petaluma Junction), thence over U.S. Highway 101 to San Francisco, Calif., and return over the same route.

No. MC 72349 (Deviation No. 1), EASTERN MASSACHUSETTS STREET RAILWAY COMPANY, 1442 Main Street, Brockton, Mass., filed October 22, 1965. Applicant's representative: Neal Holland, 77 Franklin Street, Boston, Mass., 02110. Carrier proposes to operate as a *common carrier* by motor vehicle, of *passengers and their baggage and express, newspapers and mail*, in the same vehicle with passengers over a deviation route as follows: From the junction of Massachusetts Highways 28 and 125 in Andover, Mass., over Massachusetts Highway 125 to junction Interstate Highway 93, thence over Interstate Highway 93 to Boston, Mass., and return over the same route, for operating convenience only. The notice indicates that the carrier is presently authorized to transport passengers and the same property over a pertinent service route as follows: Between Boston, Mass., and Lawrence, Mass., over Massachusetts Highway 28.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 65-12087; Filed, Nov. 9, 1965; 8:47 a.m.]

[Notice 841]

MOTOR CARRIER APPLICATIONS AND CERTAIN OTHER PROCEEDINGS

NOVEMBER 5, 1965.

The following publications are governed by the new Special Rule 1.247 of the Commission's rules of practice, published in the FEDERAL REGISTER, issue of December 3, 1963, which became effective January 1, 1964.

The publications hereinafter set forth reflect the scope of the applications as filed by applicants, and may include descriptions, restrictions, or limitations which are not in a form acceptable to the Commission. Authority which ultimately may be granted as a result of the applications here noticed will not necessarily reflect the phraseology set forth in the application as filed, but also will eliminate any restrictions which are not acceptable to the Commission.

APPLICATIONS ASSIGNED FOR ORAL HEARING

MOTOR CARRIERS OF PROPERTY

No. MC 109064 (Sub-No. 11), filed November 12, 1964. Applicant: TEX-O-KA-N TRANSPORTATION COMPANY, INC., 221 Northeast 28th Street, Post Office Box 4278, Fort Worth, Tex. Applicant's attorney: Clayte Binion, Century Life Building, Fort Worth, Tex., 76102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Machinery, materials, equipment* and *supplies* used in, or in connection with the construction, operation, repair, servicing, maintenance and dismantling of pipelines, including the stringing and picking up thereof, (a) between points in Oklahoma and Kansas, those in Lea and Eddy Counties, N. Mex., and those in Texas north of a line beginning at El Paso, Tex., and extending along U.S. Highway 80 to Dallas, Tex., thence along U.S. Highway 175 to Jacksonville, Tex., and thence along U.S. Highway 79 to the Texas-Louisiana State line, including points on the indicated portions of the highways specified, and (b) between points in that part of Texas on and north of a line beginning at El Paso, Tex., and extending along U.S. Highway 80 to Dallas, Tex., thence along U.S. Highway 175 to Jacksonville, Tex., and thence along U.S. Highway 79 to the Texas-Louisiana State line, on the one hand, and, on the other, points in Colorado, Wyoming, Utah, and Montana, (2) *plastic pipe, valves and fittings*, and *materials* used in the installation thereof, from the plantsite of the Carlon Products Co., located approximately four (4) miles south of Corsicana, Tex., to points in Arizona, Arkansas, Colorado, Kansas, Louisiana, Nebraska, New Mexico, Oklahoma, Utah, and Wyoming, and (3) *machinery, materials, equipment and supplies* used in, or in connection with, the construction, operation, repair, servicing, maintenance, and dismantling of pipelines, including the stringing and picking up thereof, (a) between points in Arkansas and Louisiana, and (b) between points in Arkansas and Louisiana, on the one hand, and, on the other, points in Texas and New Mexico.

HEARING: December 13, 1965, at the Baker Hotel, Dallas, Tex., before Examiner Wm. N. Culbertson.

No. MC 127209 (Clarification) filed April 28, 1965, published in FEDERAL REGISTER issue of August 26, 1965, and republished as clarified, this issue. Applicant: SIDNEY LIPMAN, 59 Campbell Street, Woburn, Mass. Applicant's representative: Francis E. Barrett, Jr., 182 Forbes Building, Forbes Road, Braintree, Mass., 02184. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Tannery products and tannery by-products* (except those to be transported in tank or hopper type vehicles), between Saco, Maine, Taunton, Danvers, Peabody, and Woburn, Mass., Pennacook, Suncook, Merrimac and Dover, N.H., Wilmington, Del., Philadelphia, Pa., and Johnstown and Gowonda, N.Y. NOTE: Applicant states that any authority granted shall be limited to one under a continuing contract with Sidney Lipman Co., Woburn, Mass. The purpose of this republication is to clarify the commodity description and also to show Dover in New Hampshire in lieu of that previously published. Remains as assigned: December 7, 1965, at the Hotel Bradford, 275 Tremont Street, Boston, Mass., before Examiner Samuel C. Shoup.

No. MC 78947 (Sub-No. 6) (Republication), filed June 21, 1965, published FEDERAL REGISTER issue of July 9, 1965, and republished, this issue. Applicant: ELLIOTT BROS. TRUCK LINE, INC., Dysart, Iowa. Applicant's representative: Kenneth F. Dudley, 901 South Madison Avenue, Post Office Box 279, Ottumwa, Iowa, 52502. By application filed June 21, 1965, applicant seeks a certificate of public convenience and necessity authorizing operation, in interstate or foreign commerce, as a *common carrier* by motor vehicle, of such merchandise as it dealt in by retail hardware dealers, serving the Bethlehem Steel Co. plant at Burns Harbor, Porter County, Ind., as an off-route point in connection with applicant's authorized regular route operations between Chicago, Ill., and Waterloo, Iowa. By order entered on September 30, 1965, applicant was granted authority to transport, over irregular routes, iron and steel articles from the plantsite of the Bethlehem Steel Co. at Burns Harbor, Porter County, Ind., to Waterloo, Iowa. By letter of October 9, 1965, applicant notes that not all of the supporting shippers are situated at Waterloo, Iowa, and that the plant of one shipper, Schield Bantam Division, Koehring Company is at Waverly, Iowa, and it requests that the authority herein be modified to include Waverly, Iowa, as a destination. A Supplemental Order of the Commission, Operating Rights Board No. 1, dated October 22, 1965, and served October 29, 1965, finds that the present and future public convenience and necessity require operation by applicant, in interstate or foreign commerce, as a *common carrier* by motor vehicle, over irregular routes, of *iron and steel articles* from the plantsite of the Bethlehem Steel Co. at Burns Harbor, Porter County, Ind., to Waterloo and Waverly, Iowa; that applicant is fit, willing, and able properly to perform such service and to conform to the requirements of the Interstate Commerce Act and the Commission's rules and regulations thereunder. Because it is possible that other parties, who have relied upon the notice of the application as published, may have an interest in and would be prejudiced by the lack of proper notice of the authority described in the findings in this order, a notice of the authority actually granted will be published in the FEDERAL REGISTER and issuance of a certificate in this proceeding will be withheld for a period of 30 days from the date of such publication, during which period any proper party in interest may file an appropriate protest or other pleading.

No. MC 111729 (Sub-No. 37) (Republication), filed December 28, 1964, published FEDERAL REGISTER issue of January 13, 1965, and republished, this issue. Applicant: ARMORED CARRIER CORPORATION, 222-17 Northern Boulevard, Bayside, N.Y. Applicant's representative: Russell S. Bernhard, 1625 K Street NW., Washington, D.C., 20006. By application filed December 28, 1964, applicant seeks a certificate of public convenience and necessity authorizing operation in interstate or foreign commerce, as a *common carrier* by motor vehicle, over irregular routes, of business papers, records, and audit accounting media of all kinds (excluding plant removals), (1) between Cincinnati, Ohio, on the one hand, and, on the other, Lexington and Louisville, Ky., and (2) between Parkersburg, W. Va., on the one hand, and, on the other, Pittsburgh, Pa., subject to the restriction that no service shall be performed for any bank or banking institutions, namely, any national bank, State bank, Federal Reserve bank, savings and loan association, or saving bank. An Order of the Commission, Operating Rights Board No. 1, dated April 13, 1965, and served April 19, 1965, finds that the present and future public convenience and necessity require operation by applicant, in interstate or foreign commerce, as a *common carrier* by motor vehicle, over irregular routes, of *business papers and records*, and *audit and accounting media* (except cash letters) (1) from Lexington and Louisville, Ky., to Cincinnati, Ohio, and (2) from Parkersburg, W. Va., to Pittsburgh, Pa. Because it is possible that other parties, who have relied upon the notice of the application as published, may have an interest in and would be prejudiced by the lack of proper notice of the authority described in the findings in this order, a notice of the authority actually granted will be published in the FEDERAL REGISTER, and any proper party in interest may file an appropriate pleading within a period of 30 days from the date of such publication.

No. MC 111729 (Sub-No. 38) (Republication), filed December 28, 1964, published FEDERAL REGISTER issue of January 20, 1965, and republished, this issue. Applicant: ARMORED CARRIER CORPORATION, 222-17 Northern Boulevard, Bayside, N.Y. Applicant's representative: Russell S. Bernhard, 1625 K Street NW., Washington, D.C., 20006. By application filed December 28, 1964, applicant seeks a certificate of public convenience and necessity authorizing operation, in interstate or foreign commerce, as a common carrier by motor vehicle, over irregular routes, of the commodities and between the points substantially as indicated in the findings herein except that applicant requests that the proposed service be limited to shippers other than banks and banking institutions, and include the commodities named "of all kinds" and exclude plant removals. A second corrected order of the Commission, Operating Rights Board No. 1, dated April 23, 1965, and served May 5, 1965, finds that the present and future public convenience and necessity require operation by applicant, in interstate or foreign commerce, as a *common carrier* by motor vehicle, over irregular routes, of (1) *audit media*, except cash letters, and *automobile and industrial bearings* and *rings*, restricted against the transportation of any shipment of said bearings and rings weighing in the aggregate of more than 20 pounds from one consignor at any one location to one consignee at any one location on any one date, between Hartford, Conn., on the one hand, and, on the other, points in Suffolk County, Mass., Providence County, R.I., and Cumberland County, Maine, and (2) *payroll checks, advertising signs, business papers, records*, and *audit and accounting media*, except cash letters, between Pawtucket, R.I., on the one hand, and, on the other, points in Worcester, Plymouth, and Norfolk Counties, Mass., and New York, N.Y. Because it is possible that other parties, who have relied upon the notice of the application as published, may have an interest in and would be prejudiced by the lack of proper notice of the authority described in the findings in this order, a notice of the authority actually granted will be published in the FEDERAL REGISTER, and any proper party in interest may file an appropriate pleading within a period of 30 days from the date of such publication.

No. MC 112750 (Sub-No. 177) (Corrected republication), filed January 14, 1964, published FEDERAL REGISTER issues of January 29, 1964, and March 31, 1965, respectively, and republished, this issue. Applicant: ARMORED CARRIER CORPORATION, Bayside, N.Y. By application filed January 14, 1964, as amended, applicant seeks a permit authorizing operation in interstate or foreign commerce, as a contract carrier by motor vehicle over irregular routes, of (1) imprinted checks, fillers, and check books and orders for the described commodities, between Louisville, Ky., on the one hand, and, on the other, Charleston, W. Va., (2) checks, business papers, records and audit and accounting media, of all kinds (except plant removals), (a) between Columbus, Ohio, on the one hand, and, on the other, Huntington, W. Va., (b) between Cleveland, Ohio, on the one hand, and, on the other, Erie, Pa., (c) between Cleveland, Ohio, on the one hand, and, on the other, Pittsburgh, Pa., and (d) between Akron, Ohio, on the one hand, and, on the other, Boyers, Pa., (3) exposed and processed film and prints, complimentary replacement film, incidental dealer handling supplies consisting of labels, envelopes and packaging materials, and advertising literature moving therewith (except motion picture film used primarily for commercial theater and television exhibition), between Findlay and Columbus, Ohio, on the one hand, and, on the other, points in Cabell, Kanawha, and Wood Counties, W. Va., (4) ophthalmic goods and commercial papers (except supplies and plant removals), (a) between Cleveland, Ohio, on the one hand, and, on the other, Pittsburgh, Pa., and (b) between Cincinnati, Ohio, on the one hand, and, on the other, Richmond, Jeffersonville, and Indianapolis, Ind., Lexington, Ky., and Huntington, Charleston and Parkersburg, W. Va., under continuing contract or contracts with Herald Printery, Louisville, Ky., in (1) with Service Bureau Corporation and Ohio Fuel Gas Co., Columbus, Ohio, in (2)(a), with Service Bureau Corp., in (2)(b), with the Peoples Natural Gas Co., in (2)(c), with Firestone Tire & Rubber Co. of Akron, Ohio, in (2)(d), with Eastman Kodak Co., in (3), and with Schuron Optical Co., in (4) (a) and (b). On February 24, 1965, the Commission, Operating Rights Board No. 1, filed and entered an order in the above-entitled proceeding, which was served on March 8, 1965. A corrected notice to the parties, dated March 17, 1965, and served April 16, 1965, corrects the third numbered paragraph of the findings in appendix B thereof to read as follows:

(1) *Imprinted checks, fillers* and *checkbooks* and *orders* for the described commodities, between Louisville, Ky., on the one hand, and, on the other, Charleston, W. Va., (2) *checks, business papers, records* and *audit* and *accounting media* (except cash letters), (a) between Columbus, Ohio, on the one hand, and, on the other, Erie, Pa., (b) between Akron, Ohio, on the one hand, and, on the other, Boyers, Pa., and (c) between Cleveland, Ohio, on the one hand, and, on the other, Pittsburgh and Erie, Pa., (3) *exposed film* and *prints*, excluding motion picture film used primarily for commercial theatre and television exhibition, from points in Cabell, Kanawha, and Wood Counties, W. Va., to Findlay and Columbus, Ohio, and *processed film* and *prints*, excluding motion picture film used primarily for commercial theatre and television exhibition, *complimentary replacement film, labels, envelopes, and packaging materials*, and *advertising literature* moving therewith from Findlay and Columbus, Ohio, to points in Cabell, Kanawha, and Wood Counties, W. Va., (4) *ophthalmic goods* and *commercial papers*, (a) between Cleveland, Ohio, on the one hand, and, on the other, Pittsburgh, Pa., and (b) between Cincinnati, Ohio, on the one hand, and, on the other, Richmond, Jeffersonville, and Indianapolis, Ind., Lexington, Ky., and Huntington, Charleston, and Parkersburg, W. Va. Because it is possible that other parties, who have relied upon the notice of this application as published, may have an interest in and would be prejudiced by the lack of proper notice of the authority described above, a notice of the authority actually granted will be published in the FEDERAL REGISTER, and any proper party in interest may file an appropriate pleading within a period of 30 days from the date of such publication.

No. MC 112750 (Sub-No. 197) (Corrected republication), filed May 8, 1964, published FEDERAL REGISTER issues of May 27, 1964, and March 31, 1965, respectively, and republished, this issue. Applicant: ARMORED CARRIER CORPORATION, Bayside, N.Y. By application filed May 8, 1964, applicant seeks a permit authorizing operation in inter-

state or foreign commerce, as a contract carrier by motor vehicle over irregular routes, of (1) business records and payroll checks, between Pittsburgh, Pa., on the one hand, and, on the other, Akron, Ashtabula, Cambridge, Cleveland, Dover, Marion, Sandusky, Toledo, and Youngstown, Ohio, (2) glass products and commercial papers (excluding plant removal and supplies) between Brockway (Jefferson County), Pa., on the one hand, and, on the other, Zanesville (Muskingum County), Ohio, and Parkersburg (Wood County), W. Va., and (3) exposed and processed film and prints, complimentary replacement film, incidental dealer and handling supplies consisting of labels, envelopes, and packaging materials, and advertising literature moving therewith (excluding motion picture film used primarily for commercial theater and television exhibition), between points in Allegheny County, Pa., on the one hand, and, on the other, points in Cuyahoga and Columbiana Counties, Ohio, and Brooke and Hancock Counties, W. Va. On February 24, 1965, the Commission, Operating Rights Board No. 1, filed and entered an order in the above-entitled proceeding, which was served on March 8, 1965. A corrected notice to the parties, dated March 17, 1965, and served April 16, 1965, corrects the sixth numbered paragraph of the findings in Appendix B thereof to read as follows:

(1) *Business records* and *payroll checks*, between Pittsburgh, Pa., on the one hand, and, on the other, Akron, Ashtabula, Cambridge, Cleveland, Dover, Marion, Sandusky, Toledo, and Youngstown, Ohio, (2) *glass products* and *commercial papers* (except cash letters, between Brockway (Jefferson County), Pa., on the one hand, and, on the other, Zanesville (Muskingum County), Ohio, and Parkersburg (Wood County), W. Va., and (3) *exposed film* and *prints*, excluding motion picture film used primarily for commercial theater and television exhibition, from points in Cuyahoga and Columbiana Counties, Ohio, and Brooke and Hancock Counties, W. Va., to Wilkinsburg, Pa., and *processed film* and *prints*, excluding motion picture film used primarily for commercial theater and television exhibition, complimentary replacement film, labels, envelopes and packaging materials, and advertising literature moving therewith from Wilkinsburg, Pa., to points in Cuyahoga and Columbiana Counties, Ohio, and Brooke and Hancock Counties, W. Va. Because it is possible that other parties, who have relied upon the notice of this application as published, may have an interest in and would be prejudiced by the lack of proper notice of the authority described above, a notice of the authority actually granted will be published in the FEDERAL REGISTER, and any proper party in interest may file an appropriate pleading within a period of 30 days from the date of such publication.

No. MC 126778 (Republication), filed December 7, 1964, published FEDERAL REGISTER issues of December 23, 1964, and September 9, 1965, respectively, and republished, this issue. Applicant: PRESGRAVE BROS., INC., 8114 Harvard, Cleveland, Ohio, 44105. Applicant's representative: Earl N. Merwin, 85 East Gay Street, Columbus 15, Ohio. By application filed December 7, 1964, as amended, applicant seeks a permit authorizing operation, in interstate or foreign commerce, as a *contract carrier* by motor vehicle, over irregular routes, of steel drums, steel pails, and agitators therefor, and parts and accessories thereof, when moving therewith, from Cleveland, Ohio, to points in Kentucky, Michigan, New York, Pennsylvania, and West Virginia; and rejected and returned shipments of the above-described commodities on return; under a continuing contract or contracts with Inland Steel Container Co., of Cleveland, Ohio. A second supplemental order of the Commission, Operating Rights Board No. 1, dated October 22, 1965, and served October 29, 1965, finds that the present and future public convenience and necessity require operation by applicant, in interstate or foreign commerce, as a *common carrier* by motor vehicle, over irregular routes, of *steel drums* and *steel pails* from the plantsite of Inland Steel Container Co., located at Cleveland, Ohio, to points in Kentucky, Michigan, New York, Pennsylvania, and West Virginia; that applicant is fit, willing, and able properly to perform such service and to conform to the requirements of the Interstate Commerce Act and the Commission's rules and regulations thereunder. Because it is possible that other parties, who have relied upon the notice of the application as published, may have an interest in and would be prejudiced by the lack of proper notice of the authority described in the findings in this order, a notice of the authority actually granted will be published in the FEDERAL REGISTER and within 30 days from the date of such publication, any proper party in interest may file an appropriate protest or other pleading.

NOTICE OF FILING OF PETITIONS

No. MC 96098 (Sub-No. 22) and (Sub-No. 25) (Petition for amendment of shipper), filed October 26, 1965. Petitioner: H. H. FOLLMER CONTRACT HAULING, INC., Post Office Box 389, Milton, Pa. Petitioner's representative: Preston L. Davis, 37 Arch Street, Milton, Pa. In Docket No. MC 96098 (Sub-No. 22) applicant holds the following authority: *Printing paper* (other than newsprint, not printed or imprinted), and *wrapping paper* (other than oiled, waxed, or vegetable parchment, printed or imprinted, or not printed or imprinted), from the plantsite of the New York and Pennsylvania Co., Inc., at Lock Haven (Clinton County), Pa., to points in New York (except Rochester and Buffalo, N.Y.), New Jersey and Connecticut, with no transportation for compensation on return except as otherwise authorized. In Docket No. MC 96098 (Sub-No. 25) applicant holds the following authority: *Paper scrap or waste* (not sensitized), *woodpulp*, not powdered, *cores*, *chocks*, and *canvas covers*, *machinery and machinery parts*, *papermill rolls*, *flour* (cassava, sago, or tapioca), except in bulk, in tank vehicles, *oil and grease*, except in bulk, in tank vehicles, and *chemicals*, *chemical products*, and *constituents* used in the manufacture of woodpulp and paper or the processing thereof, except in bulk, in tank vehicles, from points in New York, New Jersey, and Connecticut, to manufacturing plants of the New York & Pennsylvania Co., Inc., at Johnsonburg and Lock Haven, Pa., with no transportation for compensation on return, except as otherwise authorized. Restriction: The service authorized herein is subject to the following conditions: The operations authorized herein are restricted against the transportation of commodities which, because of size, shape or weight, require the use of special equipment to load, unload, or transport the same. The operations authorized herein are limited to a transportation service to be performed, under a continuing contract, or contracts, with New York & Pennsylvania Co., Inc., of New York, N.Y. Petitioner states in the instant petition, that the shipper, New York & Pennsylvania Co., Inc., has sold its plant in Lock Haven, Clinton County, Pa., to Hammermill Paper Co., which has taken over the operations of that plant; and that Hammermill Paper Co. has requested it to continue to provide the same or similar service to it as was supplied to New York & Pennsylvania Co., Inc., under the contracts executed pursuant to the authority granted in the permits listed above.

By the instant petition, petitioner requests that the permit issued in (Sub-No. 22) be amended to read as follows: *Printing Paper* (other than newsprint, not printed or imprinted), and *wrapping paper* (other than oiled, waxed, or vegetable parchment, printed or imprinted, or not printed or imprinted), from the plantsite of the Hammermill Paper Co. at Lock Haven (Clinton County), Pa., to points in New York (except Rochester and Buffalo, N.Y.), New Jersey and Connecticut, with no transportation for compensation on return except as otherwise authorized; and that the Permit in (Sub-No. 25) be amended to read as follows: *Paper scrap or waste* (not sensitized), *woodpulp*, not powdered, *cores*, *chocks*, and *canvas covers*, *machinery and machinery parts*, *papermill rolls*, *flour* (cassava, sago, or tapioca), except in bulk, in tank vehicles, *oil and grease*, except in bulk, in tank vehicles, and *chemicals*, *chemical products*, and *constituents* used in the manufacture of woodpulp and paper or the processing thereof, except in bulk, in tank vehicles, from points in New York, New Jersey, and Connecticut, to manufacturing plants of the New York and Pennsylvania Co., Inc., at Johnsonburg, and Hammermill Paper Co. at Lock Haven, Pa., with no transportation for compensation on return, except as otherwise authorized. Restriction: The service authorized herein is subject to the following conditions: The operations authorized herein are restricted against the transportation of commodities which, because of size, shape, or weight, require the use of special equipment to load, unload, or transport the same. The operations authorized herein are limited to a transportation service to be performed, under a continuing contract, or contracts, with New York and Pennsylvania

Co., Inc., of New York, N.Y., and with Hammermill Paper Co. of Erie, Pa. Any person or persons desiring to oppose the relief sought by the instant petition, may, within 30 days from the date of this publication in the FEDERAL REGISTER, file an appropriate pleading, consisting of an original and six copies each.

No. MC 103993 and Sub-Nos. 13, 14, 19, 21, 22, 27, 28, 32, 34, 36, 37, 38, 39, 43, 45, 46, 50, 51, 54, 56, 57, 58, 60, 61, 62, 63, 65, 70, 75, 78, 80, 81, 82, 84, 88, 90, 91, 93, 94, 95, 96, 97, 101, 102, 105, 107, 112, 113, 114, 115, 120, 123, 124, 128, 129, 134, 136, 138, 143, 145, 150, 152, 154, 156, 159, 162, 163, 164, 170, 171, 172, 173, 175, 176, 179, 182, 183, 185, 188, 191, 192, 193, 194, 200, and 201 (Petition to modify certain of its certificates of operating authority), filed September 30, 1965. Petitioner: MORGAN DRIVE AWAY, INC., Elkhart, Ind. Petitioner's representative: James E. Lesh, 3737 North Meridian Street, Indianapolis, Ind. Petitioner states that for many years it has been, and is now, a common carrier by motor vehicle specializing in the transportation, in truckaway service, of house trailers, or mobile homes. Since on or about January 1, 1962, which was about the time that the same first began being manufactured, petitioner also extensively has transported what often in the trade is called "double-wide" homes, or similar sectionalized units. At the present time, it holds extensive authority authorizing the transportation, in truckaway service, over irregular routes, of "trailers, designed to be drawn by passenger automobiles" from and to, and between, numerous points in the United States, in both initial and secondary movements. Such authority is represented by certificates issued petitioner in No. MC 103993 and Sub numbers thereunder. By the instant petition, petitioner requests the Commission to: (1) Modify all of its certificates referred to above to include within the commodity description of each such certificate, insofar as the same pertain to house trailers or mobile homes, or words of like import, the following: "Trailers, designed to be drawn by passenger automobiles, including sectional units thereof transported on undercarriages"; (2) use the above-described commodity description in the issuance of certificates to be issued in connection with all petitioner's trailer applications now pending; (3) grant the relief herein prayed either with or without formal hearing, as the Commission may deem appropriate; and (4) petitioner further asks for all other proper relief. Any person or persons desiring to participate in this proceeding may, within 30 days from the date of this publication in the FEDERAL REGISTER, file an appropriate pleading, consisting of an original and six copies each.

APPLICATIONS FOR CERTIFICATES OR PERMITS WHICH ARE TO BE PROCESSED CONCURRENTLY WITH APPLICATIONS UNDER SECTION 5 GOVERNED BY SPECIAL RULE 1.240 TO THE EXTENT APPLICABLE

No. MC 49387 (Sub-No. 27), filed October 28, 1965. Applicant: ORSCHELN BROS. TRUCK LINES, INC., Highway 24 East, Moberly, Mo. Applicant's representative: G. M. Rebman, 1230 Boatmen's Bank Buliding, St. Louis 2, Mo. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, livestock, household goods as defined by the Commission, commodities in bulk, commodities requiring special equipment and those injurious or contaminating to other lading), between Kansas City, Kans., and Jefferson City, Mo., over U.S. Highway 50, serving the intermediate points of Warrensburg and Sedalia, Mo., and those intermediate and off-route points in the Kansas City, Kansas-Missouri, commercial zone, as defined by the Commission. NOTE: This is a matter directly related in part to MC-F 9245, published in the FEDERAL REGISTER issue of November 3, 1965.

APPLICATIONS UNDER SECTIONS 5 AND 210a(b)

The following applications are governed by the Interstate Commerce Commission's special rules governing notice of filing of applications by motor carriers of property or passengers under sections 5(a) and 210a(b) of the Interstate Commerce Act and certain other proceedings with respect thereto (49 CFR 1.240).

MOTOR CARRIERS OF PROPERTY

No. MC-F-9240 (EASTERN EXPRESS, INC.—CONTROL AND PURCHASE—WHEELOCK BROS., INC.), published in the October 29, 1965, issue of the FEDERAL REGISTER on page 13802. The prior notice stated that EASTERN EXPRESS, INC., seeks to control through ownership of capital stock, and *to purchase* the operating rights of WHEELOCK BROS., INC. The purpose of this supplemental corrected notice is to state that applicant seeks *only to control* WHEELOCK BROS., INC., through acquisition of all of its outstanding capital stock.

No. MC-F-9247. Authority sought for purchase by GRAF BROS., INC., 180 Main Street, Salisbury, Mass., of the operating rights of THOR TRANSPORTATION, INC., 181 Mendon Road, South Attleboro, Mass., and for acquisition by FRED WN. GRAF, 27 Rolfes Lane, Newbury, Mass., of control of such rights through the purchase. Applicants' attorneys: Kenneth B. Williams, and Robert J. Gallagher, both of 111 State Street, Boston, Mass., 02109. Operating rights sought to be transferred: *General commodities*, excepting, among others, household goods and commodities in bulk, as a *common carrier*, over regular routes, between Attleboro, Mass., and Boston, Mass., serving no intermediate points; *malt beverages*, over irregular routes, from Providence, R.I., to Attleboro, Mass.; and *metal castings*, from North Attleboro, Mass., to Pawtucket and Providence, R.I. Vendee is authorized to operate as a *common carrier* in all States east of the Mississippi River. Application has not been filed for temporary authority under section 210a(b).

No. MC-F-9248. Authority sought for purchase by CHICAGO-AURORA MOTOR SERVICE, INC., Aurora Avenue Lane, Aurora, Ill., of a portion of the operating rights and certain property of JAMES V. SHEPLEY, doing business as SHEPLEY MOTOR EXPRESS, 1 South Des Plaines Street, Joliet, Ill., and for acquisition by CARL I. JACKSON, also of Aurora, Ill., of control of such rights and property through the purchase. Applicants' attorney: Paul J. Maton, 10 South La Salle Street, Suite 1149, Chicago, Ill., 60603. Operating rights sought to be transferred: *General commodities*, excepting, among others, household goods and commodities in bulk, as a *common carrier*, over regular routes, between Joliet, Ill., and Chicago, Ill., serving the intermediate points of Lockport and Argo, Ill., and the off-route point of Lemont, Ill. Restriction: The service authorized hereinabove to and from Chicago is restricted to that portion of the Chicago commercial zone which is within the State of Illinois. Vendee is authorized to operate as a *common carrier* in Illinois. Application has been filed for temporary authority under section 210a(b).

No. MC-F-9249. Authority sought for purchase by ANDERSON MOTOR SERVICE, INC., 1516 East 14th Street, St. Louis 6, Mo., of the operating rights of COUNTY EXPRESS, INC., 1358 Thatcher Street, St. Louis 35, Mo., and for acquisition by JOHN P. BUTLER, B. H. BOEGER, DAVID R. BUTLER, JOHN RICHARD BUTLER, ROBERT H. BUTLER, H. J. FISCHER, and R. G. STEVENS, all of St. Louis, Mo., of control of such rights through the purchase. Applicants' attorney: G. M. Rebman, 314 North Broadway, St. Louis, Mo., 63102. Operating rights sought to be transferred: *General commodities*, excepting, among others, household goods, but not excepting commodities in bulk, as a *common carrier*, over irregular routes, between points in the St. Louis, Mo.-East St. Louis, Ill., commercial zone as defined by the Commission, on the one hand, and, on the other, points in St. Louis County, Mo., beyond the said commercial zone, except Valley Park, Mo. Vendee is authorized to operate as a *common carrier* in Indiana, Ohio, Illinois, and Missouri. Application has not been filed for temporary authority under section 210a(b).

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 65-12088; Filed, Nov. 9, 1965; 8:47 a.m.]

[Notice 1260]

MOTOR CARRIER TRANSFER PROCEEDINGS

NOVEMBER 5, 1965.

Synopses of orders entered pursuant to section 212(b) of the Interstate Commerce Act, and rules and regulations prescribed thereunder (49 CFR Part 179), appear below:

As provided in the Commission's special rules of practice any interested person may file a petition seeking reconsideration of the following numbered proceedings within 20 days from the date of publication of this notice. Pursuant to section 17(8) of the Interstate Commerce Act, the filing of such a petition will postpone the effective date of the order in that proceeding pending its disposition. The matters relied upon by petitioners must be specified in their petitions with particularity.

No. MC-FC-68240. By order of November 4, 1965, Transfer Board approved the transfer to Blair Transit Company, a corporation, Richmond, Va., of Certificate No. MC-113581 issued February 24, 1953, to John D. Blair, Jr., doing business as Blair Transit Co., Richmond, Va., authorizing the transportation of leaf tobacco, leaf tobacco scraps and leaf tobacco stems, and materials, equipment, supplies, and machinery used in the processing, marketing and transportation of leaf tobacco, leaf tobacco scraps and leaf tobacco stems, over irregular routes, from, to, and between specified points and areas in the States of Maryland, North Carolina, and Virginia, varying with the commodities transported. J. Randolph Tucker, Jr., 1407 State Planters Bank Building, Richmond, Va., 23219, attorney for applicants.

No. MC-FC-68241. By order of October 26, 1965, Transfer Board approved the transfer to Trans Country Van Lines, Inc., Elmont, N.Y., of certificate in No. MC-34088, issued November 14, 1960, to Gug Henry Chapin, doing business as Chapin Transfer & Storage, Kinsley, Kans., authorizing the transportation of: Canned goods, agricultural machinery, feed, household goods, and livestock, from, to, or between specified points in Colorado, Kansas, Oklahoma, and Missouri. Edward M. Alfano, 2 West 45th Street, New York, N.Y., 10036, attorney for applicants.

No. MC-FC-68243. By order of October 26, 1965, Transfer Board approved the transfer to Bowen Trucking Co., Inc., Farmington, N. Mex., of certificate in No. MC-97830 (Sub-No. 2), issued January 23, 1963, to C. Lee Williams, doing business as Lee Williams Truck Service, Liberal, Kans., authorizing the transportation of: Machinery, equipment, materials, and supplies used in, or in connection with, the discovery, development, production, refining, manufacture, processing, storage, transmission, and distribution of natural gas and petroleum and their products and byproducts, and machinery, materials, equipment, and supplies used in, or in connection with the construction, operation, repair, servicing, maintenance, and dismantling of pipe lines, including the stringing and picking up thereof, except the picking up and stringing of main or truck pipelines, between points in Kansas, Oklahoma, and that part of Texas bounded on the south by U.S. Highway 84 extending from the New Mexico-Texas State line to Lubbock, Tex., thence by U.S. Highway 82 to Wichita Falls, Tex., and on the east by U.S. Highway 277 extending from Wichita Falls, Tex., to the Texas-Oklahoma State line, including points on the indicated portions of the highways specified. Erle W. Francis, 719 Capitol Federal Building, 700 Kansas Avenue, Topeka, Kans., attorney for applicants.

No. MC-FC-68265. By order of November 4, 1965, Transfer Board approved the transfer to William Duggan Machinery Movers, Inc., Brooklyn, N.Y., of the operating rights issued by the Commission October 18, 1963, under Certificate No. MC-55809, to Fox Rigging & Hauling Corp., New York, N.Y., authorizing the transportation, over irregular routes, of machinery, between Newark, N.J., New York, N.Y., and points in New Jersey within 10 miles of Newark, N.J., on the one hand, and, on the other, Albany and Binghamton, N.Y., and points in that part of New Jersey, New York, Pennsylvania, and Connecticut, within 125 miles of Newark, N.J. Arthur J. Piken, 160-16 Jamaica Avenue, Jamaica 32, N.Y., attorney for transferor. Sidney Spero, 160-16 Jamaica Avenue, Jamaica 32, N.Y., attorney for transferee.

No. MC-FC-68272. By order of October 25, 1965, Transfer Board approved the transfer to Jacob J. Elliott, Jr., and Alvin R. Roth, a partnership, doing business as Shively's, Bethlehem, Pa., of a portion of certificate in No. MC-1344, issued August 14, 1964, to Union Transfer Co. of Allentown, Inc., 728 North 15th Street, Allentown, Pa., authorizing the transportation of: Household goods as defined, between Allentown, Pa., and points within 50 miles of Allentown, on the one hand, and, on the other, points in New Jersey, New York, and the District of Columbia, and, between Allentown, Pa., and points within 25 miles of Allentown, on the one hand, and, on the other, points in New York, New Jersey, and Maryland. Morris Mindlin, 146 East Broad Street, Bethlehem, Pa., attorney for transferees.

No. MC-FC-68273. By order of October 29, 1965, Transfer Board approved the transfer to La Flor De Mayo Express, Inc., New York, N.Y., of certificate in No. MC-52900, issued November 25, 1963, to Trans-World Moving & Storage Co., Inc., 270 East 42d Street, Brooklyn, N.Y., authorizing the transportation of: Household goods, as defined, between New York, N.Y., on the one hand, and, on the other, points in Connecticut, New Jersey, New York, and Pennsylvania. Harry B. Rosenbaum, 350 Broadway, New York, N.Y., 10013, attorney for transferee.

[SEAL] H. NEIL GARSON,
Secretary.

[F.R. Doc. 65-12089; Filed, Nov. 9, 1965; 8:47 a.m.]

NOTICE OF FILING OF MOTOR CARRIER INTRASTATE APPLICATIONS

NOVEMBER 5, 1965.

The following applications for motor common carrier authority to operate in intrastate commerce seek concurrent motor carrier authorization in interstate or foreign commerce within the limits of the intrastate authority sought, pursuant to section 206(a)(6) of the Interstate Commerce Act, as amended October 15, 1962. These applications are governed by Special Rule 1.245 of the Commission's rules of practice, published in the FEDERAL REGISTER, issue of April 11, 1963, page 3533, which provides, among other things, that protests and requests for information concerning the time and place of State Commission hearings or other proceedings, any subsequent changes therein, and any other related matters shall be directed to the State Commission with which the application is filed and shall not be addressed to or filed with the Interstate Commerce Commission.

State docket number assigned C-160 Case No. 2, filed October 18, 1965. Applicant: CHARLES A. VAN ZOEREN, doing business as ALVAN MOTOR FREIGHT, 1015 West Paterson Avenue, Kalamazoo, Mich. Applicant's representative: Walter N. Bieneman, Suite 1700, One Woodward Avenue, Detroit, Mich., 48226. Certificate of public convenience and necessity sought to operate a freight service as follows: Transportation of *General commodities*, serving the plantsite of Northern Fibre Products Co. approximately 4 miles north of Holland, Mich., in Olive Township, Ottawa County, Mich., as an off-route point in connection with otherwise authorized operations.

HEARING: December 9, 1965, at 9:30 a.m., in the offices of the Michigan Public Service Commission, Lewis Cass Building, Lansing, Mich. Requests for procedural information including time for filing protests concerning this application should be addressed to the Michigan Public Service Commission, Lewis Cass Building, Lansing, Mich., and should not be directed to the Interstate Commerce Commission.

State docket number assigned 3755, filed October 29, 1965. Applicant: ANDERSON DEVELOPMENT CORPORATION, Post Office Box 4027, Ambrosia Lake Station, Grants, N. Mex. Applicant's representative: R. Russell Rager, Post Office Box 1031, Albuquerque, N. Mex. Certificate of public convenience and necessity sought to operate a freight service as follows: Transportation of *ore concentrates* and *precipitates*, between all points in New Mexico, over irregular routes, under nonscheduled service.

HEARING: December 7, 1965 at 9:30 a.m., in the offices of the Commission, State Capitol, Santa Fe, N. Mex. Requests for procedural information including time for filing protests concerning this application should be addressed to the New Mexico State Corp. Commission, Motor Transportation Department, Santa Fe, N. Mex., and should not be directed to the Interstate Commerce Commission.

State docket number MC 4731, filed June 23, 1965. Applicant: BEST-WAY TRANSPORTS, INC., 115 Division, Jackson, Tenn. Applicant's representative: Clarence Evans, 710 Third National Bank Building, Nashville, Tenn. Certificate of public convenience and necessity sought to operate a freight service as follows: (1) Transportation of

aluminum ingot and *aluminum plate or sheet*, between the plantsites of Consolidated Aluminum Corp., which are located at Jackson, and New Johnsonville, Tenn., and (2) authority also sought to transport *general commodities* (except used household goods, and commodities in bulk), between Jackson and Milan, Tenn., over U.S. Highways 45 and 45E; between Jackson and Trenton, Tenn., over U.S. Highways 45 and 45W; between Jackson and Henderson, Tenn., over U.S. Highway 45; between Jackson and Lexington, Tenn., over Tennessee Highway 20; between Jackson and Dyersburg, Tenn., over Tennessee Highway 20; between Jackson and Braden, Tenn., over U.S. Highway 70; between Jackson and Waverly, Tenn., over U.S. Highway 70; between junction U.S. Highway 45 and Tennessee Highway 18, and the junction of Tennessee Highways 57 and 18A, over Tennessee Highway 18, and also over Tennessee Highway 18A; between Brownsville, Tenn., and junction Tennessee Highways 57 and 76, over Tennessee Highway 76; between Covington, Tenn., and junction Tennessee Highways 76 and 59, over Tennessee Highway 59; between Covington and Trenton, Tenn., over Tennessee Highway 54; between Covington and Dyersburg, Tenn., over U.S. Highway 51; between Milan and Dyersburg, Tenn., over Tennessee Highway 104; between Ripley and Brownsville, Tenn., over Tennessee Highway 19.

Between Gates and Bells, Tenn., over Tennessee Highway 88, between Brownsville and Huntingdon, Tenn., over U.S. Highway 70A; between Somerville and Bolivar, Tenn., over U.S. Highway 64; between junction U.S. Highway 64 and Tennessee Highway 100, and Jacks Creek, Tenn., over Tennessee Highway 100; between Moscow and Grand Junction, Tenn., over Tennessee Highway 57; between Huntingdon and Jacks Creek, Tenn., over Tennessee Highways 22 and 22A; between junction Interstate Highway 40 and Tennessee Highway 59, and junction Interstate Highway 40 and Tennessee Highway 13, over Interstate Highway 40; and between Waverly, Tenn., and junction Interstate Highway 40 and Tennessee Highway 13 over Tennessee Highway 13; between Jackson and South Fulton, Tenn., over U.S. Highways 45, 45W, and 45E; between Jackson, Tenn., and junction Tennessee Highway 57 and U.S. Highway 45, over U.S. Highway 45; between Jackson and Perryville, Tenn., over Tennessee Highway 20; between Covington and Paris, Tenn., over Tennessee Highway 54; between Covington and Union City, Tenn., over U.S. Highway 51; between Brownsville and Paris, Tenn., over U.S. Highway 79; between Somerville and Savannah, Tenn., over U.S. Highway 64; between junction Tennessee Highways 100 and 64, and Parsons, Tenn., over Tennessee Highway 100; between Moscow, Tenn., and Tennessee-Mississippi State line over Tennessee Highway 57; between Pickwick Dam and Savannah, Tenn., over Tennessee Highway 128; between junction Tennessee Highways 57 and 142, and junction Tennessee Highways 142 and U.S. Highway 45, over Tennessee Highway 142; between junction Tennessee Highways 25 and 57, and Bolivar, Tenn., over Tennessee Highway 125; between junction Tennessee Highways 57 and 22, and Union City, Tenn., over Tennessee Highway 22, and also over Tennessee Highways 22 and 22A; between junction U.S. Highway 64 and Tennessee Highway 69, and Paris, Tenn., over Tennessee Highway 69; between Dyersburg and junction Tennessee Highways 69 and 104, over Tennessee Highway 104; between Paris, Tenn., and junction Tennessee Highways 51 and 77, over Tennessee Highway 77; between junction U.S. Highways 70A and 70, and junction U.S. Highways 70A and 79 over U.S. Highway 70A; between junction U.S. Highway 70A and Tennessee Highway 105, and Trimble, over Tennessee Highway 105; between McKenzie and Greenfield, Tenn., over Tennessee Highway 124; and between Dresden, Tenn., and junction of U.S. Highway 45W and Tennessee Highway 89, over Tennessee Highway 89. NOTE: Applicant seeks authority to use all of the foregoing routes in conjunction with each other, and to serve any and all intermediate points on said routes.

HEARING: December 9, 1965, at C-1-110 Cordell Hull Building, Nashville, Tenn. Requests for procedural information including time for filing protests concerning this application should be addressed to the Tennessee Public Service Commission, Cordell Hull Building, Nashville, Tenn., 37219, and should *not* be directed to the Interstate Commerce Commission.

State docket number assigned H-4905, filed October 12, 1965. Applicant: RAYMOND F. HUGHES, doing business as HUGHES FREIGHT CO., 105 South 13th Street, Centerville, Iowa. Applicant's representative: Kenneth F. Dudley, 901 South Madison Avenue, Post Office Box 279, Ottumwa, Iowa. Certificate of public convenience and necessity sought to operate a freight service over regular routes, as follows: *General freight*, between Ottumwa, Floris, Drakesville, Paris (Bunch), Unionville, Udell, Centerville, Numa, Seymour, Harvard, Allerton, Clio, and Lineville, Iowa.

HEARING: December 15, 1965, at 10:00 o'clock a.m., at the Office of the Commission, Des Moines, Iowa. Requests for procedural information including time for filing protests concerning this application should be addressed to the Iowa State Commerce Commission, Des Moines, Iowa, 50319, and should not be directed to the Interstate Commerce Commission.

State docket number assigned C-6714, Case No. 17, filed October 7, 1965. Applicant: CENTRAL TRANSPORT, INC., 3399 East McNichols Road, Detroit, Mich., 48212. Applicant's representatives: Snyder, Loomis & Ewert, 117 West Allegan Street, Lansing, Mich., 48933. Certificate of public convenience and necessity sought to operate a freight service as follows: Transportation of: *General commodities*, serving the plantsite of Phillips Products Co., Inc., located on North Territorial Road in Washtenaw County, Mich. (approximately 1.2 miles east of U.S. Highway 23) as an off-route point in connection with applicant's otherwise authorized service over U.S. Highway 23.

HEARING: December 1, 1965, at 9:30 a.m. in the offices of the Michigan Public Service Commission, Lewis Cass Building, Lansing, Mich. Requests for procedural information including time for filing protests concerning this application should be addressed to the Michigan Public Service Commission, Lewis Cass Building, Lansing, Mich., and should not be directed to the Interstate Commerce Commission.

State docket number assigned 8108-CCT, filed August 24, 1965. Applicant: SUNSHINE MOBILE HOME MOVERS, INC., 595 Northwest 71st Street, Miami, Fla. Applicant's representative: John T. Bond, 1955 Northwest 17th Avenue, Miami, Fla. Certificate of public convenience and necessity sought to operate a freight service as follows: Transportation of *mobile homes* and/or *house trailers, including awnings, cabana rooms* and *such other accessories* as would be a component part in the moving of the complete unit, by the towaway or haulaway method, over irregular routes and on irregular schedules, from, to, and between, all points in Monroe County, Fla., and from points in Monroe County, Fla., to points in Florida, and from points in Florida to points in Monroe County, Fla.

HEARING: November 18, 1965, at the Holiday Inn, Key West, Fla. Requests for procedural information including time for filing protests concerning this application should be addressed to the Florida Public Service Commission, Tallahassee, Fla., 32304, and should not be directed to the Interstate Commerce Commission.

State docket number assigned 77482 M, filed September 24, 1965. Applicant: A. E. SUENRAM, doing business as A. E. SUENRAM TRUCK SERVICE, 3335 South Edwards, Wichita, Kans. Applicant's representative: Erle W. Francis, 719 Capitol Federal Building, Topeka, Kans. Certificate of public convenience and necessity sought to operate a freight service as follows: Transportation of *General commodities* and *property* being transported incidental to transportation by aircraft (except those of unusual value, classes A and B explosives (as defined by the Interstate Commerce Commission), household goods (as defined by the Interstate Commerce Commission), and commodities in bulk or requiring special equipment). Restricted to traffic having an immediately prior or immediately subsequent movement by air, between the Wichita commercial airport, on the one hand, and, on the other, all points in Kansas within 50 miles of Wichita and all commercial airports located in the Kansas portion of the Kansas City, Kans.-Mo., commercial zone as defined by the Interstate Commerce Commission.

HEARING: December 20, 1965, at 9:30 a.m., at the Hotel Lassen, Wichita, Kans. Requests for procedural information including time for filing protests concerning this application should be addressed to the Kansas Corporation Commission,

Transportation Division, Topeka, Kans., 66612, and should not be directed to the Interstate Commerce Commission.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 65-12090; Filed, Nov. 9, 1965; 8:47 a.m.]

[No. 34471 (Sub-No. 1)]

SEA-LAND SERVICE, INC., ET AL.

Unjust Rates; Assignment for Hearing and Directing Special Procedure

It appearing, that on July 25, 1965, Sea-Land Service, Inc., filed a complaint against the Atlantic Coast Line Railroad Co. and four other participating rail carriers alleging that certain Plan III TOFC rates on foodstuffs, beverages or beverage preparations from Florida to Kearny, N.J., are unjust, unreasonable and unlawful under section 1 of the Interstate Commerce Act and the National Transportation Policy;

And it further appearing, that upon consideration of the record in this proceeding and having determined this proceeding is of such a nature as to require the adoption of special procedure, including a formal hearing before a hearing examiner, and for good cause appearing therefor:

It is ordered, That:

(a) This proceeding be, and it is hereby, referred to Hearing Examiner Richard S. Ries for hearing at the time and place hereinafter designated and for recommendation of an appropriate order thereon, accompanied by the reasons therefor;

(b) The complainant and any interested party in support thereof shall file with the Commission on or before November 29, 1965, their prepared testimony in writing, including all exhibits thereto and, at the same time, serve a copy of such prepared testimony and exhibits upon all parties to the proceeding. The railroad defendants shall file their cost evidence on the same date and serve all parties;

(c) A hearing will be held at the offices of the Interstate Commerce Commission, Washington, D.C., on December 30, 1965, commencing at 9:30 o'clock a.m., U.S. standard time, for the purpose of cross-examining all witnesses that submitted evidence or cost studies on or before November 29, 1965;

(d) On or before January 13, 1966, both the complainants and the defendants shall file their rebuttal evidence including any restatement of costs. Such evidence is to be served upon all parties;

(e) A final hearing will be held at the offices of the Interstate Commerce Commission, Washington, D.C., on February 17, 1966, commencing at 9:30 o'clock a.m., U.S. standard time, for the purpose of the railroad defendants closing their case as to their own costs and for Sea-Land to close its case as to its costs and for cross-examination of any additional evidence submitted on or before January 13, 1966;

(f) An original with the affidavit and signature in ink together with two copies of all prepared testimony shall be filed with the Commission;

(g) Evidence presented which fails to conform to the above-outlined procedure will be grounds for its rejection from the record of the proceeding.

And it is further ordered, That a copy of this order be delivered to the Director, Office of the Federal Register, for publication in the FEDERAL REGISTER as notice to all parties.

Dated at Washington, D.C., this 1st day of November A.D. 1965.

By the Commission, Commissioner Freas.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 65-12085; Filed, Nov. 9, 1965; 8:47 a.m.]

[Notice 82]

MOTOR CARRIER TEMPORARY AUTHORITY APPLICATIONS

NOVEMBER 4, 1965.

The following are notices of filing of applications for temporary authority under section 210a(a) of the Interstate Commerce Act provided for under the new rules in Ex Parte No. MC 67, (49 CFR Part 240) published in the FEDERAL REGISTER, issue of April 27, 1965, effective July 1, 1965. These rules provide that protests to the granting of an application must be filed with the field official named in the FEDERAL REGISTER publication, within 15 calendar days after the date notice of the filing of the application is published in the FEDERAL REGISTER. One copy of such protests must be served on the applicant, or its authorized representative, if any, and the protests must certify that such service has been made. The protest must be specific as the service which such protestant can and will offer, and must consist of a signed original and six (6) copies.

A copy of the application is on file, and can be examined, at the Office of the Secretary, Interstate Commerce Commission, Washington, D.C., and also in the field office to which protests are to be transmitted.

MOTOR CARRIERS OF PROPERTY

No. MC 113843 (Sub-No. 107 TA), filed November 2, 1965. Applicant: REFRIGERATED FOOD EXPRESS, INC., 316 Summer Street, Boston, Mass., 02210. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Foodstuffs*, prepared, from Hamlin, Holley, and Williamson, N.Y., to points in Michigan and Wisconsin, for 150 days. Supporting shipper: Duffy-Mott Co., Inc., 370 Lexington Avenue, New York, N.Y., 10017. Send protests to: Richard D. Mansfield, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 30 Federal Street, Boston, Mass., 02110.

No. MC 124212 (Sub-No. 38 TA), filed November 2, 1965. Applicant: MITCHELL TRANSPORT, INC., 21111 Chagrin Boulevard, Cleveland, Ohio, 44122. Applicant's representative: J. A. Kundtz, Jr., 1050 Union Commerce Building, Cleveland, Ohio, 44115. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Cement*, from the plantsite of Lehigh Portland Cement Co., located at or near Jacksonville, Fla., to points in Appling, Atkinson, Bacon, Ben Hill, Berrien, Brantley, Brooks, Bryan, Camden, Charlton, Chatham, Clinch, Coffee, Cook, Echols, Evans, Glynn, Irwin, Jeff Davis, Lanier, Liberty, Long, Lowndes, McIntosh, Montgomery, Pierce, Tattnall, Telfair, Tift, Toombs, Ware, Wayne, and Wheeler Counties, Ga., for 180 days. Supporting shipper: Lehigh Portland Cement Co., Allentown, Pa. Send protests to: G. J. Baccel, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 435 Federal Building, Cleveland, Ohio, 44114.

No. MC 126967 (Sub-No. 3 TA), filed November 2, 1965. Applicant: AUTO HAULAWAY LIMITED, Post Office Box 333, Oakville, Ontario, Canada. Applicant's representative: Walter N. Bieneman, Suite 1700, 1 Woodward Avenue, Detroit, Mich., 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Automobiles, trucks, and buses*, as defined in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, in initial and secondary movements, in driveaway and truckaway service, and *parts and accessories thereof* moving at the same time, and with the vehicles of which they are a part and on which they are to be installed, between the port of entry on the international boundary line between the United States and Canada, located at Detroit, Mich., on the one hand, and, on the other, Dearborn and Wayne, Mich., for 150 days. Supporting shipper: Ford Motor Co., the American Road, Dearborn, Mich. Send protests to: George M. Parker, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, 324 Federal Office Building, Buffalo, N.Y., 14203.

No. MC 127342 (Sub-No. 3 TA), filed November 2, 1965. Applicant: WILBUR

McLAUGHLIN, doing business as TONICA TRANSIT COMPANY, Post Office Box 77, Tonica, Ill. Applicant's representative: Robert H. Levy, 105 West Adams, Chicago, Ill. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Brick*, from Sheffield, Ill., to Glendale, Milwaukee, and Madison, Wis.; Portage, Gary, and Griffith, Ind.; Clinton, Maquoketa, and Davenport, Iowa, for 150 days. Supporting shipper: Sheffield Brick Co., Sheffield, Ill. Send protests to: William E. Gallagher, District Supervisor, Bureau of Operations and Compliance, Interstate Commerce Commission, Room 1086, U.S. Courthouse, Federal Office Building, 219 South Dearborn Street, Chicago, Ill., 60604.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 65-12030; Filed, Nov. 8, 1965; 8:49 a.m.]

FOURTH SECTION APPLICATIONS FOR RELIEF

NOVEMBER 4, 1965.

Protests to the granting of an application must be prepared in accordance with § 1.40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 40102—*Soda ash to St. Louis, Mo., district.* Filed by Southwestern Freight Bureau, agent (No. B-8780), for interested rail carriers. Rates on soda ash, in bulk, in covered hopper cars, in carloads, from Corpus Christi, Freeport, and Houston, Tex., also Lake Charles, La., to Alton, East St. Louis, Federal, Hartford, Roxana, Wood River, Ill., and St. Louis, Mo.

Grounds for relief—Market competition.

Tariffs—Supplements 209 and 70 to Southwestern Freight Bureau, agent, tariffs ICC 4450 and 4564, respectively.

FSA No. 40103—*Iron or steel slabs to Memphis, Tenn.* Filed by Southwestern Freight Bureau, agent (No. B-8778), for interested rail carriers. Rates on iron or steel slabs, in the rough, in carloads, from specified points in Oklahoma and Texas, to Memphis, Tenn.

Grounds for relief—Rate relationship.

Tariff—Supplement 158 to Southwestern Freight Bureau, agent, tariff ICC 4503.

FSA No. 40104—*Fertilizer compounds from points in Utah.* Filed by Western Trunk Line Committee, agent (No. A-2429), for interested rail carriers. Rates on fertilizer compounds (manufactured fertilizer), n.o.i.b.n., dry, containing weed killing compounds and worm killing compounds, in carloads, from Garfield, Geneva, and Salt Lake City, Utah, to points in Minnesota, North Dakota, and South Dakota.

Grounds for relief—Market Competition, modified short-line distance formula and grouping.

Tariffs—Supplement 135 to Western Trunk Line Committee, agent, tariff ICC A-4411 and supplement 94 to Union Pacific Railroad Co. tariff ICC 5557.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 65-12032; Filed, Nov. 8, 1965; 8:49 a.m.]

Title 2—THE CONGRESS

ACTS APPROVED BY THE PRESIDENT

EDITORIAL NOTE: After the adjournment of the Congress *sine die*, and until all public acts have received final Presidential consideration, a listing of public laws approved by the President will appear in the daily FEDERAL REGISTER under *Title 2, The Congress*. A consolidated listing of the new acts approved by the President will appear in the Daily Digest in the final issue of the Congressional Record covering the 89th Congress, First Session.

Approved November 3, 1965

H.J. Res. 597.....Public Law 89-320

Joint Resolution providing for the erection of a memorial to the late Doctor Robert H. Goddard, the father of rocketry.

H.R. 9811.....Public Law 89-321

Food and Agriculture Act of 1965.

Approved November 4, 1965

H.R. 9047.....Public Law 89-322

An Act to authorize the release of certain quantities of zinc from either the national stockpile or the supplemental stockpile, or both.

Approved November 5, 1965

H.R. 7812.....Public Law 89-324

An Act to authorize the loan of naval vessels to friendly foreign countries, and for other purposes.

H.R. 10305.....Public Law 89-323

An Act to authorize the disposal, without regard to the prescribed six-month waiting period, of approximately two hundred million pounds of nickel from the national stockpile.

CUMULATIVE LIST OF CFR PARTS AFFECTED—NOVEMBER

The following numerical guide is a list of the parts of each title of the Code of Federal Regulations affected by documents published to date during November.

3 CFR

	Page
PROCLAMATION:	
3685	14033
EXECUTIVE ORDERS:	
Dec. 9, 1909 (revoked in part by PLO 3861)	14104
Mar. 1, 1912 (revoked in part by PLO 3861)	14104
Mar. 21, 1917 (revoked in part by PLO 3861)	14104
Nov. 22, 1924 (revoked in part by PLO 3861)	14104
10472 (revoked by EO 11256)	14137
10937 (revoked by EO 11256)	14137
11255	14135
11256	14137

5 CFR

213	13859, 13860, 13897, 14095
1201	14007
1202	14007

7 CFR

	Page
16	13897
301	14148
354	14035
401	14151
Ch. VII	14035
706	14035
724	14095
730	14098
751	14099
755	14099
850	13860
871	13897
873	13899
905	13933
907	14040
908	13901, 14040
909	13934
910	13861, 14041
912	14041
971	13935

7 CFR—Continued

	Page
980	13935
982	13901
989	14099
1427	14100
1602	13861
PROPOSED RULES:	
730	14048
905	14014

8 CFR

103	13862, 13936
264	13862
299	13862
PROPOSED RULES:	
103	13956
204	13956
205	13956
206	13956
211	13956
212	13956
212a	13956

8 CFR—Continued Page

221 13956
235 13956
242 13956
243 13956
245 13956
249 13956
299 13956

9 CFR

97 14042

PROPOSED RULES:

304 14108

10 CFR

140 14007

PROPOSED RULES:

2 14014
50 14014
115 14014

12 CFR

1 14042, 14043
541 13902
545 13902
563 13902

PROPOSED RULES:

561 14048

13 CFR

107 14095

PROPOSED RULES:

107 13872
121 14173

14 CFR

39 13948, 14043, 14151, 14152
71 13863, 13864, 13903, 13948, 13949, 14043, 14044, 14152–14154.
73 13864, 13903, 13949, 14007
75 13865
95 13865
298 14044

PROPOSED RULES:

25 14014
39 13963, 14017
71 13877, 13963, 13964, 14169, 14170
91 14170
298 13877
378 13877

16 CFR

13 14008

17 CFR

240 14046

18 CFR Page

154 14009
157 14009
250 14009

PROPOSED RULES:

2 14109
104 13877
141 14018
157 14110
201 14110
204 13877, 14110
260 14111

21 CFR

2 14154
3 14047
20 14100
51 14100
120 14101
121 14012, 14102, 14155
148e 14155
166 13903

PROPOSED RULES:

42 13963

24 CFR

1500 14012

25 CFR

131 14155

26 CFR

1 13862
31 13937

PROPOSED RULES:

1 14158

31 CFR

500 14156

PROPOSED RULES:

209 13955

32 CFR

1 14071
2 14079
3 14080
4 14087
5 14087
7 14090
9 14092
12 14092
13 14093
15 14093
16 14093
17 14094
18 14094
710 14139

33 CFR

202 13904
204 14102

38 CFR Page

2 14103
21 14103

39 CFR

113 13869
168 14103

42 CFR

51 14104

PROPOSED RULES:

73 13872

43 CFR

PUBLIC LAND ORDERS:

1316 (revoked by PLO 3859) 14156
3858 14012
3859 14156
3860 14047
3861 14104
3862 14106

45 CFR

500 13869
531 13869
580 13869
801 13904, 14045

46 CFR

PROPOSED RULES:

201 14014
206 14014
251 14014
287 14014

47 CFR

0 14106
2 14013
31 13949
73 13950, 14109

PROPOSED RULES:

73 13964, 14017, 14109, 14171
89 13965
91 13965
93 13965

49 CFR

73 13936
77 13936
193 14106

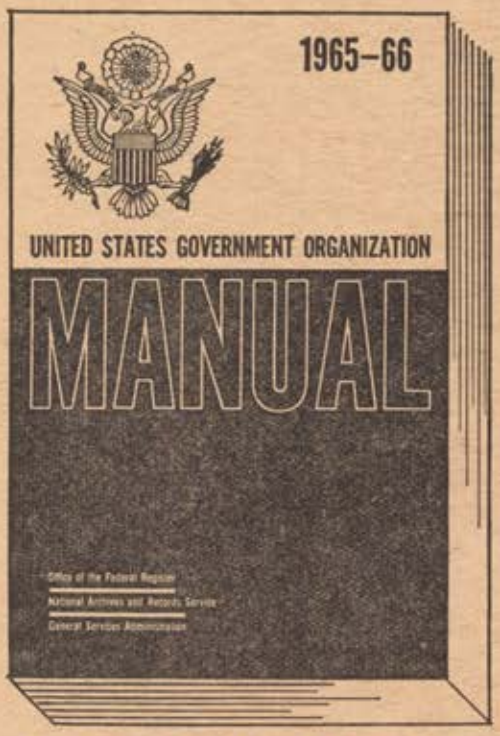
PROPOSED RULES:

552 14048
71–90 13967
176 14171
187 14171

50 CFR

10 13870
12 14047
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